



Competition and Consumer (Consumer Data Right) Rules 2020

made under the *Competition and Consumer Act 2010*

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Amendment (2025 Measures No. 1) Rules 2025*

Prepared by The Treasury

About this compilation

This compilation

This is a compilation of the *Competition and Consumer (Consumer Data Right) Rules 2020* that shows the text of the law as amended and in force on 4 March 2025 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

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If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1—Preliminary

Division 1.1—Preliminary

1.1 Name

This instrument is the *Competition and Consumer (Consumer Data Right) Rules 2020*.

1.3 Authority

This instrument is made under section 56BA of the *Competition and Consumer Act 2010*.

Section 1.4

Division 1.2—Simplified outline and overview of these rules

1.4 Simplified outline of these rules

There are 3 ways to request CDR data under these rules.

Product data requests

Any person may request a data holder to disclose CDR data that relates to products offered by the data holder. Such a request is called a product data request.

A product data request is made in accordance with relevant data standards, using a specialised service provided by the data holder. Such a request cannot be made for CDR data that relates to a particular identifiable CDR consumer. The data is disclosed, in machine-readable form, to the person who made the request. The data holder cannot impose conditions, restrictions or limitations of any kind on the use of the disclosed data.

Consumer data requests made by CDR consumers

A CDR consumer who, in accordance with a Schedule to these rules, is eligible to do so may directly request a data holder to disclose CDR data that relates to them. Such a request is called a consumer data request.

A consumer data request that is made directly to a data holder is made using a specialised online service provided by the data holder. The data is disclosed, in human-readable form, to the CDR consumer who made the request.

Consumer data requests made on behalf of CDR consumers

A CDR consumer who, in accordance with a Schedule to these rules, is eligible to do so may request an accredited person to request a CDR participant to disclose CDR data that relates to the consumer. The request made by the accredited person is called a consumer data request.

A consumer data request that is made to a data holder on behalf of a CDR consumer by an accredited person must be made in accordance with relevant data standards, using a specialised service provided by the data holder. The data is disclosed, in machine-readable form, to the accredited person.

Under the data minimisation principle, the accredited person may only collect, use and disclose CDR data in order to provide goods or services in accordance with a request from a CDR consumer, and may only use or disclose it for that purpose, or for a limited number of other purposes which require an additional consent from the CDR consumer.

When consumers are eligible to make requests

A consumer data request can only be made in relation to certain classes of product and consumer CDR data. These are specified in Schedules to these rules that relate to different designated sectors. The relevant Schedule will also set out:

- the circumstances in which a CDR consumer will be eligible to make or initiate a consumer data request for CDR data in that sector; and
- the CDR data that must be disclosed by the data holder in response to a valid request and the CDR data that may be, but is not required to be, disclosed by the data holder.

These rules also deal with a range of ancillary and related matters.

1.5 What these rules are about

- (1) These rules set out details of how the consumer data right works.
- (2) These rules should be read in conjunction with the following:
 - (a) the *Competition and Consumer Act 2010* (the Act), and in particular, Part IVD of the Act, which sets out the general framework for how the consumer data right works;
 - (b) designation instruments made under section 56AC of the Act;
 - (c) guidelines made by the Information Commissioner under section 56EQ of the Act;
 - (d) data standards made under section 56FA of the Act;
 - (e) regulations made under section 172 of the Act.

1.6 Overview of these rules

Note: These rules cover a number of different sectors of the economy. It is intended that they will be amended from time to time in the future to deal with additional sectors.

- (1) Part 1 of these rules deals with preliminary matters, such as:
 - (a) definitions of terms that are used in these rules; and
 - (b) the usage, in these rules, of certain terms that are defined in the Act.The other provisions of these rules should be read together with these definitions and other interpretive provisions. Part 1 also deals with services that must be provided by data holders and accredited persons that allow consumers to make and manage requests for CDR data.
- (2) Part 2 of these rules deals with product data requests, and should be read in conjunction with the relevant sector Schedule.
- (3) Part 3 of these rules deals with consumer data requests that are made by CDR consumers, and should be read in conjunction with the relevant sector Schedule. Only CDR consumers who are eligible to do so may make such requests. The eligibility criteria for each sector are set out in the relevant sector Schedule.
- (4) Part 4 of these rules deals with consumer data requests that involve accredited persons, and should be read in conjunction with the relevant sector Schedule.

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Division 1.2 Simplified outline and overview of these rules

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- (5) Part 5 of these rules deals with how persons can become accredited persons. It also deals with ancillary matters, such as revocation and suspension of accreditation, obligations of accredited persons, and the Register of Accredited Persons. The rules set out in this Part should be read in conjunction with Division 3 of Part IVD of the Act.
- (6) Part 6 of these rules deals with dispute resolution.
- (7) Part 7 of these rules deals with rules relating to the privacy safeguards. The rules set out in this Part should be read in conjunction with Division 5 of Part IVD of the Act. Part 7 also sets out some additional civil penalty provisions that protect the privacy or confidentiality of CDR consumers' CDR data.
- (8) Part 8 of these rules deals with data standards. The rules set out in this Part should be read in conjunction with Division 6 of Part IVD of the Act.
- (9) Part 9 of these rules deals with miscellaneous matters, such as review of decisions, reporting, record keeping and audit, and civil penalty provisions of the consumer data rules.
- (9A) Part 50 of these rules sets out application and transitional provisions.
- (10) Schedule 1 to these rules deals with default conditions on accreditations.
- (11) Schedule 2 to these rules sets out detailed steps for privacy safeguard 12 (subsection 56EO(1) of the Act and rule 7.11 of these rules). These steps are also relevant to persons who hold CDR data (service data) under a CDR outsourcing arrangement, and are an element of the ongoing obligations of accredited persons (see paragraph 5.12(1)(a)).
- (12) Schedule 3 to these rules deals with the banking and non-bank lenders sectors. Schedule 3 sets out:
 - (a) particular classes of data holder in those sectors to which these rules do *not* apply; and
 - (b) the specific types of CDR data in respect of which requests under these rules may be made; and
 - (c) the circumstances in which CDR consumers are eligible in relation to data holders in those sectors; and
 - (d) the progressive application of these rules to those sectors.
- (13) Schedule 4 to these rules deals with the energy sector. Schedule 4 sets out:
 - (a) the specific types of CDR data in respect of which requests under these rules may be made; and
 - (b) the circumstances in which CDR consumers are eligible in relation to data holders in the energy sector; and
 - (c) some modifications of the general rules that apply in the energy sector because certain types of data are collected or held by agencies specified in the energy sector designation instrument rather than the retailers with which the CDR consumers have accounts; and
 - (d) the progressive application of these rules to the energy sector.

1.6A Sector Schedules

A sector Schedule may modify the operation of Parts 1 to 9 of these rules in relation to a particular designated sector or sectors and a particular matter (whether or not a provision in any of those Parts provides for the Schedule to deal with the matter).

Example: A sector Schedule may provide that these rules do *not* apply in relation to a particular class of data holders in the designated sector or sectors.

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Division 1.3—Interpretation

1.7 Definitions

Note: Expressions have the same meaning in this instrument as in the *Competition and Consumer Act 2010* as in force from time to time—see paragraph 13(1)(b) of the *Legislation Act 2003*.

(1) In this instrument:

ABN has the meaning given by the *A New Tax System (Australian Business Number) Act 1999*.

account privileges, in relation to:

- (a) an account with a data holder; and
- (b) a particular designated sector;

has the meaning set out in a Schedule to these rules that relates to that sector.

accreditation applicant means a person who has applied to be an accredited person under rule 5.2.

accreditation number of an accredited person has the meaning given by rule 5.6.

accredited data recipient has a meaning affected by subrule (2).

Note: The term “accredited data recipient” is defined in the Act: see section 56AK of the Act. Subrule (2) deals with the usage of this term in these rules.

accredited person request service has the meaning given by subrule 1.13(3).

Act means the *Competition and Consumer Act 2010*.

addresses for service means both of the following:

- (a) a physical address for service in Australia;
- (b) an electronic address for service.

ADI (short for authorised deposit-taking institution) has the meaning given by the *Banking Act 1959*.

affiliate has the meaning given by rule 1.10D.

AP disclosure consent has the meaning given by rule 1.10A.

associated person, of another person, means any of the following:

- (a) a person who:
 - (i) makes or participates in making, or would (if the other person were an accredited person) make or participate in making, decisions that affect the management of CDR data by the other person; or
 - (ii) has, or would have (if the other person were an accredited person), the capacity to significantly affect the other person’s management of CDR data;
- (b) if the other person is a body corporate—a person who:
 - (i) is an associate (within the meaning of the *Corporations Act 2001*) of the other person; or

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- (ii) is an associated entity (within the meaning of the *Corporations Act 2001*) of the other person.

authorisation to disclose CDR data means:

- (a) an authorisation given by a CDR consumer under Part 4 to a data holder; or
- (b) such an authorisation as amended in accordance with these rules.

business consumer disclosure consent has the meaning given by rule 1.10A.

business consumer statement has the meaning given by rule 1.10A.

category, of consents, has the meaning given by rule 1.10A.

CDR business consumer has the meaning given by rule 1.10A.

CDR complaint data, in relation to a CDR participant, means the following:

- (a) the number of CDR consumer complaints received by the CDR participant;
- (b) the number of such complaints for each complaint type into which the CDR participant categorises complaints in accordance with its complaints handling process;
- (c) the number of such complaints resolved;
- (d) the average number of days taken to resolve CDR consumer complaints through internal dispute resolution;
- (e) the number of CDR consumer complaints referred to a recognised external dispute resolution scheme;
- (f) the number of CDR consumer complaints resolved by external dispute resolution;
- (g) in relation to a CDR participant that is a data holder—the number of CDR product data complaints received.

Note: Complaints covered by paragraph (g) are not “CDR consumer complaints”.

CDR consumer has a meaning affected by subrule (2).

Note: The term “CDR consumer” is defined in the Act: see subsection 56AI(3) of the Act. Subrule (2) deals with the usage of this term in these rules.

CDR consumer complaint means any expression of dissatisfaction made by a CDR consumer to or about a CDR participant, or a CDR representative of a CDR participant:

- (a) that relates to:
 - (i) that person’s obligations under or compliance with:
 - (A) Part IVD of the Act; or
 - (B) these rules; or
 - (C) binding data standards; or
 - (ii) the provision to the CDR consumer, by that person, of the goods or services in respect of which the consumer granted consent under Part 4; and
- (b) for which a response or resolution could reasonably be expected.

Note: Complaints of a kind referred to in sub-subparagraph (a)(i)(B) include a complaint relating to the participant’s obligations under, or compliance with, rules dealing with the handling of CDR consumer complaints.

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CDR data de-identification process has the meaning given by rule 1.17.

CDR data deletion process has the meaning given by rule 1.18.

CDR insight, in relation to an insight disclosure consent, means the CDR data subject to the consent.

CDR logo means a logo or symbol, including one whose use requires a licence or authorisation from a person other than the Commonwealth, approved by the Commission for the purposes of this definition.

CDR outsourcing arrangement has the meaning given by rule 1.10.

CDR participant has a meaning affected by subrule (2).

Note: The term “CDR participant” is defined in the Act: see subsection 56AL(1) of the Act. Subrule (2) deals with the usage of this term in these rules.

CDR policy means a policy that a CDR participant has and maintains in compliance with subsection 56ED(3) of the Act.

CDR product data complaint means an expression of dissatisfaction made to a data holder about its required product data or its voluntary product data for which a response or resolution could reasonably be expected.

CDR representative has the meaning given by rule 1.10AA.

CDR representative arrangement has the meaning given by rule 1.10AA.

CDR representative principal has the meaning given by rule 1.10AA.

co-approval option has the meaning given by rule 4A.5.

collection consent has the meaning given by rule 1.10A.

consent means:

- (a) a collection consent, a use consent or a disclosure consent; or
- (b) such a consent as amended in accordance with these rules.

consumer dashboard:

- (a) in relation to an accredited person—has the meaning given by rule 1.14; and
- (b) in relation to a data holder—has the meaning given by rules 1.15 and 4A.13.

consumer data request:

- (a) by a CDR consumer—has the meaning given by rule 3.3; and
- (b) by an accredited person on behalf of a CDR consumer—has the meaning given by rule 4.4 or rule 4.7A.

Note: The different types of consumer data request are summarised in the following table:

A consumer data request made under:	is made by:	to:	for disclosure of CDR data to:
rule 3.3	a CDR consumer	a data holder	the CDR consumer

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A consumer data request made under:	is made by:	to:	for disclosure of CDR data to:
rule 4.4	an accredited person on behalf of a CDR consumer	a data holder	the accredited person
rule 4.7A	an accredited person on behalf of a CDR consumer	an accredited data recipient	the accredited person

consumer experience data standards means data standards expressed to be consumer experience data standards.

Example: The Data Standards Chair must make data standards about disclosure and security of CDR data, including consumer experience data standards for certain disclosures—see subparagraphs 8.11(1)(c)(iii) to (vi).

current:

- (a) a consent is **current** if it has not expired in accordance with rule 4.14 or 4.20K; and
- (b) an authorisation to disclose particular CDR data is current if it has not expired in accordance with rule 4.26.

Note: For paragraph (a), there are the following 3 kinds of consent:

- collection consents;
- use consents;
- disclosure consents.

data holder has a meaning affected by subrule (2).

Note: The term “data holder” is defined in the Act: see subsection 56AJ of the Act. Subrule (2) deals with the usage of this term in these rules.

data minimisation principle has the meaning given by rule 1.8.

Data Standards Advisory Committee has the meaning given by rule 8.2.

de-identification consent has the meaning given by rule 1.10A.

direct marketing consent has the meaning given by rule 1.10A.

direct or indirect OSP means a direct OSP or an indirect OSP.

direct OSP has the meaning given by rule 1.10.

direct request service has the meaning given by subrule 1.13(2).

disclosure consent has the meaning given by rule 1.10A.

disclosure option has the meaning given by rule 4A.5.

disclosure option management service has the meaning given by rule 4A.6.

eligible:

- (a) in relation to a particular data holder, at a particular time—has the meaning given by rule 1.10B; and

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- (b) in relation to a particular data holder in a particular designated sector, at a particular time—has the meaning given by rule 1.10B as affected by clause 2.1 of Schedule 3 and clause 2.1 of Schedule 4.

fit and proper person criteria has the meaning given by rule 1.9.

foreign entity means a person who:

- (a) is not a body corporate established by or under a law of the Commonwealth, of a State or of a Territory; and
- (b) is neither an Australian citizen, nor a permanent resident (within the meaning of the *Australian Citizenship Act 2007*).

Note: See subsection 56CA(2) of the Act.

general research, in relation to an accredited data recipient, means research by the accredited data recipient:

- (a) using CDR data that has been de-identified in accordance with the CDR data de-identification process; and
- (b) that does not relate to the provision of goods or services to any particular CDR consumer.

goods includes products.

indirect OSP has the meaning given by rule 1.10.

insight disclosure consent has the meaning given by rule 1.10A.

joint account:

- (a) means a joint account with a data holder for which there are 2 or more joint account holders, each of which is an individual who:
 - (i) so far as the data holder is aware, is acting in their own capacity and not on behalf of another person; and
 - (ii) is eligible in relation to the data holder; but
- (b) does not include a partnership account with a data holder.

law relevant to the management of CDR data means any of the following:

- (a) the Act;
- (b) any regulation made for the purposes of the Act;
- (c) these rules;
- (d) the *Corporations Act 2001* and the *Corporations Regulations 2001*;
- (e) the *Privacy Act 1988*;
- (f) in relation to a particular designated sector—any law that is specified for the purposes of this paragraph in a sector Schedule.

Note: In relation to paragraph (f):

- for the banking sector and non-bank lenders sector, see clause 7.1 of Schedule 3; and
- for the energy sector, see clause 9.1 of Schedule 4.

level, in relation to accreditation, has the meaning given by rule 5.1A.

local agent, in relation to a foreign entity, means a person who:

- (a) is appointed by the foreign entity; and

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- (b) has addresses for service; and
- (c) is authorised to accept service of documents on behalf of the foreign entity.

meet the external dispute resolution requirements, for a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 5.2 of Schedule 3; and
- in the energy sector, see clause 5.2 of Schedule 4.

meet the internal dispute resolution requirements, for a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 5.1 of Schedule 3; and
- in the energy sector, see clause 5.1 of Schedule 4.

nominated representative has the meaning given by subparagraph 1.13(1)(c)(i) or subparagraph 1.13(1)(d)(i), as appropriate.

non-disclosure option has the meaning given by rule 4A.5.

ordinary means of contacting an account holder by a data holder means:

- (a) if the data holder has agreed with the account holder on a particular means of contacting the account holder for the purposes of the relevant provision—that means; and
- (b) otherwise—the default means by which the data holder contacts the account holder in relation to the account.

OSP chain principal has the meaning given by rule 1.10.

partnership account, with a data holder, means an account with a data holder that is held by or on behalf of a partnership or the partners in a partnership.

permitted use or disclosure has the meaning given by rule 7.5.

pre-approval option has the meaning given by rule 4A.5.

primary data holder, in relation to SR data and a particular designated sector, means the data holder specified in the sector Schedule as the primary data holder for the SR data.

product data request has the meaning given by rule 2.3.

product data request service has the meaning given by rule 1.12.

recognised external dispute resolution scheme means a dispute resolution scheme that is recognised under section 56DA of the Act.

redundant data has the meaning given by paragraph 56EO(2)(a) of the Act.

Register of Accredited Persons means the Register of Accredited Persons established under subsection 56CE(1) of the Act.

relates to direct marketing has the meaning given by rule 7.5.

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requester, in relation to a product data request, means the person who made the request under rule 2.3.

required consumer data, in relation to a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 3.2 of Schedule 3; and
- in the energy sector, see clause 3.2 of Schedule 4.

required product data, in relation to a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 3.1 of Schedule 3; and
- in the energy sector, see clause 3.1 of Schedule 4.

restricted ADI means an ADI that has an authority under section 9 of the *Banking Act 1959* to carry on a banking business in Australia for a limited time specified in accordance with section 9D of that Act.

secondary data holder, in relation to SR data and a particular designated sector, means the data holder specified in the sector Schedule as the secondary data holder for the SR data.

secondary user: a person is a **secondary user** for an account with a data holder in a particular designated sector at a particular time, if, at that time:

- (a) the person is an individual who is 18 years of age or older; and
- (b) the person has account privileges in relation to the account; and
- (c) the account holder or account holders:
 - (i) are individuals each of whom is 18 years or older; and
 - (ii) are eligible in relation to the data holder; and
 - (iii) in accordance with the requirements for the account, have given the data holder an instruction to treat the person as a secondary user for the purposes of these rules; and
 - (iv) have not withdrawn that instruction.

secondary user instruction means an instruction given for the purposes of paragraph (c) of the definition of secondary user.

sector Schedule means a Schedule to these rules that deals with a particular designated sector or sectors.

service data:

- (a) in relation to a CDR outsourcing arrangement—has the meaning given by rule 1.10; and
- (b) in relation to a CDR representative arrangement— has the meaning given by rule 1.10AA.

sponsor has the meaning given by rule 1.10D.

sponsored accreditation means accreditation at the sponsored level mentioned in rule 5.1A.

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Note: See also rules 1.10D and 5.1B.

sponsorship arrangement has the meaning given by rule 1.10D.

SR data (for *shared responsibility data*), in relation to a CDR consumer and a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: Where CDR data for which there is a CDR consumer in a designated sector is held by one data holder, but it would be more practical for consumer data requests for the data to be directed to, and actioned by, a different data holder with which the CDR consumer has a relationship, such CDR data may be specified as SR data in the sector Schedule. Parts 3 and 4 then apply with the modifications set out in Division 1.5.

SR data request (for *shared responsibility data request*) means a consumer data request for CDR data that is, or that includes, SR data of the CDR consumer.

TA disclosure consent has the meaning given by rule 1.10A.

trial product, in relation to a particular designated sector, has the meaning set out in the relevant sector Schedule.

trusted adviser has the meaning given by rule 1.10C.

type of CDR data means a type of data that is identified in the data standards.

Note: See paragraph 8.11(1)(d).

unrestricted accreditation means accreditation at the unrestricted level mentioned in rule 5.1A.

use consent has the meaning given by rule 1.10A.

valid has the meaning given by subrule 3.3(3) or subrule 4.3(3) as appropriate.

voluntary consumer data, in relation to a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 3.2 of Schedule 3; and
- in the energy sector, see clause 3.2 of Schedule 4.

voluntary product data, in relation to a particular designated sector, has the meaning set out in the relevant sector Schedule.

Note: For the meaning of the term:

- in the banking sector and non-bank lenders sector, see clause 3.1 of Schedule 3; and
- in the energy sector, see clause 3.1 of Schedule 4.

(2) The table has effect:

Meaning of references to certain terms		
A reference, in a particular provision of these rules, to:		is, depending on the context, a reference to:
1	a CDR consumer	(a) a CDR consumer for any CDR data; or

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Meaning of references to certain terms		
A reference, in a particular provision of these rules, to:		is, depending on the context, a reference to:
		(b) a CDR consumer for the particular CDR data that is dealt with in relation to the reference.
2	a data holder	(a) a data holder of any CDR data; or (b) the data holder of the particular CDR data that is dealt with in relation to the reference.
3	an accredited data recipient	(a) an accredited data recipient of any CDR data; or (b) the accredited data recipient of the particular CDR data that is dealt with in relation to the reference.
4	a CDR participant	(a) a CDR participant for any CDR data; or (b) the CDR participant for the particular CDR data that is dealt with in relation to the reference.

References to data holder

- (3) In these rules, depending on the context, a reference to a data holder is a reference to a data holder that would be required or that is authorised to disclose CDR data in response to a product data request or a consumer data request that is made in accordance with these rules.

References to a person's CDR data

- (4) In these rules, a reference to a person's CDR data is a reference to the CDR data for which that person is a CDR consumer.

References to accredited person

- (5) In these rules, unless the contrary intention appears, a reference to an accredited person making a consumer data request, collecting CDR data, obtaining consents, providing a consumer dashboard, or using or disclosing CDR data does not include a reference to an accredited person doing those things on behalf of an OSP principal in its capacity as a direct or indirect OSP of:
- (a) another accredited person; or
 - (b) a CDR representative of itself or of another accredited person;
- in accordance with the relevant CDR outsourcing arrangement.

1.8 Data minimisation principle

- (1) The collection of CDR data by an accredited person complies with the ***data minimisation principle*** if, when making a consumer data request on behalf of a CDR consumer, the accredited person does not seek to collect:
- (a) more CDR data than is reasonably needed; or
 - (b) CDR data that relates to a longer time period than is reasonably needed;

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in order for it, or a relevant CDR representative, to provide the goods or services requested by the CDR consumer.

- (2) The use or disclosure of CDR data by an accredited person or a CDR representative complies with the ***data minimisation principle*** if, when providing the requested goods or services, or doing any other thing that constitutes a permitted use or disclosure of collected CDR data, the use or disclosure of the collected data, or any CDR data directly or indirectly derived from it, does *not* go beyond what is reasonably needed in order to provide the requested goods or services or to effect the permitted use or disclosure.

1.9 Fit and proper person criteria

- (1) For these rules, the ***fit and proper person criteria***, in relation to a person, are the following:
- (a) whether the person, or any associated person, has, within the previous 10 years, been convicted of:
 - (i) a serious criminal offence; or
 - (ii) an offence of dishonesty;against any law of the Commonwealth or of a State or a Territory, or a law of a foreign jurisdiction;
 - (b) whether the person, or any associated person, has been found to have contravened:
 - (i) a law relevant to the management of CDR data; or
 - (ii) a similar law of a foreign jurisdiction;
 - (c) whether the person, or any associated person, has been the subject of:
 - (i) a determination under paragraph 52(1)(b) or any of paragraphs 52(1A)(a), (b), (c) or (d) of the *Privacy Act 1988*; or
 - (ii) a finding or determination of a similar nature under a similar law of a foreign jurisdiction;
 - (d) if the person is a body corporate—whether any of the directors (within the meaning of the *Corporations Act 2001*) of the person, or any associated person:
 - (i) has been disqualified from managing corporations; or
 - (ii) is subject to a banning order;
 - (e) whether the person, or any associated person, has a history of insolvency or bankruptcy;
 - (f) whether the person, or any associated person, has been the subject of a determination made under an external dispute resolution scheme that:
 - (i) included a requirement to pay monetary compensation; and
 - (ii) was, at the time the determination was made:
 - (A) recognised under the *Privacy Act 1988*; or
 - (B) a recognised external dispute resolution scheme;
 - (g) any other relevant matter, including but not limited to the objects of Part IVD of the Act.

Note: The objects of Part IVD are set out in section 56AA of the Act.

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- (2) In this rule:

banning order has the same meaning as in the *Corporations Act 2001*.

serious criminal offence means an offence for which, if the act or omission had taken place in the Jervis Bay Territory, a person would be liable, on first conviction, to imprisonment for a period of not less than 5 years.

Note: The Jervis Bay Territory is mentioned because it is a jurisdiction in which the Commonwealth has control over the criminal law.

1.10 Meaning of *direct OSP*, *indirect OSP* and related terms

Persons in a chain of outsourced service providers

- (1) In these rules, where a person who is an accredited person or a CDR representative is the principal in one or more CDR outsourcing arrangements:
- (a) the provider in each such arrangement is a **direct OSP** (for “direct outsourced service provider”) of the person; and
 - (b) where a direct OSP of the person is also the principal in a further CDR outsourcing arrangement, the provider in the further arrangement is an **indirect OSP** of the person; and
 - (c) where an indirect OSP of the person is also the principal in a further CDR outsourcing arrangement, the provider in the further arrangement is also an **indirect OSP** of the person; and
 - (d) the person is the **OSP chain principal** of each direct and indirect OSP.
- Note: Paragraph (c) can be applied repeatedly, so there may be a chain of indirect OSPs for each direct OSP.
- (2) Paragraph (1)(d) does not apply in relation to a person who is an accredited person or CDR representative that is a direct or indirect OSP of an OSP chain principal.

Content of a CDR outsourcing arrangement

- (3) In these rules, a **CDR outsourcing arrangement** is a written contract between a person (the **OSP principal**) and another person (the **provider**) under which:
- (a) the provider will do one or both of the following:
 - (i) collect CDR data from a CDR participant in accordance with these rules on behalf of the OSP chain principal (for an OSP chain principal with unrestricted accreditation);
 - (ii) use or disclose service data to provide specified goods or services to the OSP principal; and
 - (b) the provider is required to comply with the following requirements in relation to any service data:
 - (i) in holding, using or disclosing the service data, the provider must comply with the following as if it were the OSP principal:
 - (A) the OSP principal’s CDR policy as it relates to deletion and de-identification of CDR data and the treatment of redundant or de-identified CDR data;
 - (B) section 56EG of the Act (privacy safeguard 4);

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- (C) section 56EI of the Act (privacy safeguard 6);
- (D) section 56EJ of the Act (privacy safeguard 7);
- (E) section 56EK of the Act (privacy safeguard 8);
- (F) section 56EL of the Act (privacy safeguard 9);
- (ii) the provider must take the steps in Schedule 2 to protect the service data as if it were an accredited data recipient;
- (iii) the provider must not disclose service data other than:
 - (A) to another direct or indirect OSP of the OSP chain principal;
or
 - (B) to the OSP chain principal; or
 - (C) in circumstances where the disclosure of the service data by the OSP chain principal would be permitted under these rules;
- (iv) the provider must not use or disclose the service data other than in accordance with a contract with the OSP principal; and
- (v) the provider must:
 - (A) when directed by the OSP principal, do any of the things referred to in paragraphs (5)(a), (b), (c) or (d); and
 - (B) when directed by the OSP chain principal, do any of the things referred to in paragraphs (5)(a), (b), (c) or (d); and
 - (C) if the OSP chain principal is a CDR representative—when directed by the CDR representative principal of the OSP chain principal, do any of the things referred to in paragraphs (5)(b), (c) or (d);
- (vi) if the provider is the OSP principal in a further CDR outsourcing arrangement (the **arrangement**), it must ensure that the other person in the arrangement complies with the requirements of the arrangement, including in relation to service data of the other person that was disclosed to it by the OSP chain principal or another direct or indirect OSP of the OSP chain principal.

Note: See rule 1.18 for the definition of “CDR data deletion process”.

- (4) For subparagraph (3)(a)(ii), the provision of the specified goods or services must be:
 - (a) where the OSP principal is the OSP chain principal—for the purpose of enabling the OSP chain principal to provide CDR consumers for the service data with the goods and services for the purposes of which a relevant consent to collect the service data, or the CDR data from which it was directly or indirectly derived, was given; and
 - (b) otherwise—for the purpose of enabling the OSP principal to provide the goods and services specified in the CDR outsourcing arrangement for which it is the provider.
- (5) For subparagraph (3)(b)(v), the things are the following:
 - (a) provide that person with access to any service data that it holds;
 - (b) in accordance with the CDR data deletion process, delete any service data that it holds and make the required records;
 - (c) provide to that person any such required records;

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- (d) direct any other person to which it has disclosed service data under a further CDR outsourcing arrangement to take corresponding steps.

Service data

- (6) In these rules, **service data**, in relation to a person who is a direct or indirect OSP of an OSP chain principal, means any CDR data of a CDR consumer of the OSP chain principal held by the person that:
 - (a) was disclosed to the person by the OSP chain principal for the purposes of the relevant CDR outsourcing arrangement; or
 - (b) was collected from a CDR participant by the person on behalf of the OSP chain principal in accordance with the relevant CDR outsourcing arrangement; or
 - (c) was disclosed to the person by another direct or indirect OSP of the OSP chain principal in accordance with the relevant CDR outsourcing arrangement for the other direct or indirect OSP; or
 - (d) is directly or indirectly derived from such CDR data.

Note: Service data may be disclosed to other direct or indirect OSPs in accordance with provisions in the relevant CDR outsourcing arrangements.

- (7) For paragraph (6)(a), where an accredited person gives a direct or indirect OSP (the **provider**) permission to access or use CDR data collected by the provider on behalf of the OSP chain principal in accordance with subparagraph (3)(a)(i), the accredited person is taken to disclose the CDR data to the provider.

1.10AA Meaning of *CDR representative* and related terms

Note: From the point of view of a CDR consumer who is the customer of a CDR representative, the consumer deals with the CDR representative, as if it were an accredited person, and might not deal with the CDR representative principal at all. The consumer requests the goods or services from the CDR representative; the CDR representative identifies the CDR data that it needs in order to provide the goods and services; the consumer gives their consent to the CDR representative for the collection and use of the CDR data. The consumer is informed that the CDR representative principal will do the actual collecting, but as a background detail.

A CDR representative cannot deal with a person in their capacity as a CDR business consumer.

- (1) In these rules, a **CDR representative arrangement** is a written contract between a person with unrestricted accreditation (the **CDR representative principal**) and a person without accreditation (the **CDR representative**):
 - (a) under which the CDR representative will offer goods and services to CDR consumers, but not in their capacity as CDR business consumers, for which it will need to use or disclose CDR data of the CDR consumer; and
 - (b) under which, where the CDR representative has obtained the consent of a CDR consumer to the collection, use and disclosure of CDR data in accordance with rule 4.3A:
 - (i) the CDR representative principal will:
 - (A) make any appropriate consumer data request; and
 - (B) disclose the relevant CDR data to the CDR representative; and
 - (ii) the CDR representative will use or disclose the CDR data to provide the relevant goods or services to the CDR consumer; and

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- (c) that specifies that the provisions referred to in paragraphs (a) and (b) do not operate until the details of the CDR representative have been entered on the Register of Accredited Persons; and
 - (d) under which the CDR representative is required to comply with:
 - (i) any rules that are expressed as applying to a CDR representative; and
 - (ii) any consumer experience data standards that are expressed as applying to an accredited data recipient, as if the CDR representative were an accredited data recipient.
- (2) A CDR representative arrangement may provide for the CDR representative:
- (a) to seek any consent for the use or disclosure of service data that the CDR representative principal could seek in the same circumstances; and
 - (b) to make any use or disclosure of service data that would be:
 - (i) a permitted use or disclosure of the CDR data of the kind mentioned in paragraph 7.5(1)(j); or
 - (ii) a permitted use or disclosure of the CDR data that relates to direct marketing of the kind mentioned in paragraph 7.5(3)(e).
- (3) A CDR representative arrangement must require the CDR representative:
- (a) not to enter into another CDR representative arrangement; and
 - (b) not to engage a person as the provider in a CDR outsourcing arrangement in relation to service data except as provided in the CDR representative arrangement.
- Note: Because a CDR representative cannot collect CDR data except through its CDR representative principal, it cannot engage the provider to collect CDR data.
- (4) A CDR representative arrangement must require the CDR representative to comply with the following requirements in relation to any service data:
- (a) in holding, using or disclosing the service data, the CDR representative must comply with the following as if it were the CDR representative principal:
 - (i) section 56EE of the Act (privacy safeguard 2);
 - (ii) section 56EG of the Act (privacy safeguard 4);
 - (iia) section 56EI of the Act (privacy safeguard 6);
 - (iib) section 56EJ of the Act (privacy safeguard 7);
 - (iii) section 56EN of the Act, other than subsection (1) (privacy safeguard 11);
 - (iv) section 56EO of the Act (privacy safeguard 12);
 - (v) section 56EP of the Act, other than subsection (1) (privacy safeguard 13);
 - (b) the CDR representative must take the steps in Schedule 2 to protect the service data as if it were the CDR representative principal;
 - (c) the CDR representative must not use or disclose the service data other than in accordance with a contract with the CDR representative principal;
 - (d) the CDR representative must not use or disclose the service data unless the use or disclosure would be:
 - (i) a permitted use or disclosure of the CDR data of the kind mentioned in paragraph 7.5(1)(j); or

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- (ii) a permitted use or disclosure of the CDR data that relates to direct marketing of the kind mentioned in paragraph 7.5(3)(e);
- (e) the CDR representative must, when so directed by the CDR representative principal:
 - (i) do any of the following:
 - (A) delete any service data that it holds in accordance with the CDR data deletion process;
 - (B) provide, to the CDR representative principal, records of any deletion that are required to be made under the CDR data deletion process; and
 - (ii) require its direct and indirect OSPs to do the same;
- (f) the CDR representative must adopt and comply with the CDR representative principal's CDR policy in relation to the service data;
- (g) the CDR representative must comply with sections 56EK and 56EL of the Act (privacy safeguards 8 and 9) as if it were an accredited data recipient.

Note 1: For paragraph (4)(c), the CDR representative principal may be a direct or indirect OSP of the CDR representative, either as a result of provisions in the written agreement that make it also an CDR outsourcing arrangement under rule 1.10, or under a separate CDR outsourcing arrangement.

Note 2: For paragraph (4)(d), the permitted uses or disclosures are those that would be permitted if the representative were an accredited data recipient that had collected the CDR data under the consumer data request. They include disclosure to a direct or indirect OSP for the purposes of providing the relevant goods and services.

Note 3: For paragraph (4)(e), see rule 1.18 for the definition of "CDR data deletion process".

- (5) In these rules, **service data**, in relation to a CDR representative, consists of any CDR data that:
 - (a) was disclosed to the CDR representative for the purposes of the CDR representative arrangement; or
 - (b) is directly or indirectly derived from such CDR data.

1.10A Types of consents

- (1) For these rules:
 - (a) a **collection consent** is a consent given by a CDR consumer under these rules for an accredited person to collect particular CDR data from a CDR participant for that CDR data; and
 - (b) a **use consent** is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data, or a CDR representative that holds the CDR data as service data, to use that CDR data in a particular way; and
 - (c) a **disclosure consent** is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data, or a CDR representative that holds the CDR data as service data, to disclose that CDR data:
 - (i) to an accredited person in response to a consumer data request (an **AP disclosure consent**); or
 - (ii) to an accredited person for the purposes of direct marketing; or

- (iii) to a trusted adviser of the CDR consumer (a **TA disclosure consent**);
or
- (iv) to a specified person in accordance with an insight disclosure consent;
or
- (v) other than in the case of a CDR representative—to a specified person in accordance with a business consumer disclosure consent; and
- (d) a **direct marketing consent** is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data, or a CDR representative that holds the CDR data as service data, to use or disclose the CDR data for the purposes of direct marketing; and
- (e) a **de-identification consent** is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data, or a CDR representative that holds the CDR data as service data, to de-identify some or all of the collected CDR data and do either or both of the following:
 - (i) use the de-identified data for general research;
 - (ii) disclose (including by selling) the de-identified data.

Note: A direct marketing consent or a de-identification consent could consist of either or both a use consent or a disclosure consent.

- (2) For these rules, each of the following is a **category** of consents:
- (a) collection consents;
 - (b) use consents relating to the goods or services requested by the CDR consumer;
 - (c) direct marketing consents;
 - (d) de-identification consents;
 - (e) AP disclosure consents;
 - (f) TA disclosure consents;
 - (g) insight disclosure consents;
 - (h) business consumer disclosure consents.

Insight disclosure consents

- (3) For these rules, an **insight disclosure consent** in relation to particular CDR data of a CDR consumer held by an accredited data recipient, or a CDR representative that holds the CDR data as service data, is a disclosure consent given by the CDR consumer under these rules that:
- (a) authorises the accredited data recipient or CDR representative to disclose the CDR data to a specified person for one or more of the following purposes:
 - (i) verifying the consumer's identity;
 - (ii) verifying the consumer's account balance;
 - (iii) verifying the details of credits to or debits from the consumer's accounts; but
 - (b) where the CDR data relates to more than one transaction—does not authorise the accredited data recipient or CDR representative to disclose an amount or date in relation to any individual transaction.
- (4) An accredited person must not make:

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- (a) the giving of an insight disclosure consent; or
- (b) the specification of a particular person for the purposes of paragraph (3)(a); a condition for supply of the goods or services requested by the CDR consumer.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (5) A CDR representative must not make:
 - (a) the giving of an insight disclosure consent; or
 - (b) the specification of a particular person for the purposes of paragraph (3)(a); a condition for supply of the goods or services requested by the CDR consumer.
- (6) A CDR representative principal contravenes this subrule if its CDR representative makes:
 - (a) the giving of an insight disclosure consent; or
 - (b) the specification of a particular person for the purposes of paragraph (3)(a); a condition for supply of the goods or services requested by the CDR consumer.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (7) To avoid doubt, paragraphs (4)(a), (5)(a) and (6)(a) do not apply where the only good or service that is requested by the CDR consumer is for CDR data to be collected from a data holder and CDR insights disclosed in accordance with the insight disclosure consent.

Consents in relation to CDR representatives

- (8) For an accredited person with a CDR representative, a consent given by a CDR consumer under these rules to the CDR representative for the accredited person to collect particular CDR data from a CDR participant for that CDR data and disclose it to the CDR representative is also a **collection consent**.

CDR business consumers

- (9) For these rules, a CDR consumer is taken to be a **CDR business consumer** in relation to a consumer data request to be made by an accredited person if the accredited person has taken reasonable steps to confirm that:
 - (a) the CDR consumer is not an individual; or
 - (b) the CDR consumer has an active ABN.
- (10) For these rules, a **business consumer statement** is a statement made by a CDR business consumer that:
 - (a) is given in relation to a consent in one of the following categories:
 - (i) use consents relating to the goods or services requested by the CDR business consumer;
 - (ii) TA disclosure consents;
 - (iii) insight disclosure consents;
 - (iv) business consumer disclosure consents; and
 - (b) certifies that the consent is given for the purpose of enabling the accredited person to provide goods or services to the CDR business consumer in its capacity as a business (and not as an individual).

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Note: Only an accredited person is able to deal with a CDR consumer in the CDR consumer's capacity as a CDR business consumer, and is hence able to invite a CDR consumer to provide a business consumer statement.

- (11) For these rules, a ***business consumer disclosure consent*** in relation to particular CDR data of a CDR business consumer held by an accredited data recipient is a disclosure consent given by the CDR business consumer under these rules that:

- (a) authorises the accredited data recipient to disclose the CDR data to a specified person; and
- (b) includes a business consumer statement.

- (12) An accredited person must not make:

- (a) the giving of a business consumer disclosure consent; or
- (b) the giving of a business consumer statement; or
- (c) the specification of a particular person for the purposes of paragraph (11)(a);

a condition for supply of the goods or services requested by the CDR business consumer.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (13) To avoid doubt, paragraphs (12)(a) and (b) do not apply where the only good or service that is requested by the CDR business consumer is for CDR data to be collected from a data holder and provided to a specified person.

- (14) An accredited person may not deal with a person in their capacity as a CDR business consumer before the earlier of the following:

- (a) if the Data Standards Chair makes data standards about the matters referred to in both of subparagraphs 8.11(1)(a)(iv) and subparagraph 8.11(1)(c)(vi) before 1 December 2023—the day on which the last of those standards is made;
- (b) 1 December 2023.

Note: This subrule is a civil penalty provision (see rule 9.8).

1.10B Meaning of *eligible*

Note: Sector Schedules may add additional criteria for eligibility. See also:

- for the banking sector and non-bank lenders sector—clause 2.1 of Schedule 3;
- for the energy sector—clause 2.1 of Schedule 4.

- (1) A CDR consumer is ***eligible***, in relation to a particular data holder at a particular time, if, at that time:

- (a) the CDR consumer is either:
 - (i) an individual who is 18 years of age or older; or
 - (ii) a person who is not an individual; and
- (b) the CDR consumer is an account holder or a secondary user for an account with the data holder that is open; and
- (c) any additional criteria set by the relevant sector Schedule for this subrule are met.

- (2) A CDR consumer is also ***eligible***, in relation to a particular data holder at a particular time, if, at that time:

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- (a) the CDR consumer is a partner in a partnership for which there is a partnership account with the data holder; and
- (b) the account is open; and
- (c) any additional criteria set by the relevant sector Schedule for this subrule are met.

1.10C Trusted advisers

- (1) An accredited person or CDR representative may invite a CDR consumer to nominate one or more persons as ***trusted advisers*** of the CDR consumer for the purposes of this rule.
- (2) A trusted adviser must belong to one of the following classes:
 - (a) qualified accountants within the meaning of the *Corporations Act 2001*;
 - (b) persons who are admitted to the legal profession (however described) and hold a current practising certificate under a law of a State or Territory that regulates the legal profession;
 - (c) registered tax agents, BAS agents and tax (financial) advisers within the meaning of the *Tax Agent Services Act 2009*;
 - (d) financial counselling agencies within the meaning of the *Corporations Regulations 2001*;
 - (e) relevant providers within the meaning of the *Corporations Act 2001* other than:
 - (i) provisional relevant providers under section 910A of that Act; and
 - (ii) limited-service time-sharing advisers under section 910A of that Act;
 - (f) mortgage brokers within the meaning of the *National Consumer Credit Protection Act 2009*.
- (3) Where the accredited person or CDR representative has taken reasonable steps to confirm that a person nominated as a trusted adviser was, and remains, a member of a class mentioned in subrule (2), the person is taken to be a member of that class for the purposes of this rule.
- (4) The accredited person or CDR representative must not make:
 - (a) the nomination of a trusted adviser; or
 - (b) the nomination of a particular person as a trusted adviser; or
 - (c) the giving of a TA disclosure consent;a condition for supply of the goods or services requested by the CDR consumer.
- (5) To avoid doubt, paragraphs (4)(a) and (c) do not apply where the only good or service that is requested by the CDR consumer is for CDR data to be collected from a data holder and provided to a trusted adviser.

1.10D Meaning of ***sponsorship arrangement***, ***sponsor*** and ***affiliate***

- (1) A ***sponsorship arrangement*** is a written contract between a person with unrestricted accreditation (the ***sponsor***) and another person (the ***affiliate***), under which:

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- (a) the sponsor agrees to disclose to the affiliate, in response to a consumer data request made by the affiliate in accordance with subrule 5.1B(2), CDR data that it holds as an accredited data recipient; and
- (b) the affiliate undertakes to provide the sponsor with such information and access to its operations as is needed for the sponsor to fulfil its obligations as a sponsor.

Note: A person does not need to have sponsored accreditation to enter into a sponsorship arrangement as an affiliate, but will need it to make the consumer data requests mentioned in paragraph (a)

- (2) A sponsorship arrangement may also provide for the sponsor to:
 - (a) make consumer data requests at the request of the affiliate; or
 - (b) use or disclose CDR data at the request of the affiliate.

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Division 1.4—General provisions relating to data holders and to accredited persons

Subdivision 1.4.1—Preliminary

1.11 Simplified outline of Division

This Division sets out:

- general obligations of data holders which relate to product data requests and consumer data requests; and
- general obligations for data holders and accredited persons to provide CDR consumers with consumer dashboards, which contain information relating to consumer data requests, and allow CDR consumers to manage consents and authorisations, under these rules.

Subdivision 1.4.2—Services for making requests under these rules

1.12 Product data request service

- (1) A data holder must provide an online service that:
 - (a) can be used to make product data requests in relation to data that it holds; and
 - (b) enables requested data to be disclosed in machine-readable form; and
 - (c) conforms with the data standards.

Note 1: See rule 2.3 for the meaning of “product data request”.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

Note 3: For the energy sector, this rule is modified by clause 4.2 of Schedule 4.

- (2) Such a service is a *product data request service*.

1.13 Consumer data request service

- (1) A data holder must provide:
 - (a) an online service that:
 - (i) can be used by eligible CDR consumers to make consumer data requests directly to the data holder; and
 - (ii) allows a request to be made in a manner that is no less timely, efficient and convenient than any of the online services that are ordinarily used by customers of the data holder to deal with it; and
 - (iii) enables requested data to be disclosed in human-readable form; and
 - (iv) sets out any fees for disclosure of voluntary consumer data; and
 - (v) conforms with the data standards; and
 - (b) an online service that:
 - (i) can be used by accredited persons to make consumer data requests, on behalf of eligible CDR consumers, to the data holder; and
 - (ii) enables requested data to be disclosed in machine-readable form; and
 - (iii) conforms with the data standards; and

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- (c) for each eligible CDR consumer that is not an individual—a service that can be used to:
 - (i) nominate one or more individuals 18 years of age or older (*nominated representatives*) who are able to give, amend and withdraw authorisations to disclose CDR data for the purposes of these rules on behalf of the CDR consumer; and
 - (ii) withdraw such a nomination; and
- (d) for each partnership that relates to a partnership account with the data holder—a service that can be used to:
 - (i) nominate one or more individuals 18 years of age or older (*nominated representatives*) who are able to give, amend and withdraw authorisations to disclose CDR data that relate to the partnership accounts of that partnership for the purposes of these rules on behalf of the CDR consumers who are its partners; and
 - (ii) withdraw such a nomination; and
- (e) in relation to each account in relation to which a person has account privileges—a service that can be used by the account holder to:
 - (i) make a secondary user instruction; and
 - (ii) withdraw the instruction.

Note 1: See rule 3.3 for the meaning of “consumer data request” in relation to a request made by a CDR consumer directly to a data holder.

Note 2: See rule 4.4 for the meaning of “consumer data request” in relation to a request made by an accredited person to a data holder on behalf of a CDR consumer.

Note 3: In the circumstances of paragraphs (1)(c) and (d), a person or partnership that does not have a nominated representative will not be able to give or amend authorisations, or use the dashboard to manage authorisations (see subrule 1.15(2A)), and accordingly, the data holder will be neither required nor permitted to disclose the requested CDR data under these rules.

Note 4: To avoid doubt, a service may be offered in an online form even if this subrule does not require it to be an online service.

Note 5: This subrule is a civil penalty provision (see rule 9.8).

- (2) The service referred to in paragraph (1)(a) is the data holder’s *direct request service*.
- (3) The service referred to in paragraph (1)(b) is the data holder’s *accredited person request service*.
- (4) A data holder does not contravene subrule (1) in relation to subparagraph (1)(a)(ii) so long as it takes reasonable steps to ensure that the online service complies with that subparagraph.

Subdivision 1.4.3—Services for managing consumer data requests made by accredited persons

1.14 Consumer dashboard—accredited person

- (1) Subject to subrule (5), an accredited person must provide each eligible CDR consumer on whose behalf the accredited person makes a consumer data request with an online service that:

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- (a) can be used by the CDR consumer to manage:
 - (i) such requests; and
 - (ii) associated consents; and
- (b) contains the details of each consent specified in subrule (3) and the information specified in subrule (3A); and
- (c) allows the CDR consumer, at any time, to withdraw a current consent; and
- (d) as part of the process of withdrawing a consent, displays a message, in accordance with the data standards, about the consequences of proceeding with withdrawing a consent; and
- (e) allows the CDR consumer to elect that redundant data be deleted in accordance with these rules and be able to withdraw such an election; and
- (f) is simple and straightforward to use; and
- (g) is prominently displayed and readily accessible to the CDR consumer.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) Such a service is the accredited person's *consumer dashboard* for that consumer.
- (2A) The consumer dashboard may also allow a CDR consumer to amend a current consent.
- (3) For paragraph (1)(b), the information is the following for each consent:
 - (a) details of the CDR data to which the consent relates;
 - (b) for a use consent—details of the specific use or uses for which the CDR consumer has given their consent;
 - (c) when the CDR consumer gave the consent;
 - (d) whether the consent applies:
 - (i) on a single occasion; or
 - (ii) over a period of time;
 - (e) if a collection consent or disclosure consent applies over a period of time:
 - (i) what that period is; and
 - (ii) how often data has been, and is expected to be, collected or disclosed over that period;
 - (ea) for an insight disclosure consent—a description of the CDR insight and to whom it was disclosed;
 - (eb) if a business consumer statement has been given in relation to the consent—that fact;
 - (f) if the consent is current—when it is scheduled to expire;
 - (g) if the consent is not current—when it expired;
 - (h) information relating to CDR data that was collected or disclosed pursuant to the consent (see rules 7.4 and 7.9);
 - (ha) if the accredited person is an affiliate and the CDR data will be collected by a sponsor at its request:
 - (i) the sponsor's name; and
 - (ii) the sponsor's accreditation number;
 - (i) details of each amendment (if any) that has been made to the consent.

Note 1: For paragraph (f), consents expire at the latest 12 months (or 7 years for certain consents by a CDR business consumer) after they are given or, in some circumstances, amended: see paragraph 4.14(1)(c).

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Note 2: For limits on the specific uses that are possible, see the data minimisation principle (rule 1.8).

Note 3: The consumer dashboard could contain other information too, for example, the written notices referred to in rule 7.15 (which deals with correction requests under privacy safeguard 13, section 56EP of the Act).

- (3A) For paragraph (1)(b), the other information is:
- (a) a statement that the CDR consumer is entitled to request further records in accordance with rule 9.5; and
 - (b) information about how to make such a request.
- (4) An accredited person does not contravene paragraph (1)(f) if the accredited person takes reasonable steps to ensure that the online service complies with that paragraph.

Dashboard in relation to CDR representative

- (5) Where a CDR representative principal makes a consumer data request at the request of a CDR representative, it may arrange for the CDR representative to provide the consumer dashboard on its behalf.

1.15 Consumer dashboard—data holder

- (1) If a data holder receives a consumer data request from an accredited person on behalf of a CDR consumer, the data holder must, in the circumstances specified in a sector Schedule, ensure that it provides the CDR consumer with an online service that:
- (a) can be used by the CDR consumer to manage authorisations to disclose CDR data in response to consumer data requests; and
 - (b) contains the details of each authorisation to disclose CDR data specified in subrule (3); and
 - (ba) contains any information in the data standards that is specified as information for the purposes of this rule; and
 - (bb) contains any information on the Register of Accredited Persons that is specified as information for the purposes of this rule; and
 - (c) allows the CDR consumer, at any time, to withdraw a current authorisation; and
 - (d) as part of the process of withdrawing an authorisation, displays a message, in accordance with the data standards, about the consequences of proceeding with withdrawing an authorisation; and
 - (e) is simple and straightforward to use, and is no more complicated to use than the process for giving the authorisation to disclose CDR data; and
 - (f) is prominently displayed and readily accessible to the CDR consumer; and
 - (g) contains any other details, and does anything else, required by these rules.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The circumstances are specified in the following provisions of the sector Schedules:

- for the banking sector and non-bank lenders sector—clause 2.3 of Schedule 3;
- for the energy sector—clause 2.3 of Schedule 4.

- (2) Such a service is the data holder's **consumer dashboard** for that consumer.

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Division 1.4 General provisions relating to data holders and to accredited persons

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Note: If the consumer data request relates to a joint account, there may be an obligation to provide all joint account holders with consumer dashboards: see rule 4A.13.

- (2A) For subrule (1), the online service must allow only nominated representatives to manage authorisations in the following circumstances:
- (a) where the CDR consumer is not an individual;
 - (b) where the CDR data relates to a partnership account.
- (3) For paragraph (1)(b) and paragraph (5)(a), the information is the following for each authorisation:
- (a) details of the CDR data that has been authorised to be disclosed;
 - (b) when the CDR consumer gave the authorisation;
 - (c) the period for which the CDR consumer gave the authorisation;
 - (d) if the authorisation is current—when it is scheduled to expire;
 - (e) if the authorisation is not current—when it expired;
 - (f) information relating to CDR data that was disclosed pursuant to the authorisation (see rule 7.9);
 - (g) for a disclosure of CDR data that relates to the authorisation but that was pursuant to a request under subsection 56EN(4) of the Act—that fact;
 - (h) details of each amendment (if any) that has been made to the authorisation.

Note 1: For paragraph (d), authorisations to disclose CDR data expire at the latest 12 months after they are given: see paragraph 4.26(1)(e).

Note 2: The consumer dashboard could contain other information too, for example, the written notice referred to in rules 7.10 (which deals with quality of CDR data under privacy safeguard 11, section 56EN of the Act) and 7.15 (which deals with correction requests under privacy safeguard 13, section 56EP of the Act).

- (3A) Paragraph (3)(h) applies on and after 1 July 2024.
- (4) A data holder does not contravene paragraph (1)(e) if the data holder takes reasonable steps to ensure that the online service complies with the paragraph.

Secondary users

- (5) If the CDR consumer is a secondary user for an account, the data holder must also provide the account holder with an online service that:
- (a) for each authorisation to disclose CDR data given by the secondary user—contains the details specified in subrule (3); and
 - (b) allows the account holder, at any time, to withdraw the secondary user instruction; and
 - (c) as part of the process of withdrawing a secondary user instruction, displays a message, in accordance with the data standards, about the consequences of proceeding with withdrawing a secondary user instruction; and
 - (d) is simple and straightforward to use, and is no more complicated to use than the processes for giving the authorisation or instruction; and
 - (e) is prominently displayed and readily accessible to the account holder.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (6) A data holder does not contravene paragraph (5)(d) if the data holder takes reasonable steps to ensure that the online service complies with the paragraph.

- (7) If the data holder provides a consumer dashboard for the account holder, the service mentioned in subrule (5) must be included in the consumer dashboard.

Note: This subrule is a civil penalty provision (see rule 9.8).

Subdivision 1.4.4—Other obligations of accredited persons

1.16 Obligations relating to outsourcing arrangements

OSPs of accredited person

- (1) If an accredited person is the OSP chain principal of one or more direct or indirect OSPs, it must ensure that each direct and indirect OSP complies with its requirements under the relevant CDR outsourcing arrangement.
- (2) The accredited person breaches this subrule if a direct OSP or indirect OSP of the accredited person fails to comply with a required provision of the relevant CDR outsourcing arrangement.

Note: This subrule is a civil penalty provision (see rule 9.8).

OSPs of CDR representative of accredited person

- (3) If an accredited person is the CDR representative principal in a CDR representative arrangement under which it permits the CDR representative to engage direct or indirect OSPs, it must ensure that each such direct and indirect OSP complies with its requirements under the relevant CDR outsourcing arrangement.
- (4) The accredited person breaches this subrule if a direct OSP or indirect OSP of the CDR representative fails to comply with a required provision of the relevant CDR outsourcing arrangement.

Note: This subrule is a civil penalty provision (see rule 9.8).

Accredited person acting as OSP for another accredited person

- (5) If an accredited person collects CDR data on behalf of another accredited person (the **principal**) as a direct or indirect OSP:
- (a) rules 7.4 and 7.9 apply only in relation to the principal; and
 - (b) paragraph 7.10(1)(a) requires the principal to be identified.

Meaning of required provision

- (6) For this rule, a provision of a CDR outsourcing arrangement is a **required provision** if the arrangement would cease to be a CDR outsourcing arrangement under subrule 1.10(3) if the provision were removed.

1.16A Obligations relating to CDR representative arrangements

Compliance with CDR representative arrangement

- (1) If an accredited person is the CDR representative principal in a CDR representative arrangement, it must ensure that the CDR representative complies with its requirements under the arrangement.

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- (2) The accredited person breaches this subrule if the CDR representative:
- (a) fails to comply with a provision required to be included in the CDR representative arrangement by subrule 1.10AA(1), (3) or (4), or takes or omits to take action which would constitute a failure to comply with such a provision even if it is not included in the CDR representative arrangement; or
 - (b) does one of the things referred to in subrule 1.10AA(2) in circumstances where the CDR representative arrangement does not provide for the CDR representative to do that thing.

Note: This subrule is a civil penalty provision (see rule 9.8).

Compliance with Division 4.3A

- (3) The accredited person must ensure that the CDR representative complies with Division 4.3A.
- (4) The accredited person breaches this subrule if the CDR representative fails to comply with a provision of Division 4.3A.

Note: This subrule is a civil penalty provision (see rule 9.8).

Subdivision 1.4.5—Deletion and de-identification of CDR data

1.17 CDR data de-identification process

- (1) This rule sets out the ***CDR data de-identification process*** for particular CDR data (the ***relevant data***).

Note: This process is applied by an accredited data recipient when de-identifying CDR data in accordance with a consent from a CDR consumer (see Subdivision 4.3.3) and when de-identifying redundant data for the purposes of privacy safeguard 12 (see rule 7.12).

- (2) First, the accredited data recipient must consider whether, having regard to the following:
- (a) the DDF;
 - (b) the techniques that are available for de-identification of data;
 - (c) the extent to which it would be technically possible for any person to be once more identifiable, or reasonably identifiable, after de-identification in accordance with such techniques;
 - (d) the likelihood (if any) of any person once more becoming so identifiable, or reasonably identifiable from the data after de-identification;
- it would be possible to de-identify the relevant data to the extent (the ***required extent***) that no person would any longer be identifiable, or reasonably identifiable, from:
- (e) the relevant data after the proposed de-identification; and
 - (f) other information that would be held, following the completion of the de-identification process, by any person.
- (3) If this is possible, the accredited data recipient must:
- (a) determine the technique that is appropriate in the circumstances to de-identify the relevant data to the required extent; and

- (b) apply that technique to de-identify the relevant data to the required extent; and
- (c) delete, in accordance with the CDR data deletion process, any CDR data that must be deleted in order to ensure that no person is any longer identifiable, or reasonably identifiable, from the information referred to in paragraphs (2)(e) and (f); and
- (d) as soon as practicable, make a record to evidence the following:
 - (i) its assessment that it is possible to de-identify the relevant data to the required extent;
 - (ii) that the relevant data was de-identified to that extent;
 - (iii) how the relevant data was de-identified, including records of the technique that was used;
 - (iv) any persons to whom the de-identified data is disclosed.
- (4) If this is not possible, the accredited data recipient must delete the relevant data and any CDR data directly or indirectly derived from it in accordance with the CDR data deletion process.

Note: For the CDR data deletion process, see rule 1.18.

- (5) For this rule, the **DDF** is *The De-Identification Decision-Making Framework* published by the Office of the Australian Information Commissioner and Data61, as in force from time to time.

Note: The De-Identification Decision-Making Framework could in 2023 be downloaded from Data61's website (<https://www.data61.csiro.au/>).

1.17A Identification of otherwise redundant data that is not to be deleted

- (1) Where the accredited data recipient has identified CDR data as redundant, it must identify whether any of the following provisions of the Act apply to the CDR data:
 - (a) paragraphs 56BAA(2)(a), (b) or (c) of the Act (deletion request by consumer);
 - (b) paragraphs 56EO(2)(b) or (c) of the Act (privacy safeguard 12).
- (2) Where one of those provisions applies, the accredited person must retain the CDR data while that provision applies.
- (3) For the purposes of paragraph 56BAA(2)(c) of the Act, in relation to CDR data of a CDR consumer, the person may:
 - (a) request the CDR consumer to state whether or not proceedings of the kind mentioned in that paragraph are current or anticipated; and
 - (b) rely on that statement.

1.18 CDR data deletion process

For these rules, the **CDR data deletion process** in relation to a person that holds CDR data that is to be deleted consists of the following steps:

- (a) delete, to the extent reasonably practicable, that CDR data and any copies of that CDR data;
- (b) make a record to evidence the deletion; and

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- (c) where another person holds the CDR data on its behalf and will perform those steps—direct that person to notify it when those steps have been performed.

Note: The CDR data deletion process is to be followed whenever these rules require a person to delete CDR data.

Division 1.5—Application of rules in relation to SR data

Note: The effect of this Division is that, from the point of view of a CDR consumer or an accredited person, the primary data holder for SR data is treated as if it were the relevant data holder: consumer data requests for the SR data are made to it; authorisations for disclosure are made to it; it is the entity that discloses or refuses to disclose the requested data; any complaints are made to it; it keeps the records that the CDR consumer can request under rule 9.5.

1.19 Eligible CDR consumers in relation to secondary data holders

If a CDR consumer is eligible to make or initiate a consumer data request to a primary data holder for SR data, the CDR consumer is not also eligible to make or initiate a consumer data request for that data to the secondary data holder.

Note: As a result of this rule, a secondary data holder that only holds SR data is not required to provide request services under rule 1.13; however, it will be required to provide a service under subrule 1.20(2).

1.20 Consumer data request service—primary data holders and secondary data holders

Primary data holders

- (1) Rule 1.13 (consumer data request service) applies in relation to a data holder for CDR data as if it were also a data holder for any SR data for which it is the primary data holder.

Secondary data holders

- (2) A secondary data holder in relation to SR data must provide an online service that:
 - (a) can be used by the primary data holder to request from the secondary data holder any SR data needed to respond to an SR data request; and
 - (b) enables the requested data to be disclosed to the primary data holder in machine-readable form; and
 - (c) conforms with the data standards.

Note: This subrule is a civil penalty provision (see rule 9.8).

1.21 Consumer dashboard—SR data request

Rule 1.15 (provision of dashboard) applies in relation to an SR data request as if the primary data holder were the data holder for the requested SR data.

1.22 SR data request by a CDR consumer

Note: This rule relates to Division 3.2.

- (1) This rule applies where a CDR consumer proposes to make an SR data request.
- (2) The request must be made to the primary data holder, using the primary data holder's direct request service.

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Dealing with the request

- (3) The primary data holder must, using the service mentioned in subrule 1.20(2) in accordance with the data standards, request the secondary data holder to disclose any SR data that the primary data holder needs in order to respond to the SR data request.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (4) If the secondary data holder chooses to disclose the SR data requested to the primary data holder, it must do so in accordance with any relevant data standards.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (5) If the secondary data holder chooses not to disclose the SR data requested to the primary data holder, it must notify the primary data holder of its refusal.

Note: This subrule is a civil penalty provision (see rule 9.8).

Responding to the request

- (6) Rule 3.4 (disclosing consumer data in response to a consumer data request) and rule 3.5 (refusal to disclose) apply as if the primary data holder were the data holder for any SR data covered by the SR data request.

- (7) Subrule 3.4(3) does not apply in relation to SR data that the secondary data holder has refused to disclose to the primary data holder.

1.23 SR data request by an accredited person

Note: This rule relates to Subdivisions 4.2.2, 4.2.3 and 4.3.2 and Division 4.4.

- (1) This rule applies where an accredited person proposes to make an SR data request on behalf of a CDR consumer.

Making the request

- (2) The request must be made to the primary data holder, using the primary data holder's accredited person request service.

Dealing with the request

- (3) Rule 4.5 (asking CDR consumer for authorisation to disclose CDR data) applies as if the primary data holder were the data holder for any SR data covered by the SR data request.

- (4) If the CDR consumer authorises disclosure of requested data, the primary data holder must, using the service mentioned in subrule 1.20(2) and in accordance with the data standards, request the secondary data holder to disclose any SR data that the primary data holder needs in order to respond to the SR data request.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (5) If the secondary data holder chooses to disclose the SR data requested to the primary data holder, it must do so in accordance with any relevant data standards.

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Note: This subrule is a civil penalty provision (see rule 9.8).

- (6) If the secondary data holder chooses not to disclose the SR data requested to the primary data holder, it must notify the primary data holder of its refusal.

Note: This subrule is a civil penalty provision (see rule 9.8).

Responding to the request

- (7) Subject to subrule (8), rule 4.6 (disclosing consumer data in response to a consumer data request) applies as if the primary data holder were the data holder for any SR data covered by the SR data request.
- (8) Subrule 4.6(4) does not apply in relation to SR data that the secondary data holder has refused to disclose to the primary data holder.
- (9) Rule 4.7 (refusal to disclose) applies as if the primary data holder were the data holder for any SR data covered by the SR data request.

Notification of withdrawal of consent

- (10) Rule 4.13 (withdrawal of consent) applies as if the primary data holder were the data holder for any SR data covered by the SR data request.

Dealing with authorisations

- (11) Division 4.4 (authorisations to disclose CDR data) applies as if:
- (a) a reference to the data holder were a reference to the primary data holder; and
 - (b) the following subrule were added after subrule 4.25(2) (withdrawal of authorisation by CDR consumer):
 - “(3) For subrule (2), giving effect to withdrawal includes cancelling any current requests to the secondary data holder by the primary data holder under subrule 1.23(4).”.

1.24 SR data disclosed to primary data holder not to be used for other purposes

- (1) A primary data holder must not use the service mentioned in subrule 1.20(2) other than to request SR data that it needs to respond to an SR data request.
- (2) Where a secondary data holder provides SR data to a primary data holder in response to such a request:
- (a) the primary data holder must not use or disclose the SR data for a purpose other than responding to the SR data request; and
 - (b) once the primary data holder has responded to the SR data request, it must delete any of the SR data that it holds in accordance with the CDR data deletion process.

Note : See rule 1.18 for the definition of “CDR data deletion process”.

1.25 Dealing with unsolicited SR data

If a primary data holder:

- (a) collects SR data from a secondary data holder:

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- (i) purportedly under these rules; but
- (ii) not as the result of seeking to collect that SR data under these rules;
and
- (b) is not required to retain that SR data by or under an Australian law or a court/tribunal order;

the primary data holder must destroy the SR data as soon as practicable.

Note: This rule is a civil penalty provision (see rule 9.8).

1.26 Dispute resolution—primary data holders and secondary data holders

Where a primary data holder requests relevant information from a secondary data holder in relation to a consumer complaint or dispute with the primary data holder that relates to an SR data request, the secondary data holder must provide the information to the extent that it is reasonable to do so.

Part 2—Product data requests

2.1 Simplified outline of this Part

This Part deals with product data requests. Such requests are made using a data holder's product data request service.

A product data request may be for required product data, voluntary product data, or both.

When requested in accordance with this Part, a data holder:

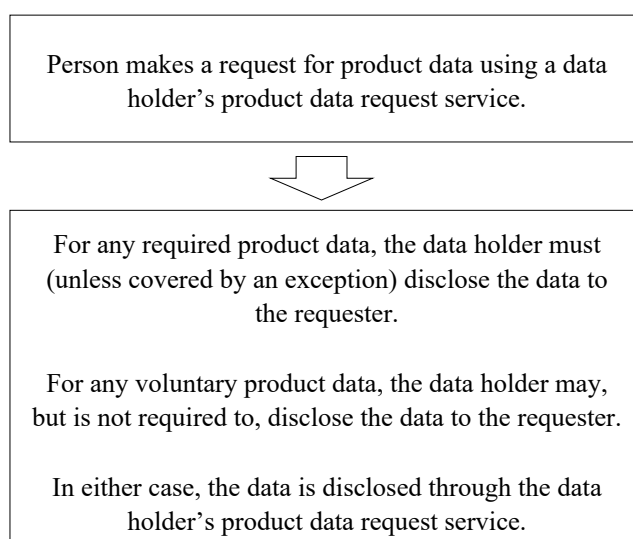
- must, subject to an exception outlined in this Part, disclose required product data; and
- may, but is not required to, disclose voluntary product data.

In either case, the data is disclosed to the person who made the request, in machine-readable form and in accordance with the data standards. A data holder must not impose conditions, restrictions or limitations of any kind on the use of the disclosed data.

A fee cannot be charged for the disclosure of required product data, but could be charged for the disclosure of voluntary product data.

2.2 Making product data requests—flowchart

The following is a flowchart for how product data requests are made:



2.3 Product data requests

- (1) A person may:

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- (a) using the data holder's product data request service; and
- (b) in accordance with the data standards;

request a data holder to disclose some or all of the required product data or voluntary product data that it holds.

Note: In the banking sector and non-bank lenders sector, these rules will progressively permit product data requests to be made to a broader range of data holders, and in relation to a broader range of CDR data, according to the timetable set out in Part 6 of Schedule 3.

In the energy sector, the AER and the Victorian agency are designated data holders for all the relevant product data under the designation instrument.

- (2) Such a request is a **product data request**.

Note: A fee cannot be charged for making a product data request.

2.4 Disclosing product data in response to product data request

- (1) This rule applies if a data holder has received a product data request.

- (2) The data holder may disclose any requested voluntary product data to the requester.

Note: See rule 1.7 for the meaning of "voluntary product data". See also:

- for the banking sector and non-bank lenders sector—clause 3.1 of Schedule 3;
- for the energy sector—clause 3.1 of Schedule 4.

- (2A) If the data holder discloses any requested voluntary product data to the requester, it must do so:

- (a) through its product data request service; and
- (b) in accordance with the data standards.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (3) The data holder must, subject to subrule (4) and rule 2.5:
 - (a) disclose the requested required product data to the requester:
 - (i) through its product data request service; and
 - (ii) in accordance with the data standards; and
 - (b) include in the disclosed data any required product data that is:
 - (i) the subject of the product data request; and
 - (ii) contained:
 - (A) on the data holder's website; or
 - (B) in a disclosure document that relates to the product.

Note 1: See rule 1.7 for the meaning of "required product data". See also:

- for the banking sector and non-bank lenders sector—clause 3.1 of Schedule 3;
- for the energy sector—clause 3.1 of Schedule 4.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

Note 3: A fee cannot be charged for the disclosure of required product data: see section 56BU of the Act.

- (4) If:
 - (a) a data holder (the **first data holder**) receives a request for CDR data that relates to a product (the **relevant product**); and

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- (b) the first data holder offers the relevant product on behalf of another data holder (the ***second data holder***), such that the second data holder is the data holder that enters into contracts with consumers to provide the relevant product;

the first data holder is not required to disclose the requested required product data under subrule (3).

(5) If:

- (a) the second data holder receives such a request; and
- (b) the data holders have agreed in writing that, in such a case, the first data holder will disclose the requested required product data;

then:

- (c) subrule (3) applies as if:
 - (i) it permitted the CDR data to be disclosed through the first data holder's product data request service; and
 - (ii) in the case that the first data holder disclosed CDR data in response to the request—the reference to the data holder's website in sub-subparagraph (3)(b)(ii)(A) was to the first data holder's website; and
- (d) rule 2.6 applies as if it applied in relation to each of the first data holder and the second data holder.

(6) In this rule, ***disclosure document*** includes:

- (a) a Product Disclosure Statement within the meaning of the *Corporations Act 2001*; or
- (b) a key facts sheet within the meaning of the *National Consumer Credit Protection Act 2009*; or
- (c) a similar document that is required by law to be disclosed to a customer prior to entering into a contract with that customer.

2.5 Refusal to disclose required product data in response to product data request

- (1) Despite subrule 2.4(3), the data holder may refuse to disclose required product data in response to the request in circumstances (if any) set out in the data standards.
- (2) The data holder must inform the requester of such a refusal in accordance with the data standards.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

2.6 Use of data disclosed pursuant to product data request

A data holder that discloses CDR data in response to a product data request must not impose conditions, restrictions or limitations of any kind on the use of the disclosed data.

Note: This rule is a civil penalty provision (see rule 9.8).

Part 3—Consumer data requests made by eligible CDR consumers

Division 3.1—Preliminary

3.1 Simplified outline of this Part

This Part deals with consumer data requests that are made directly by eligible CDR consumers to data holders. Such requests are made using the data holder's direct request service.

A request may be for the CDR consumer's required consumer data, their voluntary consumer data, or both.

When validly requested in accordance with this Part, a data holder:

- must, subject to an exception outlined in this Part, disclose required consumer data; and
- may, but is not required to, disclose voluntary consumer data.

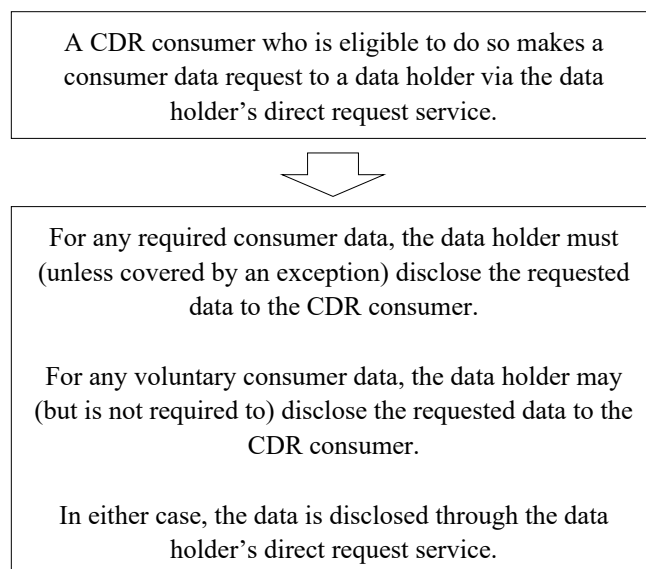
In either case, the data is disclosed to the CDR consumer who made the request, in human-readable form and in accordance with the data standards.

Special rules apply to joint accounts with 2 or more individual joint account holders. These are set out in Part 4A.

A fee cannot be charged for the disclosure of required consumer data, but could be charged for the disclosure of voluntary consumer data.

3.2 How an eligible CDR consumer makes a consumer data request—flowchart

The following is a flowchart for how an eligible CDR consumer makes a consumer data request under this Part:



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Division 3.2—Consumer data requests made by CDR consumers

3.3 Consumer data requests made by CDR consumers

- (1) A CDR consumer may, using the data holder's direct request service, request a data holder to disclose some or all of their CDR data.

- (2) Such a request is a *consumer data request* made by a CDR consumer.

Note: A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.

- (3) A consumer data request made under this Part is *valid* if it is made by a CDR consumer who is eligible to make the request.

3.4 Disclosing consumer data in response to a valid consumer data request

- (1) This rule applies if a data holder has received a request that it reasonably believes to be a valid consumer data request made under this Part, for disclosure of CDR data of which it is the data holder.

- (2) The data holder may disclose any requested voluntary consumer data to the CDR consumer who made the request.

- (3) The data holder must, subject to rule 3.5, disclose any requested required consumer data to the CDR consumer who made the request:

- (a) through its direct request service; and
(b) in accordance with the data standards.

Note 2: For a request that relates to a joint account, see rules 4A.10 and 4A.15 for additional circumstances in which data relating to the joint account might not be disclosed under these rules.

Note 3: This subrule is a civil penalty provision (see rule 9.8).

Note 4: A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.

3.5 Refusal to disclose required consumer data in response to consumer data request

- (1) Despite subrule 3.4(3), the data holder may refuse to disclose required consumer data in response to the request:

- (a) if the data holder considers this to be necessary to prevent physical, psychological or financial harm or abuse; or
(aa) in relation to an account that is blocked or suspended; or
(b) in circumstances (if any) set out in the data standards.

- (2) The data holder must inform the CDR consumer of such a refusal in accordance with the data standards.

Civil penalty:

- (a) for an individual—\$50,000; and
(b) for a body corporate—\$250,000.

Part 4—Consumer data requests made by accredited persons

Division 4.1—Preliminary

4.1 Simplified outline of this Part

This Part deals with consumer data requests that are made to CDR participants by accredited persons on behalf of CDR consumers. Such requests, if made to a data holder, are made using the data holder's accredited person request service.

In order for such a request to be made, the CDR consumer must have first asked the accredited person, or a CDR representative of the accredited person, to provide goods or services to the CDR consumer or to another person, where provision of those goods or services requires the use of the CDR consumer's CDR data.

Before making a consumer data request on behalf of a CDR consumer, the consumer must first have consented to the accredited person collecting specified CDR data, and either using it to provide the requested goods or services, or providing it to the CDR representative for the CDR representative to provide the goods or services.

Subject to certain limitations, the requested data can be any CDR data that relates to the CDR consumer.

Collection, use and disclosure of CDR data under this Part is limited by the data minimisation principle, under which:

- no more data may be collected than is reasonably needed in order to provide the requested goods or services; and
- the collected data may be used or disclosed only as reasonably needed in order to provide the requested goods or services or as otherwise consented to by the CDR consumer.

A request may be for the CDR consumer's required consumer data, their voluntary consumer data, or both. The sector Schedules to these rules:

- provide for what is required consumer data and voluntary consumer data for the particular designated sector; and
- set out the circumstances in which CDR consumers are eligible in relation to a request for their CDR data in that designated sector.

Consumer data requests made to data holders

Subject to exceptions outlined in this Part, if a request is made to a data holder, the data holder:

- must seek the CDR consumer's authorisation to disclose required consumer data; and
- must seek the CDR consumer's authorisation to disclose any voluntary consumer data that it intends to disclose.

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Division 4.1 Preliminary

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The data holder then must disclose, to the accredited person, the required consumer data it is authorised to disclose, and may (but is not required to) disclose the voluntary consumer data it is authorised to disclose. The data is disclosed in machine-readable form and in accordance with the data standards.

Consumer data requests made to accredited data recipients

If a request is made to an accredited data recipient, the accredited data recipient:

- may (but is not required to) seek the CDR consumer's consent to disclose the requested CDR data; and
- once that consent is obtained, may (but is not required to) disclose that CDR data to the accredited person.

Special rules apply to joint accounts with 2 or more individual joint account holders. These are set out in Part 4A.

A fee cannot be charged for the disclosure by a data holder of required consumer data, but could be charged for the disclosure by a data holder of voluntary consumer data, or by an accredited data recipient for disclosure of any CDR data.

Note: Schedule 3 modifies the application of this Part in some respects where a data holder moves from the non-bank lenders sector to the banking sector.

Division 4.2—Consumer data requests made by accredited persons to CDR participants

Subdivision 4.2.1—Preliminary

4.2 Consumer data requests made by accredited persons to CDR participants— flowchart

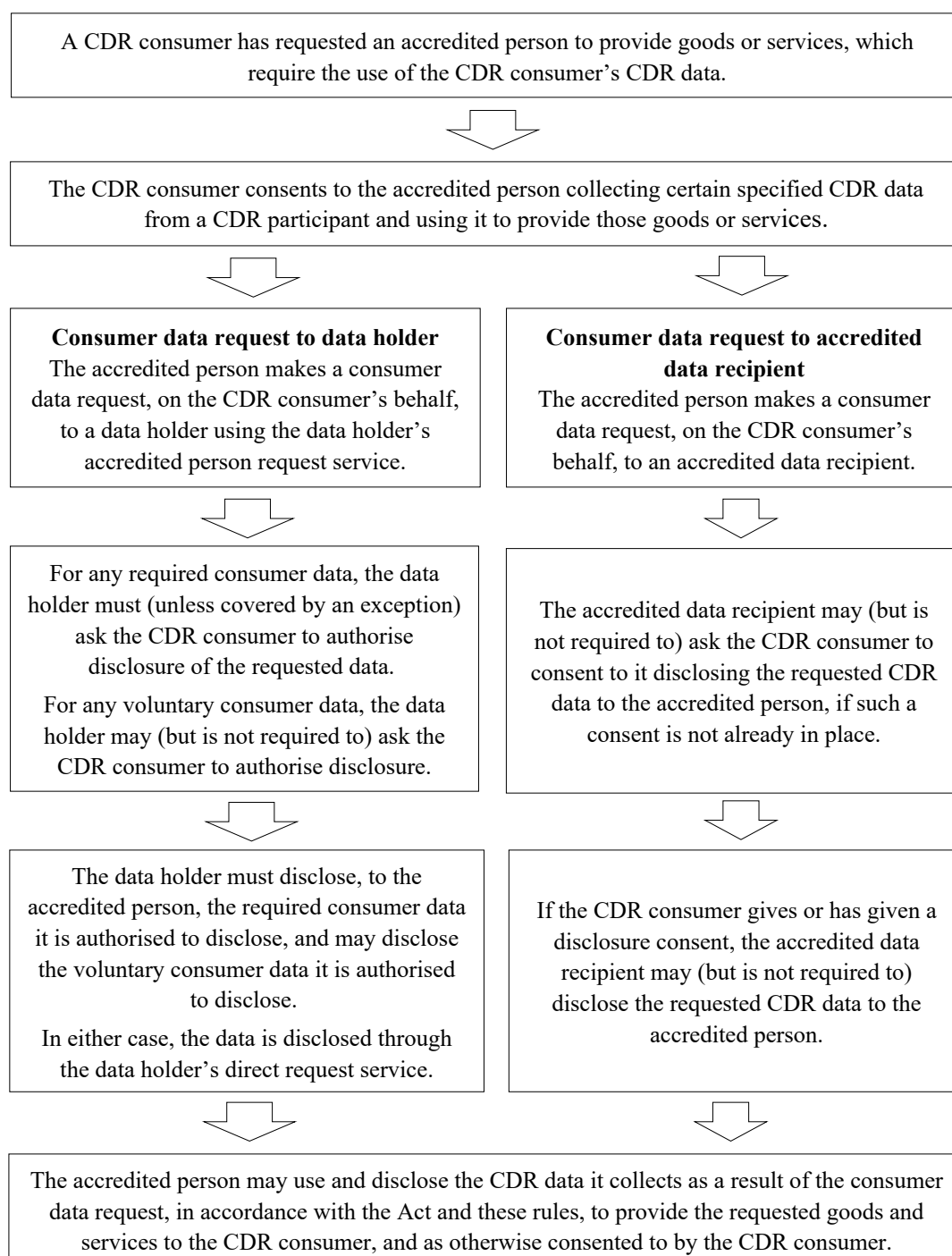
The following is a flowchart for how an accredited person makes a consumer data request to a CDR participant under this Division.

Note 2: An accredited data recipient may ask the CDR consumer for a collection consent, use consent and disclosure consent at the same time (see subrules 4.3(2) and (2A)).

Part 4 Consumer data requests made by accredited persons

Division 4.2 Consumer data requests made by accredited persons to CDR participants

Section 4.3



Subdivision 4.2.2—Requests to seek to collect CDR data from CDR participants

4.3 Request for accredited person to seek to collect CDR data

- (1) This rule applies if:

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- (a) a CDR consumer requests an accredited person to provide goods or services to the CDR consumer or to another person; and
- (b) the accredited person needs to collect the CDR consumer's CDR data from a CDR participant under these rules and use it in order to provide those goods or services.

- (2) The accredited person may, in accordance with Division 4.3, ask the CDR consumer to give:

- (a) a collection consent for the accredited person to collect their CDR data from the CDR participant; and
 - (b) a use consent for the accredited person to use that CDR data;
- in order to provide those goods or services.

Note 1: In order to provide goods or services in accordance with the CDR consumer's request, it might be necessary for the accredited person to request CDR data from more than 1 CDR participant.

Note 2: The CDR may be collected and used only in accordance with the data minimisation principle: see rule 1.8.

- (2A) The accredited person may also ask a CDR consumer to give a disclosure consent in relation to CDR data, either:

- (a) at the same time the accredited person asks the CDR consumer to give a collection consent under subrule (2) in relation to CDR data; or
- (b) after the CDR consumer has given a collection consent requested under subrule (2) in relation to the CDR data whether or not the CDR has yet been collected.

Note 1: Requests for collection consent, use consent and disclosure consent may be bundled together (see subrules 4.3(2) and (2A)).

Note 2: The CDR data may be disclosed only in accordance with the data minimisation principle: see rule 1.8.

- (2B) If the accredited person is an affiliate and the CDR data will be collected by a sponsor at its request:

- (a) the request for a collection consent must specify that fact; and
- (b) a consent for the affiliate to collect the CDR data is taken to be consent for the sponsor to so collect it.

- (3) In giving the consents, the CDR consumer gives the accredited person a **valid** request to seek to collect that CDR data from the CDR participant.

Note: If the accredited person seeks to collect CDR data under this Part without a valid request, it will contravene privacy safeguard 3 (a civil penalty provision under the Act): see section 56EF of the Act.

- (4) The request ceases to be **valid** if the collection consent is withdrawn.

Note: So long as the use consent is not also withdrawn, the accredited person could continue to use CDR data it had already collected in order to provide the requested goods or services. However, the notification requirement of rule 4.18A would apply.

- (5) If an accredited person asks for a CDR consumer's consents for the purpose of making a consumer data request under this Part, the accredited person must do so in accordance with Division 4.3.

Note: This subrule is a civil penalty provision (see rule 9.8).

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4.3A Request for CDR representative principal to seek to collect CDR data on behalf of CDR representative

- (1) This rule applies if:
 - (a) a CDR consumer requests a CDR representative to provide goods or services to the CDR consumer or to another person; and
 - (b) the CDR representative needs to:
 - (i) request its CDR representative principal to collect the CDR consumer's CDR data from a CDR participant under these rules; and
 - (ii) use it in order to provide those goods or services.
- (2) The CDR representative may, in accordance with Division 4.3A, ask the CDR consumer to give:
 - (a) a collection consent for the CDR representative principal to collect the CDR consumer's CDR data from the CDR participant and disclose it to the CDR representative; and
 - (b) a use consent for the CDR representative to use it in order to provide those goods or services.

Note 1: For a collection consent mentioned in paragraph (a), see subrule 1.10A(8).

For consents mentioned in paragraph (b), see rule 1.10A as applied to a CDR representative under subrule 1.10A(5).

Note 2: In order to provide goods or services in accordance with the CDR consumer's request, it might be necessary for the CDR representative principal to request CDR data from more than 1 CDR participant.

Note 3: The CDR data may be collected and used only in accordance with the data minimisation principle: see rule 1.8.

- (3) The CDR representative may also ask a CDR consumer to give a disclosure consent in relation to CDR data, either:
 - (a) at the same time the CDR representative asks the CDR consumer to give a collection consent under subrule (2) in relation to the CDR data; or
 - (b) after the CDR consumer has given a collection consent requested under subrule (2) in relation to the CDR data whether or not the CDR data has yet been collected.

Note 1: Requests for collection consent, use consent and disclosure consent may be bundled together (see subrules 4.3A(2) and (3)).

Note 2: The CDR data may be disclosed only in accordance with the data minimisation principle: see rule 1.8.

- (4) In giving the consents, the CDR consumer gives the CDR representative principal a **valid** request to seek to collect that CDR data from the CDR participant.

Note: If an accredited person seeks to collect CDR data under this Part without a valid request, it will contravene privacy safeguard 3 (a civil penalty provision under the Act): see section 56EF of the Act.

- (5) The request ceases to be **valid** if the collection consent is withdrawn.

Note: So long as the use consent is not also withdrawn, the CDR representative principal could continue to disclose CDR data it had already collected to the CDR representative, and the CDR representative could use it in order to provide the requested goods or services. However, the notification requirement of rule 4.20O would apply.

4.3B Consumer data requests by accredited persons to CDR representatives

Note: Subrule (1) allows an accredited person to make a consumer data request to a CDR representative as if the latter were also an accredited person.

Subrule (2) allows a CDR representative that receives such a consumer data request to obtain a disclosure consent from the consumer. Under paragraphs 7.5(1)(i) and (j), the CDR representative is then able to disclose the requested data.

Application of rule 4.7A to CDR representative holding service data

- (1) Rule 4.7A applies in relation to a CDR representative that holds service data as if:
- (a) a reference to CDR data were a reference to CDR data included in the service data; and
 - (b) a reference to an accredited data recipient were a reference to the CDR representative.

Application of rule 4.7B to CDR representative receiving request for service data

- (2) Rule 4.7B applies in relation to a CDR representative that receives, or reasonably anticipates receiving, a consumer data request under rule 4.7A as applied by subrule (1), as if:
- (a) a reference to an accredited data recipient were a reference to the CDR representative; and
 - (b) a reference to Division 4.3 were a reference to Division 4.3A.

Subdivision 4.2.3—Consumer data requests by accredited persons to data holders

4.4 Consumer data request by accredited person to data holder

- (1) If:
- (a) a CDR consumer has given an accredited person a request under rule 4.3 or 4.3A to seek to collect CDR data from a data holder; and
 - (b) the request is valid;
- the accredited person may request the data holder to disclose, to the accredited person, some or all of the CDR data that:
- (c) is the subject of the relevant collection consent, use consent and disclosure consent; and
 - (d) can be collected, used and disclosed in compliance with the data minimisation principle.

Note: See rule 1.8 for the definition of the “data minimisation principle”.

- (2) Such a request is a **consumer data request** by an accredited person to a data holder on behalf of a CDR consumer.

Note 1: An accredited person might need to make consumer data requests to several CDR participants in order to provide the goods or services requested by the CDR consumer, and might need to make regular consumer data requests over a period of time in order to provide those goods or services.

Note 2: These rules will progressively permit consumer data requests to be made in relation to CDR data held by a broader range of data holders within the banking sector and

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non-bank lenders sector, and in relation to a broader range of CDR data, according to the timetable set out in Part 6 of Schedule 3.

- (3) An accredited person must, if it makes a consumer data request under this Subdivision, make the request:
- (a) using the data holder's accredited person request service; and
 - (b) in accordance with the data standards.

Note 1: A data holder cannot charge an accredited person a fee for making a consumer data request in relation to required consumer data.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

4.5 Data holder must ask eligible CDR consumer to authorise disclosure

- (1) This rule applies if:
- (a) a data holder receives a consumer data request under rule 4.4; and
 - (b) there is no current authorisation for the data holder to disclose the requested data to the person who made the request; and
 - (c) the data holder reasonably believes that the request was made by an accredited person on behalf of an eligible CDR consumer.

Note: See rule 1.7 for the meaning of "eligible". See also:

- for the banking sector and non-bank lenders sector—clause 2.1 of Schedule 3;
- for the energy sector—clause 2.1 of Schedule 4.

- (2) If the data holder is considering disclosing any of the requested voluntary consumer data, the data holder must ask the CDR consumer on whose behalf the request was made to authorise the disclosure:
- (a) in accordance with Division 4.4; and
 - (b) in accordance with the data standards.

Note 1: See rule 1.7 for the meaning of "voluntary consumer data". See also:

- for the banking sector and non-bank lenders sector—clause 3.2 of Schedule 3;
- for the energy sector—clause 3.2 of Schedule 4.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (3) The data holder must, subject to rule 4.7, ask the CDR consumer on whose behalf the request was made to authorise the disclosure of any requested required consumer data:
- (a) in accordance with Division 4.4; and
 - (b) in accordance with the data standards.

Note 1: See rule 1.7 for the meaning of "required consumer data". See also:

- for the banking sector and non-bank lenders sector—clause 3.2 of Schedule 3;
- for the energy sector—clause 3.2 of Schedule 4.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

4.6 Disclosing consumer data in response to a consumer data request

- (1) This rule applies if:
- (a) a data holder has received a consumer data request made under rule 4.4 for disclosure of CDR data; and

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(b) the CDR consumer on whose behalf the request was made has given the data holder a current authorisation to disclose some or all of that CDR data.

(2) The data holder may, subject to rule 4.6A, disclose, to the person who made the request, any of the requested voluntary consumer data that it is authorised to disclose.

Note 1: See rule 1.7 for the meaning of “voluntary consumer data”. See also:

- for the banking sector and non-bank lenders sector—clause 3.2 of Schedule 3;
- for the energy sector—clause 3.2 of Schedule 4.

Note 2: For requests that relate to joint accounts, additional requirements need to be met in order for the data holder to be authorised to disclose requested CDR data that relates to the joint account: see Part 4A.

(3) It must do so:

- (a) through its accredited person request service; and
- (b) in accordance with the data standards.

Note: This subrule is a civil penalty provision (see rule 9.8).

(4) The data holder must, subject to rule 4.6A and rule 4.7, disclose, to the person who made the request, the requested required consumer data that it is authorised to disclose:

- (a) through its accredited person request service; and
- (b) in accordance with the data standards.

Note 1: See rule 1.7 for the meaning of “required consumer data”. See also:

- for the banking sector and non-bank lenders sector—clause 3.2 of Schedule 3;
- for the energy sector—clause 3.2 of Schedule 4.

Note 2: For requests that relate to joint accounts, additional requirements need to be met in order for the data holder to be authorised to disclose requested CDR data that relates to the joint account: see Part 4A.

Note 3: A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.

Note 4: Rule 7.4 (which deals with privacy safeguard 5, paragraph 56EH(a) of the Act) requires the accredited person to update its consumer dashboard for the CDR consumer on whose behalf the request was made to indicate the CDR data that was collected.

Note 5: Rule 7.9 (which deals with privacy safeguard 10, paragraph 56EM(1)(a) of the Act) requires the data holder to update its consumer dashboard for the CDR consumer on whose behalf the request was made to indicate the CDR data that was disclosed.

Note 6: This subrule is a civil penalty provision (see rule 9.8).

4.6A Disclosure of CDR data relating to account not permitted if not approved by account holder

Despite subrules 4.6(2) and (4), the data holder must not disclose requested CDR data that relates to a particular account to the person who made the request if:

- (a) both of the following are satisfied:
 - (i) the request was made on behalf of a secondary user of the account;
 - (ii) the account holder has indicated, through their consumer dashboard, that they no longer approve CDR data relating to that account being disclosed to that accredited person in response to consumer data requests made by that secondary user; or

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- (b) a provision of these rules provides that the requested CDR data must not be disclosed.

Note: For paragraph (b)—for example, see subrules 4A.10(5) and (6) in relation to joint accounts.

4.7 Refusal to disclose required consumer data in response to consumer data request

- (1) Despite subrules 4.5(3), 4.6(4) and 4.22A(1), a data holder may refuse to ask for an authorisation in relation to the relevant CDR data, to invite a CDR consumer to amend the authorisation, or to disclose required consumer data in response to the request:
 - (a) if the data holder considers this to be necessary to prevent physical, psychological or financial harm or abuse; or
 - (b) if the data holder has reasonable grounds to believe that disclosure of some or all of that data would adversely impact the security, integrity or stability of:
 - (i) the Register of Accredited Persons; or
 - (ii) the data holder's information and communication technology systems;or
 - (c) in relation to an account that is blocked or suspended; or
 - (d) in circumstances (if any) set out in the data standards; or
 - (e) if the disclosure of some or all of that CDR data would not be permitted because of another provision of these rules.
- (3) The data holder must inform the accredited person of such a refusal in accordance with the data standards.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Subdivision 4.2.4—Consumer data requests by accredited persons to accredited data recipients

4.7A Consumer data request by accredited person to accredited data recipient

- (1) If:
 - (a) a CDR consumer has given an accredited person a request under rule 4.3 or 4.3A to seek to collect CDR data from an accredited data recipient; and
 - (b) the request is valid;the accredited person may request the accredited data recipient to disclose, to the accredited person, some or all of the CDR data that:
 - (c) is the subject of the relevant collection consent, use consent and disclosure consent; and
 - (d) can be collected, used and disclosed in compliance with the data minimisation principle.

Note: See rule 1.8 for the definition of the “data minimisation principle”.

- (2) Such a request is a **consumer data request** by an accredited person to an accredited data recipient on behalf of a CDR consumer.

Note: An accredited person might need to make consumer data requests to several CDR participants in order to provide the goods or services requested by the CDR consumer, and might need to make regular consumer data requests over a period of time in order to provide those goods or services.

4.7B Accredited data recipient may ask eligible CDR consumer for AP disclosure consent

- (1) This rule applies if:
- (a) an accredited data recipient receives, or reasonably anticipates receiving, a consumer data request under rule 4.7A; and
 - (b) there is no current AP disclosure consent for the accredited data recipient to disclose the requested data to the person who made the request; and
 - (c) the accredited data recipient reasonably believes that the request was or will be made by an accredited person on behalf of an eligible CDR consumer.

Note: See rule 1.7 for the meaning of “eligible”. See also:

- for the banking sector and non-bank lenders sector—clause 2.1 of Schedule 3;
- for the energy sector—clause 2.1 of Schedule 4.

- (2) The accredited data recipient may, in accordance with Division 4.3, ask the CDR consumer for such an AP disclosure consent.

Note: If the CDR consumer consents to the disclosure, the accredited data recipient is authorised (but not required) to disclose the requested CDR data to the accredited person: see paragraph 7.5(1)(h) and rules 7.6, 7.7 and 7.8.

- (3) If an accredited data recipient asks for an AP disclosure consent for the purposes of subrule (2), it must do so in accordance with Division 4.3.

Note: This subrule is a civil penalty provision (see rule 9.8).

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Division 4.3—Giving and amending consents—accredited persons

Subdivision 4.3.1—Preliminary

4.8 Purpose of Division

This Division deals with:

- (a) giving collection consents, use consents and disclosure consents to accredited persons; and
- (b) amending such consents; and
- (c) related matters.

Note: This Division does not cover collection consents for accredited persons to collect CDR data on behalf of CDR representatives; since those consents are given to the CDR representatives, they are covered by Division 4.3A.

4.9 Object

The object of this Division is to ensure that a consent is:

- (a) voluntary; and
- (b) express; and
- (c) informed; and
- (d) specific as to purpose; and
- (e) time limited; and
- (f) easily withdrawn.

Subdivision 4.3.2—Giving consents

Note: Under rule 4.3, if an accredited person asks a CDR consumer for their consent to collect and use their CDR data, it must do so in accordance with this Division, and in particular, rules 4.10, 4.11 and 4.12. A failure to do so could contravene one or more civil penalty provisions: see section 56EF of the Act and rule 4.3.

4.10 Requirements relating to seeking consent

A request by an accredited person for a CDR consumer to give or amend a consent:

- (a) must comply with any relevant data standards; and
- (b) having regard to any consumer experience guidelines made by the Data Standards Body—must be reasonably easy to understand, including by use of plain concise language and, where appropriate, visual aids; and
- (c) must *not* include or refer to the accredited person's CDR policy or other documents in a way that reduces understandability; and
- (d) must *not* be combined with other requests except for a consent under these rules (other than a request for direct marketing or de-identification consent).

4.11 Asking CDR consumer to give consent

- (1) When asking a CDR consumer to give a consent, an accredited person must:
 - (a) in the case of a collection consent or a disclosure consent—either:

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- (i) allow the CDR consumer to actively select or otherwise clearly indicate the particular types of CDR data to which the consent will apply; or
 - (ii) seek the CDR consumer's agreement to the particular types of CDR data (as presented to the CDR consumer) to which the consent will apply; and
- (aa) in the case of a use consent—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the specific uses of collected data to which the consent will apply; or
 - (ii) seek the CDR consumer's agreement to the specific uses of collected data (as presented to the CDR consumer) to which the consent will apply; and
- (b) in relation to the period of the collection consent, use consent, or disclosure consent (as appropriate)—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the period of consent; or
 - (ii) seek the CDR consumer's agreement to the period of consent (as presented to the CDR consumer) to which the consent will apply;where the period of consent is either:
 - (iii) a single occasion; or
 - (iv) a specified period of time; and
- (ba) in the case of a disclosure consent—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the persons to whom the CDR data may be disclosed; or
 - (ii) seek the CDR consumer's agreement to the persons (as presented to the CDR consumer) to whom the CDR data may be disclosed; and
- (bb) where the accredited person proposes, or is offering, to deal with a person in their capacity as a CDR business consumer in relation to a consent of a kind mentioned in paragraph 1.10A(10)(a)—invite the CDR business consumer to provide the business consumer statement; and
- (c) seek the CDR consumer's express consent to the matters referred to in paragraphs (a), (aa), (b) and (ba) for each relevant category of consents; and
- (d) if the accredited person intends to charge a fee for disclosure of CDR data, or pass on to the CDR consumer a fee charged by a data holder or accredited data recipient for disclosure of CDR data—clearly distinguish between the CDR data for which a fee will, and will not, be charged or passed on, and either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate whether they consent to the collection or disclosure, as appropriate, of the CDR data for which a fee will be charged or passed on; or
 - (ii) seek the CDR consumer's agreement to the collection or disclosure, as appropriate, of the CDR data for which a fee will be charged or passed on (as presented to the CDR consumer); and
- (e) allow the CDR consumer to make an election in relation to deletion of redundant data in accordance with rule 4.16.

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- Note 1: An accredited person cannot infer consent, or seek to rely on an implied consent.
- Note 2: For paragraph (b), the specified period may not be more than 12 months (or 7 years for certain consents by a CDR business consumer): see subrule 4.12(1). After the end of the period, redundant data would need to be dealt with in accordance with subsection 56EO(2) of the Act (privacy safeguard 12) and rules 7.12 and 7.13.
- Note 3: For paragraph (d), a data holder could charge a fee for disclosure of voluntary consumer data, while an accredited data recipient could charge a fee for the disclosure of any CDR data.

- (2) The accredited person must not request direct marketing consents or de-identification consents by means of pre-selected options for the purposes of subrule (1).

Information presented to CDR consumer when asking for consent

- (3) When asking a CDR consumer to give consent, the accredited person must give the CDR consumer the following information:
- (a) its name;
 - (b) its accreditation number;
 - (c) in the case of a collection consent, use consent or disclosure consent—information about how the collection, use or disclosure indicated in a manner consistent with the requirements set out in subrule (1) complies with the data minimisation principle, including:
 - (i) in the case of a collection consent in relation to the provision of requested goods or services—an explanation of why that collection is reasonably needed, and relates to a time period that is no longer than is reasonably needed; and
 - (ii) in the case of a use consent or disclosure consent—an explanation of why that use or disclosure does *not* go beyond what is reasonably needed;in order to provide the requested goods or services to the CDR consumer, or to effect the permitted uses or disclosures consented to;
 - (ca) in the case of an insight disclosure consent—an explanation of the CDR insight that will make clear to the CDR consumer what the CDR insight would reveal or describe;
 - (d) if the accredited person intends passing a fee on, or charging a fee, to the CDR consumer as described in paragraph (1)(d)—the following information:
 - (i) the amount of the fee;
 - (ii) the consequences if the CDR consumer does not consent to the collection, or to the disclosure, of that data;
 - (da) if the accredited person is seeking a direct marketing consent—information about how the CDR data may be used or disclosed in accordance with the consent;
 - (e) if the accredited person is seeking a de-identification consent—the additional information specified in rule 4.15;
 - (f) if the CDR data may be disclosed to, or collected by, a direct or indirect OSP (including one that is based overseas) of the accredited person:
 - (i) a statement of that fact; and
 - (ii) the name of the OSP; and

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- (iii) the OSP's accreditation number (if any); and
- (iv) if the OSP is based overseas—the country in which it is based; and
- (v) a link to a webpage where the accredited person's CDR policy and the OSP's CDR policy (if any) can be directly viewed; and
- (vi) a statement detailing why the OSP needs to access the consumer's CDR data; and
- (vii) a statement that the consumer can obtain further information about why the OSP needs to access the consumer's CDR data from the policy if desired;
- (g) a statement that, at any time, the consent can be withdrawn;
- (h) the following information about redundant data:
 - (i) a statement, in accordance with rule 4.17, regarding the accredited person's intended treatment of redundant data;
 - (ii) a statement outlining the CDR consumer's right to elect that their redundant data be deleted;
 - (iii) instructions for how the election can be made;
- (i) if the accredited person is an affiliate and the CDR data will be collected by a sponsor at its request:
 - (i) a statement of that fact; and
 - (ii) the sponsor's name; and
 - (iii) the sponsor's accreditation number; and
 - (iv) if the sponsor is based overseas—the country in which it is based; and
 - (v) a link to a webpage where the sponsor's CDR policy can be directly viewed; and
 - (vi) a statement detailing why the sponsor needs to access the consumer's CDR data; and
 - (vii) a statement that the CDR consumer can obtain further information about collections or disclosures of CDR data from the sponsor's CDR policy if desired.

Note 1: For paragraph (c), if the accredited person is seeking the CDR consumer's consent to de-identification as referred to in paragraph (e), the accredited person would need to indicate how that would comply with the data minimisation principle.

Note 2: For paragraph (da), the uses or disclosures that are permitted under a direct marketing consent may be limited under another part of these rules (see subrule 7.5(3)).

4.12 Restrictions on seeking consent

- (1) Subject to subrule (1A), an accredited person must not specify a period of time for the purposes of paragraph 4.11(1)(b) that is more than 12 months.
- (1A) In the case of a consent given by a CDR business consumer that includes a business consumer statement, an accredited person must:
 - (a) not specify a period of time that is more than 7 years; and
 - (b) if specifying a period of time of more than 12 months, give the CDR business consumer the option of choosing a period for the consent of 12 months or less.

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- (2) An accredited person must *not* ask for a collection consent, use consent or disclosure consent unless the collection, use or disclosure of CDR data in accordance with the consent would comply with the data minimisation principle.

Note: See rule 1.8 for the definition of “data minimisation principle”.

- (3) An accredited person must not ask for a consent:
- (a) that is not in a category of consents; or
 - (b) subject to subrule (4), for using the CDR data, including by aggregating the data, for the purpose of:
 - (i) identifying; or
 - (ii) compiling insights in relation to; or
 - (iii) building a profile in relation to;any identifiable person who is not the CDR consumer who made the consumer data request.
- (4) Paragraph (3)(b) does not apply in relation to a person whose identity is readily apparent from the CDR data, if the accredited person is seeking consent to:
- (a) derive, from that CDR data, CDR data about that person’s interactions with the CDR consumer; and
 - (b) use that derived CDR data in order to provide the requested goods or services.

Subdivision 4.3.2A—Amending consents

4.12A Amendment of consent

An amendment of a consent takes effect when the CDR consumer amends the consent.

Note: It is not possible for the CDR consumer to specify a different day or time.

4.12B Inviting CDR consumer to amend consent

- (1) An accredited person may invite a CDR consumer to amend a consent given in accordance with this Division only in accordance with this rule.
- (2) The accredited person may give the invitation:
- (a) if its consumer dashboard allows a consent amendment in accordance with subrule 1.14(2A)—via its consumer dashboard; or
 - (b) in writing directly to the CDR consumer.
- (3) The accredited person may invite a CDR consumer to amend a current consent if:
- (a) the amendment would better enable the accredited person to provide the goods or services referred to in paragraph 4.3(1)(a); or
 - (b) the amendment would:
 - (i) be consequential to an agreement between the accredited person and the CDR consumer to modify those goods or services; and
 - (ii) enable the accredited person to provide the modified goods or services.

-
- (4) The accredited person must not, for an invitation to amend the period referred to in paragraph 4.11(1)(b):
- (a) give the invitation any earlier than a reasonable period before the current consent is expected to expire; or
 - (b) give more than a reasonable number of such invitations within this period.

4.12C Process for amending consents

- (1) Subject to this rule, if an accredited person allows CDR consumers to amend consents, it must allow them to do so in the same manner that it asks for CDR consumers to give consents.

Example: If an accredited person asks a CDR consumer who gave a consent as a CDR business consumer to amend a consent of a kind mentioned in paragraph 1.10A(10)(a), the accredited person must invite the CDR consumer to provide a further business consumer statement: see paragraph 4.11(1)(bb).

- (3) In the case of an amendment to a consent, in addition to the information referred to in subrule 4.11(3), the accredited person must give the CDR consumer:
- (a) a statement that indicates the consequences of amending a consent; and
 - (b) a statement that the accredited person will be able to continue to use any CDR data that has already been disclosed to it to the extent allowed by the amended consent.
- (4) If the CDR consumer gave the consent as a CDR business consumer, the accredited person must take reasonable steps to re-confirm that:
- (a) the CDR consumer is not an individual; or
 - (b) the CDR consumer has an active ABN.

Note: See subrule 1.10A(9).

Subdivision 4.3.2B—Withdrawing consents

4.13 Withdrawal of consents

- (1) A CDR consumer who has given a consent to an accredited person for the purposes of this Division may withdraw the consent at any time:
- (a) by using the accredited person's consumer dashboard; or
 - (b) by using a simple alternative method of communication to be made available by the accredited person for that purpose.
- (2) If the consent is withdrawn under paragraph (1)(b), the accredited person must give effect to the withdrawal as soon as practicable, and in any case within 2 business days after receiving the communication.
- Note: This subrule is a civil penalty provision (see rule 9.8).
- (3) Withdrawal of a consent does not affect an election under rule 4.16 that the CDR consumer's collected CDR data be deleted once it becomes redundant.

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Subdivision 4.3.2C—Duration of consent

4.14 Duration of consent

- (1) A consent given under this Division expires at the earliest of the following:
- (a) if the consent is withdrawn in accordance with paragraph 4.13(1)(b)—the earlier of the following:
 - (i) when the accredited person gave effect to the withdrawal;
 - (ii) 2 business days after the accredited person received the communication;
 - (b) if the consent is withdrawn in accordance with paragraph 4.13(1)(a)—when the consent was withdrawn;
 - (c) the end of the period referred to in subrule (2) after the later of the following:
 - (i) the day the consent was given; or
 - (ii) if the period of the consent has been amended in accordance with this Division—the day the consent was last amended;
 - (d) at the end of the period the CDR consumer consented to in accordance with rule 4.11;
 - (e) if the consent expires as a result of the operation of another provision of these rules that references this paragraph—when the consent expires.

Note: Subrule 5.1B(6) is an example of a provision referencing paragraph (e). This relates to when a person with sponsored accreditation ceases to have a registered sponsor.

- (2) For paragraph (1)(c), the period is:
- (a) in the case of a consent given by a CDR business consumer that includes a business consumer statement—7 years; and
 - (b) in any other case—12 months.

- (3) If:
- (a) an accredited person is notified by a data holder, under rule 4.26A, of the withdrawal of an authorisation to disclose CDR data that relates to a collection consent given under this Division; and
 - (b) the collection consent has not expired in accordance with subrule (1);
- the collection consent expires when the accredited person receives that notification.

Note: This would not result in the use consent relating to any CDR data that had already been collected expiring. However, see the notification requirement of rule 4.18A.

- (4) If:
- (a) an accredited person has a collection consent given under this Division to collect particular CDR data from a particular accredited data recipient; and
 - (b) the accredited data recipient has an AP disclosure consent to disclose that CDR data to that accredited person;
- then if one of those consents expires, the other expires when the accredited person or accredited data recipient is notified of the first-mentioned expiry.

Note: The notification is required by rule 4.18B.

- (5) If an accredited person becomes a data holder, rather than an accredited data recipient, of particular CDR data as a result of subsection 56AJ(4) of the Act, all of that accredited person's consents given under this Division that relate to that CDR data expire.
- (6) If an accredited person's accreditation is revoked or surrendered in accordance with rule 5.17, all of the accredited person's consents expire when the revocation or surrender takes effect.

Subdivision 4.3.3—Information relating to de-identification of CDR data

4.15 Additional information relating to de-identification of CDR data

For paragraph 4.11(3)(e), the additional information the accredited person must give the CDR consumer when seeking a de-identification consent is the following:

- (a) what the CDR data de-identification process is;
- (b) if it would disclose (by sale or otherwise) the de-identified data to one or more other persons;
 - (i) that fact; and
 - (ii) the classes of persons to which it would disclose that data;
 - (iii) why it would so disclose that data;
- (c) if the accredited person would use the de-identified data for general research—that fact, together with a link to a description in the accredited person's CDR policy of:
 - (i) the research to be conducted; and
 - (ii) any additional benefit to be provided to the CDR consumer for consenting to the use;
- (e) that the CDR consumer would not be able to elect, in accordance with rule 4.16, to have the de-identified data deleted once it becomes redundant data.

Subdivision 4.3.4—Election to delete redundant data

4.16 Election to delete redundant data

- (1) A CDR consumer who has given a consent relating to particular CDR data may:
 - (a) when giving the consent; or
 - (b) at any other time before the consent expires;elect that the collected data, and any CDR data directly or indirectly derived from it, be deleted when it becomes redundant data.

Note 1: See rules 7.12 and 7.13 for the effect of an election.

Note 2: CDR data might become redundant data even before a consent expires.

- (2) The CDR consumer may make the election:
 - (a) by communicating it to the accredited person in writing; or
 - (b) by using the accredited person's consumer dashboard.
- (3) This rule does not apply if the accredited person:
 - (a) has a general policy of deleting redundant data; and

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- (b) when seeking the consent, informs the CDR consumer that their CDR data will be deleted when it becomes redundant data.

Note: See paragraph 4.17(1)(a).

- (4) This rule does not require the deletion of directly or indirectly derived CDR data that was de-identified in accordance with the CDR data de-identification process before the collected data from which it was derived became redundant.

4.17 Information relating to redundant data

- (1) For subparagraph 4.11(3)(h)(i), the accredited person must state whether they have a general policy, when collected CDR data becomes redundant data, of:
 - (a) deleting the redundant data; or
 - (b) de-identifying the redundant data; or
 - (c) deciding, when the CDR data becomes redundant data, whether to delete it or de-identify it.
- (2) An accredited person that gives the statement referred to in paragraph (1)(b) or (c) must also state:
 - (a) that, if it de-identifies the redundant data:
 - (i) it would apply the CDR data de-identification process; and
 - (ii) it would be able to use or, if applicable, disclose (by sale or otherwise) the de-identified redundant data without seeking further consent from the CDR consumer; and
 - (b) what de-identification of CDR data in accordance with the CDR data de-identification process means; and
 - (c) if applicable, examples of how it could use the redundant data once de-identified.

Note: For the CDR data de-identification process, see rule 1.17.

Subdivision 4.3.5—Notification requirements

4.18 CDR receipts

An accredited person must give the CDR consumer a notice that complies with the data standards as soon as practicable after the CDR consumer:

- (a) gives the accredited person a collection consent, use consent or disclosure consent; or
- (b) amends a collection consent, use consent or disclosure consent given to an accredited person in accordance with this Division; or
- (c) withdraws a collection consent, use consent or disclosure consent given to an accredited person in accordance with rule 4.13.

Note: This rule is a civil penalty provision (see rule 9.8).

4.18AA Notification of data holder or accredited data recipient if collection consent expires

- (1) This rule applies if:

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- (a) an accredited person has made a consumer data request to a CDR participant, based on a collection consent given under this Division relating to particular CDR data and that CDR participant; and
 - (b) the request has not been completely resolved; and
 - (c) the consent expires for any reason.
- (2) The accredited person must notify:
 - (a) if the CDR participant is a data holder—the data holder, in accordance with the data standards, that the consent has expired; and
 - (b) if the CDR participant is an accredited data recipient—the accredited data recipient as soon as practicable that the consent has expired.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.18A Notification of CDR consumer if collection consent expires

- (1) This rule applies if, in relation to particular goods or services an accredited person is providing as referred to in subrule 4.3(1):
 - (a) the collection consent expires; but
 - (b) the use consent, or any disclosure consent, is current.
- (2) The accredited person must notify the CDR consumer as soon as practicable after the collection consent expires that, at any time, they:
 - (a) may withdraw the use consent or disclosure consent; and
 - (b) may make the election to delete redundant data in respect of that CDR data under rule 4.16.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (3) The notification must be given in writing otherwise than through the CDR consumer's consumer dashboard.
- (4) The notification may also be included in the CDR consumer's consumer dashboard.

4.18B Notification if collection consent or AP disclosure consent expires

- (1) This rule applies if:
 - (a) an accredited person has made a consumer data request to an accredited data recipient on behalf of a CDR representative, based on a collection consent given under this Division relating to particular CDR data and that accredited data recipient; and
 - (b) the accredited data recipient has an AP disclosure consent relating to that CDR data; and
 - (c) the request has not been completely resolved.
- (2) If the collection consent expires in accordance with these rules, the accredited person must notify the accredited data recipient as soon as practicable of the expiry.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The AP disclosure consent that the accredited data recipient has expires when the notification is received—see subrule 4.14(4).

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- (3) If the AP disclosure consent expires in accordance with these rules, the accredited data recipient must notify the accredited person as soon as practicable of the expiry.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The collection consent that the accredited person has expires when the notification is received—see subrule 4.14(4).

4.18C Notification of data holder or accredited data recipient if collection consent is amended

- (1) This rule applies if:
- (a) an accredited person has made a consumer data request to a CDR participant, based on a collection consent given under this Division relating to particular CDR data and that CDR participant; and
 - (b) the request has not been completely resolved; and
 - (c) the CDR consumer amends the consent.
- (2) The accredited person must notify:
- (a) if the CDR participant is a data holder—the data holder, in accordance with the data standards, that the consent has been amended; and
 - (b) if the CDR participant is an accredited data recipient—the accredited data recipient as soon as practicable that the consent has been amended.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.19 Updating consumer dashboard

- (1) An accredited person must update a CDR consumer's consumer dashboard as soon as practicable after the information required to be contained on the dashboard changes.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) Where a CDR representative provides the consumer dashboard on behalf of a CDR representative principal (see subrule 1.14(5)), the CDR representative principal may arrange for the CDR representative to update the consumer dashboard on the CDR representative principal's behalf.

4.20 Ongoing notification requirement—current consents

- (1) This rule applies in relation to a collection consent, use consent or disclosure consent given under this Division if:
- (a) the consent is current; and
 - (b) 90 days have elapsed since the latest of the following:
 - (i) the CDR consumer gave the consent;
 - (ia) the CDR consumer last amended the consent;
 - (ii) the CDR consumer last used their consumer dashboard;
 - (iii) the accredited person last notified the CDR consumer that the consent is still current.
- (2) The accredited person must notify the CDR consumer, in relation to each consent given by the CDR consumer that is still current, that the consent is still current.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (3) The notification must be given in accordance with the data standards.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.20A Application of Subdivision to sponsor and affiliate

Where this Subdivision would, if not for this rule, require both an affiliate and the affiliate's sponsor to give a notice to a CDR consumer, the sponsor and the affiliate may choose which will give the notice.

Section 4.20B

Division 4.3A—Giving and amending consents—CDR representatives

Subdivision 4.3A.1—Preliminary

4.20B Purpose of Division

This Division deals with:

- (a) giving collection consents, use consents and disclosure consents to CDR representatives; and
- (b) amending such consents; and
- (c) related matters.

4.20C Object

The object of this Division is to ensure that a consent is:

- (a) voluntary; and
- (b) express; and
- (c) informed; and
- (d) specific as to purpose; and
- (e) time limited; and
- (f) easily withdrawn.

Subdivision 4.3A.2—Giving consents

Note: Under rule 4.3A, if a CDR representative asks a CDR consumer for their consent to collect and use their CDR data, it must do so in accordance with this Division, and in particular, rules 4.20D, 4.20E and 4.20F. A failure to do so could result in the CDR representative principal being liable for one or more civil penalty provisions: see section 56EF of the Act and rule 1.16A.

4.20D Requirements relating to seeking consent

A request by a CDR representative for a CDR consumer to give or amend a consent:

- (a) must comply with any relevant data standards; and
- (b) having regard to any consumer experience guidelines developed by the Data Standards Body—must be reasonably easy to understand, including by use of plain concise language and, where appropriate, visual aids; and
- (c) must *not* include or refer to the CDR representative principal's CDR policy or other documents in a way that reduces understandability; and
- (d) must *not* be combined with other requests except for a consent under these rules (other than a request for direct marketing or de-identification consent).

4.20E Asking CDR consumer to give consent

- (1) When asking a CDR consumer to give a consent, a CDR representative must:
 - (a) in the case of a collection consent or a disclosure consent—either:

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- (i) allow the CDR consumer to actively select or otherwise clearly indicate the particular types of CDR data to which the consent will apply; or
 - (ii) seek the CDR consumer's agreement to the particular types of CDR data (as presented to the CDR consumer) to which the consent will apply; and
- (aa) in the case of a use consent—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the specific uses of collected data to which the consent will apply; or
 - (ii) seek the CDR consumer's agreement to the specific uses of collected data (as presented to the CDR consumer) to which the consent will apply; and
- (b) in relation to the period of the collection consent, use consent, or disclosure consent (as appropriate)—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the period of consent; or
 - (ii) seek the CDR consumer's agreement to the period of consent (as presented to the CDR consumer) to which the consent will apply;where the period of consent is either:
 - (iii) a single occasion; or
 - (iv) a specified period of time; and
- (c) in the case of a disclosure consent—either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate the person to whom the CDR data may be disclosed; or
 - (ii) seek the CDR consumer's agreement to the persons (as presented to the CDR consumer) to whom the CDR data may be disclosed; and
- (d) seek the CDR consumer's express consent to the matters referred to in paragraphs (a), (aa), (b) and (c) for each relevant category of consents; and
- (e) if the CDR representative intends to charge a fee for disclosure of CDR data, or pass on to the CDR consumer a fee charged by a data holder or accredited person for disclosure of CDR data—clearly distinguish between the CDR data for which a fee will, and will not, be charged or passed on, and either:
 - (i) allow the CDR consumer to actively select or otherwise clearly indicate whether they consent to the collection or disclosure, as appropriate, of the CDR data for which a fee will be charged or passed on; or
 - (ii) seek the CDR consumer's agreement to the collection or disclosure, as appropriate, of the CDR data for which a fee will be charged or passed on (as presented to the CDR consumer); and
- (f) allow the CDR consumer to make an election in relation to deletion of redundant data in accordance with rule 4.20M.

Note 1: A CDR representative cannot infer consent, or seek to rely on an implied consent.

Note 2: For paragraph (b), the specified period may not be more than 12 months: see subrule 4.20F(1). After the end of the period, redundant data would need to be dealt with in accordance with subsection 56EO(2) of the Act (privacy safeguard 12) and rules 7.12 and 7.13.

Part 4 Consumer data requests made by accredited persons

Division 4.3A Giving and amending consents—CDR representatives

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Note 3: For paragraph (e), a data holder could charge a fee for disclosure of voluntary consumer data, while a CDR representative could charge a fee for the disclosure of any CDR data.

- (2) The CDR representative must not present direct marketing consents or de-identification consents as pre-selected options to the CDR consumer for the purposes of subrule (1).

Information presented to CDR consumer when asking for consent

- (3) When asking a CDR consumer to give consent, the CDR representative must give the CDR consumer the following information:
- (a) its name;
 - (b) the fact that the person is a CDR representative and that the CDR data will be collected by its CDR representative principal at its request;
 - (c) if the CDR representative is not located in Australia—the country in which it is located;
 - (d) the CDR representative principal's name;
 - (e) the CDR representative principal's accreditation number;
 - (f) in the case of a collection consent, use consent or disclosure consent—information about how the collection, use or disclosure indicated in a manner consistent with the requirements set out in subrule (1) complies with the data minimisation principle, including:
 - (i) in the case of a collection consent in relation to the provision of requested goods or services—an explanation of why that collection is reasonably needed, and relates to a time period that is no longer than is reasonably needed; and
 - (ii) in the case of a use consent or disclosure consent—an explanation of why that use or disclosure does not go beyond what is reasonably needed;in order to provide the requested goods or services to the CDR consumer, or to effect the permitted uses or disclosures consented to;
 - (g) in the case of an insight disclosure consent—an explanation of the CDR insight that will make clear to the CDR consumer what the CDR insight would reveal or describe;
 - (ga) in the case of a direct marketing consent—information about how the CDR data may be used or disclosed in accordance with the consent;
 - (h) if the CDR representative intends passing a fee on, or charging a fee, to the CDR consumer as described in paragraph (1)(e)—the following information:
 - (i) the amount of the fee;
 - (ii) the consequences if the CDR consumer does not consent to the collection, or to the disclosure, of that data;
 - (i) if the CDR representative is seeking a de-identification consent—the additional information specified in rule 4.20L;
 - (j) a link to the CDR representative principal's CDR policy;
 - (k) if the CDR data may be disclosed to, or collected by, a direct or indirect OSP (including one that is based overseas) of the CDR representative or of the CDR representative principal:
 - (i) a statement of that fact; and

- (ii) the name of the OSP; and
- (iii) the OSP's accreditation number (if any); and
- (iv) if the OSP is based overseas—the country in which it is based; and
- (v) a link to a webpage where the CDR representative principal's CDR policy and the OSP's CDR policy (if any) can be directly viewed; and
- (vi) a statement detailing why the OSP needs to access the consumer's CDR data;
- (l) a statement that the CDR consumer can obtain further information about the collections or disclosures for which consent is requested from the CDR representative principal's CDR policy if desired;
- (m) a statement that, at any time, the consent can be withdrawn;
- (n) the following information about redundant data:
 - (i) a statement, in accordance with rule 4.20N, regarding the CDR representative's intended treatment of redundant data;
 - (ii) a statement outlining the CDR consumer's right to elect that their redundant data be deleted;
 - (iii) instructions for how the election can be made.

Note 1: For paragraph (b), if the CDR representative is seeking the CDR consumer's consent to de-identification as referred to in paragraph (i), the CDR representative would need to indicate how that would comply with the data minimisation principle.

Note 2: For paragraph (ga), the uses or disclosures that are permitted under a direct marketing consent may be limited under another part of these rules (see subrule 7.5(3)).

4.20F Restrictions on seeking consent

- (1) A CDR representative must not specify a period of time for the purposes of paragraph 4.11(1)(b) that is more than 12 months.
- (2) A CDR representative must not ask for a collection consent, a use consent or a disclosure consent unless the consent would comply with the data minimisation principle in respect of that collection or those uses or disclosures.

Note: See rule 1.8 for the definition of "data minimisation principle".
- (3) A CDR representative must not ask for a consent:
 - (a) that is not in a category of consents; or
 - (b) subject to subrule (4), for using the CDR data, including by aggregating the data, for the purpose of:
 - (i) identifying; or
 - (ii) compiling insights in relation to; or
 - (iii) building a profile in relation to;any identifiable person who is not the CDR consumer who made the consumer data request.
- (4) Paragraph (3)(b) does not apply in relation to a person whose identity is readily apparent from the CDR data, if the CDR representative is seeking consent to:
 - (a) derive, from that CDR data, CDR data about that person's interactions with the CDR consumer; and
 - (b) use that derived CDR data in order to provide the requested goods or services.

Subdivision 4.3A.3—Amending consents

4.20G Amendment of consent

An amendment of a consent takes effect when the CDR consumer amends the consent.

Note: It is not possible for the CDR consumer to specify a different day or time.

4.20H Inviting CDR consumer to amend consent

(1) A CDR representative may invite a CDR consumer to amend a consent given in accordance with this Division only in accordance with this rule.

(2) The CDR representative may give the invitation:

- (a) if the CDR representative principal's consumer dashboard allows an amendment to a consent in accordance with subrule 1.14(2A)—via the consumer dashboard; or
- (b) in writing directly to the CDR consumer.

Note: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

(3) The CDR representative may invite a CDR consumer to amend a current consent if:

- (a) the amendment would better enable the CDR representative to provide the goods or services referred to in paragraph 4.3A(1)(a); or
- (b) the amendment would:
 - (i) be consequential to an agreement between the CDR representative and the CDR consumer to modify those goods or services; and
 - (ii) enable the CDR representative to provide the modified goods or services.

(4) The CDR representative must not, for an invitation to amend the period referred to in paragraph 4.20E(1)(b):

- (a) give the invitation any earlier than a reasonable period before the current consent is expected to expire; or
- (b) give more than a reasonable number of such invitations within this period.

4.20I Process for amending consent

(1) Subject to this rule, if a CDR representative allows CDR consumers to amend consents, it must allow them to do so in the same manner that it asks for CDR consumers to give consents.

(3) In the case of an amendment to a consent, in addition to the information referred to in subrule 4.20E(3), the CDR representative must give the CDR consumer:

- (a) a statement that indicates the consequences of amending a consent; and
- (b) a statement that the CDR representative will be able to continue to use any CDR data that has already been disclosed to it to the extent allowed by the amended consent.

Subdivision 4.3A.4—Withdrawing consents

4.20J Withdrawal of consents

- (1) A CDR consumer who has given a consent to a CDR representative for the purposes of this Division may withdraw the consent at any time:
 - (a) by using the CDR representative principal's consumer dashboard; or
 - (b) by using:
 - (i) a method mentioned in subrule (2) to notify the CDR representative principal; or
 - (ii) a method mentioned in subrule (3) to notify the CDR representative.

Note 1: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

Note 2: If the withdrawal is made using the consumer dashboard, it has effect immediately (see rule 4.20K).

Withdrawal without using consumer dashboard

- (2) The CDR representative principal must make available a simple method of communication for the withdrawal of consent, as an alternative to using the CDR representative principal's consumer dashboard.

Note 1: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (3) The CDR representative must make available a simple method of communication for the withdrawal of consent, as an alternative to using the CDR representative principal's consumer dashboard.

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

- (4) If the consent is withdrawn under paragraph (1)(b), whichever of the CDR representative principal and the CDR representative received the communication must notify the other as soon as practicable.

- (5) If the consent is withdrawn under paragraph (1)(b), the CDR representative principal must give effect to the withdrawal as soon as practicable, and in any case within 2 business days after the communication is received in accordance with paragraph (1)(b).

Note: This subrule is a civil penalty provision (see rule 9.8).

- (6) If the consent is withdrawn under paragraph (1)(b), the CDR representative must give effect to the withdrawal as soon as practicable, and in any case within 2 business days after the communication is received in accordance with paragraph (1)(b).

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

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- (7) Withdrawal of a consent does not affect an election under rule 4.20M that the CDR consumer's collected CDR data be deleted once it becomes redundant.

Subdivision 4.3A.5—Duration of consent

4.20K Duration of consent

- (1) A consent given under this Division expires at the earliest of the following:
- (a) if the consent is withdrawn in accordance with paragraph 4.20J(1)(a)—when the consent is withdrawn;
 - (b) if the consent is withdrawn in accordance with paragraph 4.20J(1)(b)—the earlier of the following:
 - (i) when the CDR representative principal and CDR representative give effect to the withdrawal;
 - (ii) 2 business days after the CDR representative principal or CDR representative receive the communication;
 - (c) the end of the period of 12 months after the later of the following:
 - (i) the day the consent was given; or
 - (ii) if the period of the consent has been amended in accordance with this Division—the day the consent was last amended;
 - (d) at the end of the period the CDR consumer consented to in accordance with rule 4.20E;
 - (e) if the consent expires as a result of the operation of another provision of these rules that references this paragraph—when the consent expires.
- (2) If:
- (a) a CDR representative principal is notified by a data holder, under rule 4.26A, of the withdrawal of an authorisation to disclose CDR data that relates to a collection consent given under this Division; and
 - (b) the collection consent has not expired in accordance with subrule (1);
- the collection consent expires when the CDR representative principal receives that notification.
- Note: This would not result in the use consent relating to any CDR data that had already been collected expiring, so it may continue to be used by the CDR representative in accordance with those consents. However, see the notification requirement of rule 4.20Q.
- (3) If:
- (a) a CDR representative principal has a collection consent given under this Division to collect particular CDR data from a particular accredited data recipient; and
 - (b) the accredited data recipient has an AP disclosure consent to disclose that CDR data to that CDR representative principal;
- then if one of those consents expires, the other expires when the CDR representative principal or accredited data recipient is notified of the first-mentioned expiry.

Note: The notification is required by rule 4.18B.

- (4) If a CDR representative principal's accreditation is revoked or surrendered in accordance with rule 5.17, all of the consents of any of the CDR representative principal's CDR representatives expire when the revocation or surrender takes effect.

Subdivision 4.3A.6—Information relating to de-identification of CDR data

4.20L Additional information relating to de-identification of CDR data

For paragraph 4.20E(3)(i), the additional information relating to de-identification is the following:

- (a) what the CDR data de-identification process is;
- (b) if it would disclose (by sale or otherwise) the de-identified data to one or more other persons;
 - (i) that fact; and
 - (ii) the classes of persons to which it would disclose that data; and
 - (iii) why it would so disclose that data;
- (c) if the CDR representative would use the de-identified data for general research—that fact, together with a link to a description in the CDR representative principal's CDR policy of:
 - (i) the research to be conducted; and
 - (ii) any additional benefit to be provided to the CDR consumer for consenting to the use;
- (e) that the CDR consumer would not be able to elect, in accordance with rule 4.20M, to have the de-identified data deleted once it becomes redundant data.

Subdivision 4.3A.7—Election to delete redundant data

4.20M Election to delete redundant data

- (1) The CDR consumer who gives a consent relating to particular CDR data may:
- (a) when giving the consent; or
 - (b) at any other time before the consent expires;
- elect that the collected data, and any CDR data directly or indirectly derived from it, be deleted when it becomes redundant data.

Note 1: See rules 7.12 and 7.13 for the effect of an election.

Note 2: CDR data might become redundant data even before a consent expires.

- (2) The CDR consumer may make the election:
- (a) by communicating it to the CDR representative principal or CDR representative in writing; or
 - (b) by using the CDR representative principal's consumer dashboard.

Note: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

- (3) This rule does not apply if the CDR representative:
- (a) has a general policy of deleting redundant data; and

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- (b) when seeking the consent, informs the CDR consumer that their CDR data will be deleted when it becomes redundant data.

Note: See paragraph 4.20N(1)(a).

- (4) This rule does not require the deletion of directly or indirectly derived CDR data that was de-identified in accordance with the CDR data de-identification process before the collected data from which it was derived became redundant.

4.20N Information relating to redundant data

- (1) For subparagraph 4.20E(3)(n)(i), the CDR representative must state whether they have a general policy, when collected CDR data becomes redundant data, of:
 - (a) deleting the redundant data; or
 - (b) de-identifying the redundant data; or
 - (c) deciding, when the CDR data becomes redundant data, whether to delete it or de-identify it.
- (2) A CDR representative that gives the statement referred to in paragraph (1)(b) or (c) must also state:
 - (a) that, if it de-identifies the redundant data:
 - (i) it would apply the CDR data de-identification process; and
 - (ii) it would be able to use or, if applicable, disclose (by sale or otherwise) the de-identified redundant data without seeking further consent from the CDR consumer; and
 - (b) what de-identification of CDR data in accordance with the CDR data de-identification process means; and
 - (c) if applicable, examples of how it could use the redundant data once de-identified.

Note: For the CDR data de-identification process, see rule 1.17.

Subdivision 4.3A.8—Notification requirements

4.20O CDR receipts

A CDR representative must give the CDR consumer a notice that complies with the data standards as soon as practicable after:

- (a) the CDR consumer gives the CDR representative a collection consent, a use consent or a disclosure consent; or
- (b) the CDR consumer amends such a consent in accordance with this Division; or
- (c) the CDR consumer withdraws such a consent in accordance with rule 4.20J.

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

4.20P Notification of data holder or accredited data recipient if collection consent expires

- (1) This rule applies if:

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- (a) an accredited person has made a consumer data request on behalf of a CDR representative to a CDR participant based on a collection consent given under this Division relating to particular CDR data and a particular CDR participant; and
 - (b) the request has not been completely resolved; and
 - (c) the consent expires for any reason.
- (2) The accredited person must notify:
- (a) if the CDR participant is a data holder—the data holder, in accordance with the data standards, that the consent has expired; and
 - (b) if the CDR participant is an accredited data recipient—the accredited data recipient as soon as practicable that the consent has expired.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.20Q Notification of consumer if collection consent expires

- (1) This rule applies if, in relation to particular goods or services a CDR representative is providing as referred to in subrule 4.3A(1):
- (a) the collection consent expires; but
 - (b) the use consent, or any disclosure consent, is current.
- (2) The CDR representative must notify the CDR consumer as soon as practicable after the collection consent expires that, at any time, they:
- (a) may withdraw the use consent or disclosure consent; and
 - (b) may make the election to delete redundant data in respect of that CDR data under rule 4.20M.

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

- (3) The notification must be given in writing otherwise than through the CDR representative principal's consumer dashboard.

Note: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

- (4) The notification may also be included in the CDR representative principal's consumer dashboard.

Note: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

4.20R Notification if collection consent or AP disclosure consent expires

- (1) This rule applies if:
- (a) a CDR representative principal has made a consumer data request to an accredited data recipient on behalf of a CDR representative, based on a collection consent given under this Division relating to particular CDR data and that accredited data recipient; and
 - (b) the accredited data recipient has an AP disclosure consent relating to that CDR data; and
 - (c) the request has not been completely resolved.

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- (2) If the collection consent expires in accordance with these rules, the CDR representative principal must notify the accredited data recipient as soon as practicable of the expiry.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The AP disclosure consent that the accredited data recipient has expires when the notification is received—see subrule 4.20K(2).

- (3) If the AP disclosure consent expires in accordance with these rules, the accredited data recipient must notify the CDR representative principal as soon as practicable of the expiry.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The collection consent that the CDR representative principal has expires when the notification is received—see subrule 4.20K(2).

4.20S Notification if collection consent is amended

- (1) This rule applies if:
- (a) a CDR representative principal has made a consumer data request to a CDR participant on behalf of a CDR representative, based on a collection consent given under this Division relating to particular CDR data and a particular CDR participant; and
 - (b) the request has not been completely resolved; and
 - (c) the CDR consumer amends the consent.
- (2) The CDR representative principal must notify:
- (a) if the CDR participant is a data holder—the data holder, in accordance with the data standards, that the consent has been amended; and
 - (b) if the CDR participant is an accredited data recipient—the accredited data recipient as soon as practicable that the consent has been amended.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.20T Updating consumer dashboard

- (1) A CDR representative must inform the CDR representative principal as soon as practicable after the information required to be contained on the CDR representative principal's consumer dashboard changes.

Note: The CDR representative principal may allow the CDR representative to provide the consumer dashboard on its behalf—see subrule 1.14(5).

- (2) The CDR representative principal must, as soon as practicable, make those changes.

Note 1: This subrule is a civil penalty provision (see rule 9.8).

Note 2: The CDR representative principal could arrange for the CDR representative to update the consumer dashboard on the CDR representative principal's behalf: see subrule 4.19(2).

4.20U Ongoing notification requirement—current consents

- (1) This rule applies in relation to a collection consent, use consent or disclosure consent given under this Division if:

- (a) the consent is current; and
 - (b) 90 days have elapsed since the latest of the following:
 - (i) the CDR consumer gave the consent;
 - (ii) the CDR consumer last amended the consent;
 - (iii) the CDR consumer last used the CDR representative principal's consumer dashboard;
 - (iv) the CDR representative or the CDR representative principal last notified the CDR consumer that the consent is still current.
- (2) The CDR representative must notify the CDR consumer, in relation to each consent given by the CDR consumer that is still current, that the consent is still current.

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

- (3) The notification must be given in accordance with the data standards.

Note: A failure to do this could make the CDR representative principal liable for a civil penalty (see rule 1.16A).

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Division 4.4—Authorisations to disclose CDR data

Note: Under rule 4.5, if a data holder is considering disclosing voluntary consumer data in response to a consumer data request, or if required consumer data was requested, the data holder must seek an authorisation from the CDR consumer to disclose the CDR data in accordance with (among other things) this Division, and in particular, rules 4.23, 4.24 and 4.25. A failure to do so could contravene one or more civil penalty provisions: see rule 4.5.

4.21 Purpose of Division

This Division deals with authorisations to disclose CDR data for the purposes of rule 4.5, and amendments to authorisations.

4.22 Requirements relating to data holder's processes for seeking authorisation

A data holder's processes for asking a CDR consumer to give or amend an authorisation must:

- (a) accord with the data standards; and
- (b) having regard to any consumer experience guidelines developed by the Data Standards Body, be as easy to understand as practicable, including by use of concise language and, where appropriate, visual aids.

4.22A Inviting CDR consumer to amend a current authorisation

- (1) If a data holder has received a notice under rule 4.18C or 4.20S, the data holder must, in accordance with this Division, invite the CDR consumer to amend the authorisation to disclose CDR data accordingly.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) An amendment of an authorisation to disclose CDR data other than in accordance with subrule (1) is of no effect.

4.23 Asking CDR consumer to give authorisation to disclose CDR data or inviting CDR consumer to amend a current authorisation

- (1) When asking a CDR consumer to authorise the disclosure of CDR data, or amend a current authorisation, a data holder must give the CDR consumer the following information about the authorisation or amendment:
 - (a) subject to subrule (2), the name of the accredited person that made the request;
 - (b) the period of time to which the CDR data that was the subject of the request relates;
 - (c) the types of CDR data for which the data holder is seeking an authorisation to disclose;
 - (d) whether the authorisation is being sought for:
 - (i) disclosure of CDR data on a single occasion; or
 - (ii) disclosure of CDR data over a period of time of not more than 12 months;
 - (e) if authorisation is being sought for disclosure over a period of time—what that period is;
 - (f) a statement that, at any time, the authorisation can be withdrawn;

(g) instructions for how the authorisation can be withdrawn.

Note: While certain consents by a CDR business consumer can have a period of 7 years, a corresponding authorisation cannot be for more than 12 months before renewal under subparagraph (1)(d)(ii).

- (2) The data holder must also give the CDR consumer any information that the Register of Accredited Persons holds in relation to the accredited person that is specified as information for the purposes of this rule.

4.24 Restrictions when asking CDR consumer to authorise disclosure of CDR data

When asking a CDR consumer to authorise the disclosure of CDR data or to amend a current authorisation, the data holder must not do any of the following:

- (a) add any requirements to the authorisation process beyond those specified in the data standards and these rules;
- (b) provide or request additional information during the authorisation process beyond that specified in the data standards and these rules;
- (c) offer additional or alternative services as part of the authorisation process;
- (d) include or refer to other documents.

4.25 Withdrawal of authorisation to disclose CDR data

- (1) A CDR consumer who has given an authorisation to a data holder to disclose particular CDR data to an accredited person may withdraw the authorisation at any time:
- (a) by using the data holder's consumer dashboard; or
 - (b) by using a simple alternative method of communication to be made available by the data holder for that purpose.
- (2) If the withdrawal was in accordance with paragraph (1)(b), the data holder must give effect to the withdrawal as soon as practicable, and in any case within 2 business days after receiving the communication.

Note: This subrule is a civil penalty provision (see rule 9.8).

4.26 Duration of authorisation to disclose CDR data

- (1) An authorisation to disclose particular CDR data to an accredited person expires at the earliest of the following:
- (a) if the authorisation was withdrawn in accordance with paragraph 4.25(1)(b)—the earlier of the following:
 - (i) when the data holder gave effect to the withdrawal;
 - (ii) 2 business days after the data holder received the communication;
 - (b) if the authorisation was withdrawn in accordance with paragraph 4.25(1)(a)—when the authorisation was withdrawn;
 - (c) if the CDR consumer ceases to be eligible in relation to the data holder;
 - (d) if the data holder was notified, under rule 4.18AA or 4.20P, of the withdrawal of a consent to collect that CDR data—when the data holder received that notification;
 - (e) the end of the period of 12 months after the authorisation was given;

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- (f) if the authorisation was for disclosure of CDR data on a single occasion—after the CDR data has been disclosed;
- (g) if the authorisation was for disclosure of CDR data over a specified period—the end of:
 - (i) that period; or
 - (ii) if the period of the authorisation has been amended in accordance with this Division—that period as last amended;
- (h) if the authorisation expires as a result of the operation of a provision of these rules that references this paragraph.

Note: Clause 7.2 of Schedule 3 is an example of a provision satisfying paragraph (h). This relates to when an accredited data recipient of CDR data becomes instead a data holder of that CDR data.

- (2) If an accredited person's accreditation is revoked or surrendered in accordance with rule 5.17, all authorisations for a data holder to disclose CDR data to that accredited person expire when the data holder is notified of the revocation or surrender.

4.26A Notifications of expired authorisations

If an authorisation to disclose particular CDR data to an accredited person is withdrawn or otherwise expires, the data holder must notify the accredited person in accordance with the data standards.

Note: This rule is a civil penalty provision (see rule 9.8).

4.27 Updating consumer dashboard

A data holder must update a CDR consumer's consumer dashboard as soon as practicable after the information required to be contained on the dashboard changes.

Note: This rule is a civil penalty provision (see rule 9.8).

4.28 Notification requirements for consumer data requests on behalf of secondary users

- (1) This rule applies if:
 - (a) an accredited person makes a consumer data request under this Part on behalf of a secondary user for a particular account; and
 - (b) the secondary user amends or withdraws an authorisation, or an authorisation given by the secondary user expires.
- (2) The data holder must, as soon as practicable, notify the account holder of that fact through its ordinary means of contacting the account holder.

Note: This subclause is a civil penalty provision (see rule 9.8).

Part 4A—Joint accounts

Note: When this Part commences, it will be subject to transitional provisions that operate until July 2022.

Division 4A.1—Preliminary

4A.1 Purpose of Part

Special rules apply in relation to consumer data requests under Part 4 under which there is a request for disclosure of CDR data that relates to one or more joint accounts. This Part sets out those rules.

4A.2 Simplified outline of this Part

CDR data that relates to a joint account can be disclosed under these rules only in accordance with the disclosure option that applies to the account. Division 4A.2 sets out:

- the three disclosure options, with the default option being the pre-approval option; and
- an obligation for data holders to provide a service (a disclosure option management service) for all joint accounts to which this Part applies through which joint account holders can change the disclosure option that applies to the account, or propose a change to the other account holders; and
- when one joint account holder proposes to change the disclosure option—a process by which the other joint account holders can either agree with or reject the proposal; and
- some associated notification requirements.

Any joint account holder can choose that the non-disclosure option will apply.

If the pre-approval option applies, any joint account holder can choose that the co-approval option will apply.

A change from the non-disclosure option to another option, or a change from the co-approval option to the pre-approval option, requires the agreement of all the joint account holders.

When an accredited person makes a consumer data request under Part 4 on behalf of a CDR consumer, and the request includes CDR data relating to one or more joint accounts of which the CDR consumer is a joint account holder, Division 4A.3 deals with how the request is processed.

Division 4A.3 also deals with how requests are processed when the accredited person makes a consumer data request on behalf of a secondary user of the joint account.

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4A.3 Interpretation

For this Part, in relation to a consumer data request to a data holder under Part 4 where the CDR data requested includes CDR data that relates to a joint account:

- (a) the **requester** is the person on whose behalf the consumer data request was made; and
- (b) the **relevant account holders** are:
 - (i) if the requester is a secondary user—all joint account holders; and
 - (ii) if the requester is a joint account holder—the other joint account holders; and
- (c) the **joint account data** is the CDR data relating to the joint account that was the subject of the request.

Note: The CDR data that can be requested on behalf a CDR consumer is governed by the relevant general provisions in the sector Schedules, so that, for example, customer data that relates to another joint account holder cannot be covered by a consumer data request (see paragraphs 3.2(3)(b) of Schedule 3 and 3.2(3)(b) of Schedule 4).

Division 4A.2—Disclosure options

4A.4 Simplified outline of this Division

This Division sets out the disclosure options that can apply to a joint account. These disclosure options are relevant when an accredited person makes a consumer data request on behalf of one joint account holder or a secondary user under Part 4.

The default option is the pre-approval option. If this option applies, when the data holder receives a consumer data request, the other account holders are treated as having approved disclosing the data relating to the joint account in response to that request. However, the other account holders can withdraw this presumed approval in relation to that request at any time.

Another option is the non-disclosure option. If this option applies, joint account data cannot be disclosed under these rules.

The third option is the co-approval option. If this option applies, joint account data can be disclosed under these rules only with the approval of all the account holders.

Data holders must offer the pre-approval option and non-disclosure option on joint accounts, and may offer the co-approval option.

The process for changing the disclosure option is set out in this Division.

For each joint account, a data holder must offer a disclosure option management service that can be used by joint account holders to select and manage these disclosure options.

However, the data holder will not be liable for a failure to comply with this Part if it is considered that the relevant act or omission was necessary in order to prevent physical, psychological or financial harm or abuse to any person.

4A.5 Disclosure options for joint accounts

Disclosure options

- (1) Disclosure of joint account data may be authorised only as permitted by the **disclosure option** that applies to the joint account. This may be any of the following:
 - (a) the **pre-approval option**, under which joint account data may be disclosed in response to a valid consumer data request on the authorisation of the requester without the approval of the relevant account holders;
 - (b) the **co-approval option**, under which joint account data may be disclosed in response to a valid consumer data request only after:
 - (i) the requester has authorised the disclosure; and
 - (ii) each of the relevant joint account holders has approved the disclosure;

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- (c) the ***non-disclosure option***, under which joint account data may not be disclosed even in response to a valid consumer data request.
- (2) The data holder must provide for the pre-approval and non-disclosure options to be available for a joint account.
- (3) The data holder may provide for the co-approval option to be available for a joint account.
- (4) For the purposes of rule 4A.12, where the pre-approval option applies to a joint account and the requester authorises the disclosure of joint account data in response to a valid consumer data request:
 - (a) each relevant account holder is taken to have approved the disclosure; and
 - (b) if an approval is withdrawn, the joint account data may not be disclosed despite the authorisation.

Default option

- (5) Unless a sector Schedule provides otherwise, the pre-approval option applies to a joint account by default.
- (6) The disclosure option that applies to a joint account may be changed in accordance with rule 4A.7 or 4A.8.

4A.6 Obligation to provide disclosure option management service

Obligation to provide disclosure option management service

- (1) For each joint account to which this Part applies, the data holder must provide a service to each joint account holder that allows the joint account holder to:
 - (a) change the disclosure option that applies to the account in accordance with rule 4A.7; and
 - (b) propose a change in the disclosure option to the other joint account holders in accordance with rule 4A.8; and
 - (c) respond to a proposal by another joint account holder to change the disclosure option.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) Such a service is a ***disclosure option management service***.

Requirements for disclosure option management service

- (3) The service must be provided online and, if there is a data holder's consumer dashboard for a joint account holder, may be included in the dashboard.
- (4) The service may, but need not, also be provided other than online.
- (5) The service must give effect to a change in the disclosure option as soon as practicable.
- (6) The service must not do any of the following in relation to the processes that it provides for changing or proposing to change the disclosure option that applies to the joint account, or responding to such a proposal (the ***processes***):

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- (a) add any requirements to the processes beyond those specified in the data standards and these rules;
 - (b) offer additional or alternative services as part of the processes;
 - (c) include or refer to other documents, or provide any other information, so as to reduce comprehensibility;
 - (d) offer any pre-selected options.
- (7) The service must indicate to the joint account holder which disclosure option currently applies.
- (8) The service must be in accordance with the data standards.

4A.7 Changing to a more restrictive disclosure option

- (1) A joint account holder may at any time choose that the non-disclosure option will apply to the joint account, using the disclosure option management service.
- (2) If the pre-approval option applies to a joint account, a joint account holder may at any time choose that the co-approval option will apply to the joint account, using the disclosure option management service.
- (3) If a joint account holder (**account holder A**) changes the disclosure option that applies to the account in accordance with this rule, the data holder must, as soon as practicable through its ordinary means of contacting the other joint account holders:
 - (a) explain to each of them what the consumer data right is; and
 - (b) inform them which disclosure option previously applied to the account; and
 - (c) inform them that account holder A has changed the disclosure option, and of the disclosure option that now applies; and
 - (d) explain to them the mechanisms for changing the disclosure option again.

Note: This subrule is a civil penalty provision (see rule 9.8).

4A.8 Obtaining agreement on change to a less restrictive disclosure option

Application of rule

- (1) This rule applies in relation to a particular joint account if:
 - (a) the non-disclosure option applies to the account, and a joint account holder (**account holder A**) proposes, using the disclosure option management service, to change to the co-approval or pre-approval disclosure option; or
 - (b) the co-approval option applies to the account, and a joint account holder (**account holder A**) proposes, using the disclosure option management service, to change to the pre-approval option.

Inviting other account holders to respond to proposal

- (2) The data holder must, as soon as practicable through its ordinary means of contacting the other joint account holders:
 - (a) explain to each of them what the consumer data right is; and
 - (b) inform them which disclosure option currently applies to the account; and

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- (c) inform them that account holder A has proposed that the co-approval or pre-approval option apply to the account, as the case may be; and
- (d) explain to them that this change requires the agreement of all account holders; and
- (e) explain to them any alternative options for change that are available and how they can be made; and
- (f) invite them to either agree to or reject the proposal within a specified period.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (3) At the end of the specified period, the data holder must, as soon as practicable through its ordinary means of contacting the joint account holders, inform them whether:
 - (a) all the joint account holders have approved the change, and as a result the new disclosure option applies to the joint account; or
 - (b) not all the joint account holders have approved the change, and as a result the disclosure option is unchanged.

Note: This subrule is a civil penalty provision (see rule 9.8).

Division 4A.3—Consumer data requests that relate to joint accounts

Subdivision 4A.3.1 —Preliminary

4A.9 Application of Division

- (1) This Division applies in relation to a consumer data request to a data holder under Part 4 where the CDR data requested includes joint account data.
- (2) If the CDR data requested includes joint account data in relation to more than one joint account, this Division applies separately in relation to each such joint account.
- (3) In this Division a reference to a consumer data request is a reference to the consumer data request only to the extent that it relates to a particular joint account.

Subdivision 4A.3.2—How consumer data requests to data holders under Part 4 that relate to joint accounts are handled

4A.10 How data holder is to deal with a consumer data request

- (1) This rule applies when the data holder receives a consumer data request to which this Division applies.

Note: Under rule 4A.5, data holders are required to offer the pre-approval disclosure option, which applies by default. Data holders may, but are not required to, offer the co-approval option.

Pre-approval option

- (2) If the pre-approval option applies to the joint account, rules 4.5 to 4.7 apply subject to subrule (3).
- (3) If a relevant account holder has withdrawn their approval using their consumer dashboard, the data holder must not disclose any, or any further, requested CDR data.

Co-approval option

- (4) If the co-approval option applies to the joint account, the data holder must, subject to subrule (5):
 - (a) ask the requester for authorisation in accordance with rule 4.5 and Division 4.4; and
 - (b) if the authorisation is given, invite the approval of the relevant account holders in accordance with rule 4A.11; and
 - (c) if all the relevant account holders give their approval, or are taken to have given their approval, comply with rules 4.6 to 4.7.

Note: The data holder must provide each relevant account holder with a consumer dashboard in accordance with rule 4A.13.

- (5) If a relevant account holder who approved the disclosure in accordance with rule 4A.11 within the time specified has withdrawn the approval using their consumer

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dashboard, the data holder must not disclose any, or any further, requested CDR data.

Non-disclosure option

- (6) If the non-disclosure option applies to the joint account, the data holder must refuse to disclose the requested CDR data.

4A.11 Asking relevant account holders for approval to disclose joint account data

For the purposes of paragraph 4A.10(4)(b), the data holder must, through its ordinary means of contacting each relevant account holder:

- (a) indicate that an accredited person has requested disclosure of CDR data that relates to the joint account on behalf of the requester; and
- (b) indicate that:
 - (i) the requester has authorised, under Division 4.4, the disclosure of the joint account data; and
 - (ii) a co-approval option applies to the joint account; and
- (c) indicate the matters referred to in paragraphs 4.23(1)(a), (b), (c), (d) and (e) so far as they relate to the request; and
- (d) ask the relevant account holder to approve or not approve disclosure of the joint account data; and
- (e) specify the time by which the data holder needs to receive any approval, and inform them that if an approval is not received by that time, the joint account data will not be disclosed; and
- (f) inform them that any relevant account holder may, at any time, withdraw the approval using their consumer dashboard; and
- (g) indicate what the effect of removing the approval would be.

Note: For removal of an approval, see rule 4A.12.

4A.12 Continuation and removal of approvals

- (1) If a relevant account holder:
 - (a) approves of the disclosure of joint account data in accordance with this Division; or
 - (b) is taken to have approved of the disclosure under the pre-approval option; the approval is taken to apply while the authorisation referred to in paragraph 4A.10(4)(b) is current, unless withdrawn sooner in accordance with this Division.
- (2) Any relevant account holder may withdraw an approval given under this Division at any time, using their consumer dashboard.

4A.13 Consumer dashboard for joint account holders

Note: Where this Division applies, the data holder must provide a consumer dashboard for the requester under rule 1.15. Under this rule, in some circumstances, the data holder must also provide a consumer dashboard for each relevant account holder and the dashboards must have additional functionality.

Obligation for data holder to provide relevant account holders with consumer dashboard

- (1) Where:
- (a) this Division applies in relation to a consumer data request; and
 - (b) either the co-approval option or the pre-approval option applies, or has applied, to the joint account;
- the data holder must provide each relevant account holder with an online service that:
- (c) contains the details referred to in paragraph 1.15(1)(b) that relate to the joint account data; and
 - (d) can be used by the relevant account holder to manage approvals in relation to each authorisation to disclose joint account data made by a requester; and
 - (e) allows for the withdrawal, at any time, of an approval in relation to each authorisation to disclose joint account data made by a requester; and
 - (f) as part of the process for withdrawing an approval in relation to an authorisation, displays a message, in accordance with the data standards, about the consequences of withdrawing an approval in relation to an authorisation; and
 - (g) is simple and straightforward to use; and
 - (h) is prominently displayed and readily accessible by a relevant account holder.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) Where the data holder already provides a consumer dashboard for the relevant account holder under rule 1.15, the service under subrule (1) must be included in the consumer dashboard.
- (3) Where the data holder does not already provide a consumer dashboard for that relevant account holder under rule 1.15, the service under subrule (1) is the data holder's **consumer dashboard** for the relevant account holder.
- (4) A data holder does not contravene paragraph (1)(g) if the data holder takes reasonable steps to ensure that the online service complies with the paragraph.

Common information on consumer dashboard

- (5) For paragraph 1.15(1)(d), if a relevant account holder's consumer dashboard contains details of approvals under this Division, the dashboards of the other joint account holders must contain those details.

4A.14 Notification requirements for consumer data requests on joint accounts

- (1) For this rule, an **approval notification** is a notice given by the data holder:
- (a) to a relevant account holder, to inform them that the requester has given, amended or withdrawn an authorisation, or that the authorisation has expired; or
 - (b) to the requester, to inform them that:

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- (i) one or more of the relevant account holders has not given their approval for disclosure within the time frame referred to in paragraph 4A.11(e); or
 - (ii) a relevant account holder has withdrawn an approval previously given;

in accordance with the data standards.
 - (2) The data holder must make the appropriate approval notification to a joint account holder in relation to an event mentioned in subrule (1):
 - (a) as soon as practicable after the event occurs, unless the joint account holder has selected an alternative schedule of notifications; and
 - (b) through its ordinary means of contacting the joint account holders.
- Note: This subrule is a civil penalty provision (see rule 9.8).
- (3) The data holder must, in accordance with any relevant data standards:
 - (a) provide for alternative notification schedules (including reducing the frequency of notifications or not receiving notifications); and
 - (b) give each joint account holder a means of selecting such an alternative, and of changing a selection.

Note: This subrule is a civil penalty provision (see rule 9.8).

4A.15 Avoidance of harm

A data holder is not liable under these rules for a failure to comply with this Part if it is considered that the relevant act or omission was necessary in order to prevent physical, psychological or financial harm or abuse to any person.

Part 5—Rules relating to accreditation etc.

Division 5.1—Preliminary

5.1 Simplified outline of this Part

A person may apply under this Part to be an accredited person. The CDR Accreditor may accredit a person, under section 56CA of the Act, if satisfied that the person meets the criteria for accreditation specified in this Part. This Part also deals with:

- how applications are dealt with by the CDR Accreditor; and
- obligations of accredited persons; and
- the transfer, suspension, surrender and revocation of accreditations; and
- related functions of the CDR Accreditor.

This Part deals with how entries are added to the Register of Accredited Persons, and how that Register is updated, amended and corrected.

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Division 5.2—Rules relating to accreditation process

Subdivision 5.2.1A—Levels of accreditation

5.1A Levels of accreditation

Accreditation may be at either of the following levels:

- (a) unrestricted;
- (b) sponsored.

5.1B Sponsored accreditation

- (1) This rule applies in relation to a person with sponsored accreditation.
- (2) The person must not make a consumer data request under these rules unless it has a registered sponsor.

Note: This subrule is a civil penalty provision (see rule 9.8).
- (3) The person must not make a consumer data request under these rules otherwise than:
 - (a) to an accredited data recipient under rule 4.7A; or
 - (b) through a registered sponsor acting at its request under the sponsorship arrangement.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (4) The person must not engage a provider in a CDR outsourcing arrangement to collect CDR data from a CDR participant on its behalf.

Note: This subrule is a civil penalty provision (see rule 9.8).
- (5) The person must not have a CDR representative.

Note: This subrule is a civil penalty provision (see rule 9.8).
- (6) If the person ceases to have any registered sponsor, then, for paragraph 4.14(1)(e):
 - (a) any collection consents for the person expire; however
 - (b) any use consents and disclosure consents continue in effect.

Note: It is also possible for the accreditation to be suspended or revoked under item 11 of subrule 5.17(1).

- (7) If the person has not had a registered sponsor for a period of 120 days, the accreditation is taken to have been surrendered.

Note: See subrule 4.14(6) and rule 5.23 for the effect of surrender of accreditation.

- (8) For this rule, a sponsor of the person is a **registered sponsor** if:
 - (a) the sponsor has notified the CDR Accreditor in accordance with subrule 5.14(2); and
 - (b) the Registrar has recorded on the Register of Accredited Persons that the person is an affiliate of the sponsor.

Note: If the sponsorship arrangement terminates, the sponsor is no longer a registered sponsor for subrules (2) and (3), even if the Register has not yet been updated to reflect this.

Subdivision 5.2.1—Applying to be accredited person

5.2 Applying to be an accredited person

- (1) A person may apply to the CDR Accreditor to be an accredited person.
- (2) The application must:
 - (a) be in the form approved, by the CDR Accreditor, for the purposes of this paragraph (the *approved form*); and
 - (aa) indicate the level of accreditation that is sought; and
 - (b) include any documentation or other information required by the approved form; and
 - (c) state:
 - (i) the applicant's addresses for service; or
 - (ii) if the applicant is a foreign entity:
 - (A) the applicant's local agent; and
 - (B) the local agent's addresses for service; and
 - (d) describe the sorts of goods or services using CDR data that the applicant intends to offer to CDR consumers if they are accredited; and
 - (e) if the applicant is not a person who was specified in a designation instrument (see paragraph 56AC(2)(b) of the Act)—indicate whether it is or expects to be the data holder of any CDR data that is specified in a designation instrument.

Note 1: For paragraph (c), see rule 1.7 for the meaning of “addresses for service”. The physical address for service could be a registered office (within the meaning of the *Corporations Act 2001*).

Note 2: For paragraph (c), changes to the addresses for service must be notified in accordance with paragraph 5.14(1)(c). Documents may be served on an applicant in accordance with regulation 12 of the *Competition and Consumer Regulations 2010* by the Commission, or in accordance with section 28A of the *Acts Interpretation Act 1901* and section 9 of the *Electronic Transactions Act 1999*.

Subdivision 5.2.2—Consideration of application to be accredited person

5.3 CDR Accreditor may request further information

- (1) The CDR Accreditor may request that the accreditation applicant provide further information to support the application.
- (2) Without limiting subrule (1), the CDR Accreditor may request the further information:
 - (a) in writing; or
 - (b) in an interview with the CDR Accreditor; or
 - (c) by phone, email, videoconferencing or any other form of electronic communication.

Note: If the accreditation applicant does not provide the further information as requested under this rule, the CDR Accreditor might not be in a position to be satisfied, under section 56CA of the Act, that the applicant meets the criteria for accreditation.

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5.4 CDR Accreditor may consult

- (1) When making a decision under this Part, the Data Recipient Accreditor may consult with:
 - (a) other Commonwealth, State or Territory authorities as relevant, including, but not limited to:
 - (i) the Information Commissioner; and
 - (ii) the Australian Securities and Investments Commission; and
 - (iii) the Australian Prudential Regulation Authority; and
 - (iv) the Australian Financial Complaints Authority Limited; and
 - (b) similar authorities of foreign jurisdictions; and
 - (c) an authority specified for the purposes of this rule in a sector Schedule.
- (2) The functions of the Australian Prudential Regulation Authority include providing the Data Recipient Accreditor with advice or assistance if consulted in accordance with this rule.
- (3) The Australian Securities and Investments Commission may disclose information as reasonably necessary in order to provide the Data Recipient Accreditor with advice or assistance if consulted in accordance with this rule.

5.5 Criteria for accreditation

Note: Under subsection 56CA(1) of the Act, the CDR Accreditor may, in writing, accredit a person if the CDR Accreditor is satisfied that the person meets the criteria for accreditation specified in the consumer data rules.

The criterion for accreditation is that the accreditation applicant:

- (a) would, if accredited, be able to comply with the obligations set out in rule 5.12; or
- (b) where a sector Schedule sets out criteria for streamlined accreditation in relation to the relevant designated sector—meets those criteria.

5.6 Accreditation decision—accreditation number

The CDR Accreditor must, if it accredits an accreditation applicant, give the applicant a unique number by which it may be identified as an accredited person (their *accreditation number*).

5.7 Accreditation decision—notifying accreditation applicant

- (1) The CDR Accreditor must notify an accreditation applicant, in writing, as soon as practicable after making a decision to accredit, or refuse to accredit, the applicant under subsection 56CA(1) of the Act.
- (2) If the Accreditor decided to accredit the applicant, the notice must include the following:
 - (a) that fact;
 - (b) the level of accreditation;
 - (c) any conditions that were imposed when the accreditation decision was made;
 - (d) their accreditation number.

Note: For paragraph (c), for conditions on accreditations, see rule 5.10.

- (3) If the Accreditor decided not to accredit the applicant, the notice must include the following:
- (a) that fact;
 - (b) the applicant's rights to have the decision to refuse reviewed by the Administrative Appeals Tribunal.

5.8 When accreditation takes effect

An accreditation takes effect when the fact that the CDR Accreditor has decided to accredit the person is included in the Register of Accredited Persons.

5.9 Default conditions on accreditation

An accreditation is subject to the conditions set out in Schedule 1.

5.10 Other conditions on accreditation

- (1) The CDR Accreditor may, in writing:
 - (a) impose any other condition on an accreditation; and
 - (b) vary or remove any conditions imposed under this rule or rule 5.9.
- (1A) The CDR Accreditor may exercise a power under subrule (1):
 - (a) at the time of accreditation under subsection 56CA(1) of the Act; or
 - (b) at any time after accreditation.
- (2) Before exercising a power under this rule, the Accreditor must:
 - (a) inform the accreditation applicant or accredited person, as appropriate, of the proposed imposition or variation; and
 - (b) give the accreditation applicant or accredited person, as appropriate, a reasonable opportunity to be heard in relation to the proposal.

Note 1: Contravention of a condition could lead to suspension or revocation of accreditation: see items 6 and 7 of the table to rule 5.17.

Note 2: Applications may be made to the Administrative Appeals Tribunal to review a decision under this rule: see paragraph 9.2(a).

- (3) If the reasons for imposing or varying a condition on an existing accreditation are such that, in the opinion of the CDR Accreditor, complying with subrule (2) would create a real risk of:
- (a) harm or abuse to an individual; or
 - (b) adversely impacting the security, integrity or stability of:
 - (i) the Register of Accredited Persons; or
 - (ii) information and communication technology systems that are used by CDR participants to disclose or collect CDR data;
- the Accreditor may impose or vary the condition without complying with that subrule, but must, as soon as practicable, give the accredited person a reasonable opportunity to be heard in relation to the imposition or variation.
- (4) A condition imposed under this rule, or a variation of such a condition, must include the time or date on which it takes effect.

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Example: A condition could take effect from when the accredited person receives notice of it.

(5) The Accreditor:

- (a) may, but need not, give public notice of a condition or variation imposed or removed under this rule; and
- (b) may do so in any way that the Accreditor thinks fit.

Example: The Accreditor could give public notice of a description of the effect of the conditions, rather than of the conditions themselves.

5.11 Notification to accredited person relating to conditions

- (1) The CDR Accreditor must notify the accredited person, in writing, as soon as practicable after the imposition, variation or removal of a condition on an accreditation under rule 5.10.
- (2) The notice must include the following:
 - (a) if a condition is imposed or varied:
 - (i) the condition or the condition as varied;
 - (ii) if applicable—the applicant’s rights to have the decision reviewed by the Administrative Appeals Tribunal; and
 - (b) if a condition is removed—that fact.

Subdivision 5.2.3—Obligations of accredited person

5.12 Obligations of accredited person

- (1) An accredited person must:
 - (a) take the steps outlined in Schedule 2 which relate to protecting CDR data from:
 - (i) misuse, interference and loss; and
 - (ii) unauthorised access, modification or disclosure; and
 - (b) meet the internal dispute resolution requirements in relation to one or more designated sectors; and
 - (c) meet the external dispute resolution requirements for each designated sector in which the person operates; and
 - (d) have addresses for service; and
 - (e) if the applicant is a foreign entity—have a local agent that has addresses for service; and
 - (f) ensure that it is licensed or otherwise authorised to use any CDR logo, including as required by the data standards.

Note 1: See sector Schedules for how this provision might operate differently for different designated sectors.

Note 2: For the banking sector, see clause 7.4 of Schedule 3.

Note 3: For paragraph (a), the steps outlined in Schedule 2 relate to privacy safeguard 12 (see subsection 56EO(1) of the Act and rule 7.11 of these rules).

Note 4: For paragraph (b), see rule 1.7 for the meaning of “meet the internal dispute resolution requirements”. See also:

- for the banking sector and non-bank lenders sector—clause 5.1 of Schedule 3;
- for the energy sector—clause 5.1 of Schedule 4.

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Note 5: For paragraph (c), see rule 1.7 for the meaning of “meet the external dispute resolution requirements”. See also:

- for the banking sector and non-bank lenders sector—clause 5.2 of Schedule 3;
- for the energy sector—clause 5.2 of Schedule 4.

Note 6: For paragraphs (d) and (e), see rule 1.7 for the meaning of “addresses for service”.

Note 7: This subrule is a civil penalty provision (see rule 9.8).

(2) An accredited person must:

- be, having regard to the fit and proper person criteria, a fit and proper person to be accredited at that level; and
- have adequate insurance, or a comparable guarantee, in light of the risk of CDR consumers not being properly compensated for any loss that might reasonably be expected to arise from a breach of obligations under any of the following to the extent that they are relevant to the management of CDR data:
 - the Act;
 - any regulation made for the purposes of the Act;
 - these rules.

5.13 Accredited person must comply with conditions

An accredited person must comply with the conditions of their accreditation.

Note 1: This rule applies to the default conditions set out in Schedule 1 and any conditions imposed or varied under rule 5.10.

Note 2: This rule is a civil penalty provision (see rule 9.8).

5.14 Notification requirements

General

- (1) An accredited person must notify the CDR Accreditor within 5 business days if any of the following occurs:
- any material change in its circumstances that might affect its ability to comply with its obligations under this Subdivision;
 - any matter that could be relevant to a decision as to whether the person is, having regard to the fit and proper person criteria, a fit and proper person to be accredited at the person’s level of accreditation;
 - there is a change to, or the accredited person becomes aware of an error in, any of the information provided to the Accreditor to be entered on the Register under rule 5.24.

Note: This subrule is a civil penalty provision (see rule 9.8).

Sponsors

- (2) An accredited person must notify the CDR Accreditor as soon as practicable, but no later than 5 business days after either of the following occurs:
- the person becomes a sponsor of an affiliate;
 - where the accredited person is a sponsor of an affiliate—the sponsorship arrangement is suspended, expires, or is terminated.

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CDR representative principals

- (3) An accredited person that enters into a CDR representative arrangement as the CDR representative principal must notify the CDR Accreditor that they have done so as soon as practicable, but no later than 5 business days after the event.
- (4) The notification must include the following:
 - (a) the date the arrangement was entered into;
 - (b) the name and address of the CDR representative;
 - (c) the ABN of the CDR representative or, if it is a foreign entity, another unique business identifier;
 - (d) the names and contact details of the directors or any persons responsible for the CDR representative;
 - (e) the nature of any goods and services to be provided by the CDR representative using CDR data.
- (5) An accredited person that is the CDR representative principal in a CDR representative arrangement must notify the CDR Accreditor if the arrangement terminates or otherwise ends as soon as practicable, but no later than 5 business days after the event.

5.15 Provision of information to the Accreditation Registrar

The CDR Accreditor must:

- (a) notify the Accreditation Registrar, in writing, as soon as practicable after:
 - (i) an accreditation; or
 - (ii) the imposition, variation or removal of a condition on an accreditation; or
 - (iii) a surrender, suspension or an extension of a suspension; or
 - (iv) a suspension ceasing to have effect; or
 - (v) a revocation of an accreditation; or
 - (vi) a notification under paragraph 5.14(1)(c), or subrule 5.14(2), (3) or (5); and
- (b) include in the notice:
 - (i) any information the Registrar is required to enter into the Register of Accredited Persons; and
 - (ii) any information the Registrar requires in order to amend an entry in the Register.

Subdivision 5.2.4—Transfer, suspension, surrender and revocation of accreditation

5.16 Transfer of accreditation

An accreditation cannot be transferred.

5.17 Revocation, suspension, or surrender of accreditation

- (1) The table has effect:

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Grounds for revocation, suspension and surrender of accreditation as accredited person		
	If:	the CDR Accreditor:
1	an accredited person applies to the CDR Accreditor, in writing, to surrender their accreditation;	must, in writing, accept that surrender.
2	the CDR Accreditor is satisfied that an accredited person's accreditation was granted as the result of statements or other information, by the accreditation applicant or by any other person, that were false or misleading in a material particular;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
3	subject to items 6 and 7, the CDR Accreditor is satisfied that the accredited person or an associated person of the accredited person has been found to have contravened a law relevant to the management of CDR data; Note: See rule 1.7 for the meaning of "associated person" and "law relevant to the management of CDR data".	may, in writing: (a) suspend; or (b) revoke; the accredited person's accreditation, as appropriate.
4	the CDR Accreditor reasonably believes that revocation or suspension is necessary in order to: (a) protect consumers; or (b) protect the security, integrity and stability of: (i) the Register of Accredited Persons or the associated database; or (ii) information and communication technology systems that are used by CDR participants to disclose or collect CDR data; Note: See rule 1.7 for the meaning of "law relevant to the management of CDR data".	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
5	the following are satisfied: (a) the accredited person, at the time of the accreditation, satisfied a condition that is relevant to a designated sector and is specified for this item in the sector Schedule; (b) the accredited person no longer satisfies the condition;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
6	the CDR Accreditor reasonably believes that the accredited person has or may have contravened: (a) an offence provision of the Act or a civil penalty provision of the Act or these rules; or (b) one or more data standards;	may, in writing, suspend the person's accreditation.

Part 5 Rules relating to accreditation etc.

Division 5.2 Rules relating to accreditation process

Section 5.17

Grounds for revocation, suspension and surrender of accreditation as accredited person		
	If:	the CDR Accrerator:
7	the accredited person has been found to have contravened: (a) an offence provision of the Act or a civil penalty provision of the Act or these rules; or (b) one or more data standards;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
8	the CDR Accrerator is no longer satisfied that the accredited person is, having regard to the fit and proper person criteria, a fit and proper person to be accredited at the person's level of accreditation;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
9	a relevant contract between the accredited person and a CDR consumer has been found to have a term that is unfair;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
10	the CDR Accrerator reasonably believes that a relevant contract between the accredited person and a CDR consumer has a term that is unfair;	may, in writing, suspend the person's accreditation.
11	for a person with sponsored accreditation: (a) a sponsorship arrangement expires or terminates; or (b) the accreditation of a sponsor is suspended or revoked; or (c) the person has had a sponsor but now has none;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.

(2) For items 9 and 10:

- (a) **relevant contract** means a standard form contract that is a consumer contract or a small business contract within the meaning of section 23 of the Australian Consumer Law that arises from a request by a CDR consumer under subrule 4.3(1); and
- (b) **unfair** has the meaning given by section 24 of the Australian Consumer Law; and
- (c) **Australian Consumer Law** has the meaning given by section 130 of the Act.

5.18 Revocation of accreditation—process

- (1) Before revoking an accredited person's accreditation under rule 5.17, the CDR Accreditor must:
 - (a) inform the accredited person and any associate of:
 - (i) the proposed revocation; and
 - (ii) when it is proposed to take effect; and
 - (b) give the accredited person and any associate a reasonable opportunity to be heard in relation to the proposed revocation.
- (2) If the Accreditor revokes an accredited person's accreditation under rule 5.17, the Accreditor must notify the person and any associate, in writing, of the revocation.

Note: The decision to revoke an accredited person's accreditation can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).
- (3) For this rule, each of the following is an *associate* of the accredited person:
 - (a) any sponsor;
 - (b) any affiliate.

5.19 Suspension of accreditation—duration

- (1) Without limitation, the CDR Accreditor, under rule 5.17:
 - (a) may suspend an accreditation:
 - (i) for a period of time that ends at a specified date; or
 - (ii) for a period of time that ends with the occurrence of a specified event; and
 - (b) may, subject to the same conditions on which an accreditation was suspended, extend the suspension.
- (2) The CDR Accreditor may, in writing, at any time, remove a suspension.

5.20 General process for suspension of accreditation or extension of suspension

- (1) This rule applies subject to rule 5.21.
- (2) Before suspending an accreditation under rule 5.17, or extending a suspension, the CDR Accreditor must:
 - (a) inform the accredited person of:
 - (i) the proposed suspension or extension (including the proposed duration); and
 - (ii) in the case of a suspension—when it is proposed to take effect; and
 - (b) give the accredited person a reasonable opportunity to be heard in relation to the proposed suspension or extension.
- (3) If the Accreditor suspends an accredited person's accreditation under rule 5.17, the Accreditor must notify the person, in writing, of the suspension and the period of the suspension.

Note: The decision to suspend an accredited person's accreditation can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).

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- (4) If the Accreditor extends a suspension, the Accreditor must notify the person, in writing, of the extension and the period of the suspension as extended.

Note: The decision to extend a suspension can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).

5.21 Process for urgent suspensions or extensions

- (1) This rule applies if:
- (a) the CDR Accreditor proposes to suspend an accreditation, or extend a suspension, on urgent grounds; and
 - (b) in the opinion of the CDR Accreditor, because of the urgency, it is not possible to comply with rule 5.20 prior to the suspension or extension.
- (2) The Accreditor may suspend the accreditation, or extend the suspension, without first complying with rule 5.20.
- (3) However, as soon as practicable after suspending the accreditation or extending the suspension, the Accreditor must:
- (a) inform the accredited person of the suspension or extension; and
 - (b) give the accredited person a reasonable opportunity to be heard in relation to whether the suspension should be removed.

5.22 When surrender, revocation or suspension takes effect

A surrender, revocation or suspension takes effect when the fact that the accreditation has been surrendered, revoked or suspended is included in the Register of Accredited Persons.

5.23 Consequences of surrender, suspension or revocation of accreditation

Application of rule

- (1) This rule applies if an accredited person's accreditation is surrendered, suspended or revoked.

Ongoing obligations following surrender, suspension or revocation of an accreditation

- (2) If the person's accreditation has been surrendered or revoked, the person must comply with the following provisions as if the person still were an accredited data recipient:
- (a) section 56EI of the Act (privacy safeguard 6);
 - (b) section 56EJ of the Act (privacy safeguard 7);
 - (c) section 56EO of the Act (privacy safeguard 12).

Note: This subrule is a civil penalty provision (see rule 9.8).

- (3) The person:
- (a) must not, after the revocation or surrender, or while the accreditation is suspended, seek to collect any, or any further, CDR data under these rules; and

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- (b) if the person has collected any CDR data under these rules—must notify each person who has consented to the accredited person collecting CDR data for which they are a CDR consumer:
 - (i) that their accreditation has been surrendered, suspended or revoked, as the case may be; and
 - (ii) in the case of a suspension—of the following:
 - (A) that any consents to collect and to use CDR data may be withdrawn at any time; and
 - (B) the effect of any such withdrawal.

Note 1: If an accredited person's accreditation is suspended, they remain an accredited person, and continue to be subject to the obligations of an accredited person whose accreditation has not been suspended.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (4) If:
 - (a) the person's accreditation has been surrendered or revoked; and
 - (b) the person has collected CDR data under these rules; and
 - (c) the person is not required to retain that CDR data by or under an Australian law or a court/tribunal order; and
 - (d) the CDR data does not relate to any current or anticipated:
 - (i) legal proceedings; or
 - (ii) dispute resolution proceedings;to which the person is a party; and
 - (e) where there is a CDR consumer for the CDR data, the CDR data does not relate to any current or anticipated:
 - (i) legal proceedings; or
 - (ii) dispute resolution proceedings;to which the CDR consumer is a party;

the person must delete or de-identify that data by taking the steps specified in rule 7.12 or 7.13, as appropriate.

Note 1: In addition:

- if an accreditation is revoked or surrendered:
 - any consents to collect and use CDR data expire: see subrules 4.14(6) and 4.20K(2); and
 - any authorisations to disclose CDR data expire: see subrule 4.26(2); and
- if an accreditation is suspended, the accredited person is not able to collect data while the suspension is in effect.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (5) For the purposes of paragraph (4)(e), if paragraphs (4)(a) to (d) apply in relation to the CDR data of the CDR consumer, the person may:
 - (a) request the CDR consumer to state whether or not such proceedings are current or anticipated; and
 - (b) rely on that statement.

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Division 5.3—Rules relating to Register of Accredited Persons

5.24 Maintaining the Register of Accredited Persons

The Accreditation Registrar must enter the following details on the Register of Accredited Persons:

- (a) the following details about the accredited person:
 - (i) the accredited person's name;
 - (ii) the accredited person's accreditation number;
 - (iii) the accredited person's addresses for service;
 - (iv) if the accredited person is a foreign entity—the name and addresses for service of the accredited person's local agent;
- (b) the level of the person's accreditation;
- (ba) for a person with sponsored accreditation—any sponsor;
- (bb) for a sponsor—each affiliate;
- (bc) the name, ABN and business address of any CDR representative;
- (c) either:
 - (i) any conditions on the accreditation; or
 - (ii) if the CDR Accreditor so directs—a description of the effect of any such conditions;
- (d) if the accreditation has been revoked—that fact and the date of the revocation;
- (e) if the accreditation has been suspended—that fact and the period of the suspension;
- (f) if a decision to suspend an accreditation has been revoked, or the suspension otherwise is no longer in effect:
 - (i) that fact; and
 - (ii) the date from which the accreditation is once more in effect;
- (g) if the accreditation is surrendered—that fact and the date of the surrender;
- (h) each brand name under which the accredited person provides goods or services where, in order to provide the good or service, the accredited person needs to access a CDR consumer's CDR data;
- (i) a hyperlink to each of the following:
 - (i) the relevant web site address of the accredited person;
 - (ii) the accredited person's CDR policy;
 - (iii) if the accredited person has a CDR policy for a brand name under which the accredited person provides goods or services where, in order to provide the good or service, the accredited person needs to access a CDR consumer's CDR data—that policy.

Note 1: For paragraphs (a), see rule 1.7 for the meaning of “addresses for service”.

Note 3: For paragraphs (a) to (g), see rule 5.15.

5.25 Other information to be kept in association with Register of Accredited Persons

- (1) The Accreditation Registrar must create and maintain, in association with the Register of Accredited Persons, a database that includes such information as the

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Accreditation Registrar considers is required in order for requests under these rules to be processed in accordance with these rules and the data standards, including:

- (a) a list of data holders; and
- (b) for each data holder, where relevant:
 - (i) each brand name under which the data holder offers products in relation to which consumer data requests may be made under these rules; and
 - (ii) a hyperlink to:
 - (A) the relevant web site address of the data holder; and
 - (B) the data holder's CDR policy; and
 - (C) if the data holder has a CDR policy for a brand name under which the data holder offers products in relation to which consumer data requests may be made under these rules—that policy; and
 - (iii) the universal resource identifier for the data holder's product data request service.

Accreditation Registrar may request further information

- (2) The Accreditation Registrar may:
 - (a) request a data holder or accredited person to provide the information referred to in subrule (1), or updates to that information; and
 - (b) specify the form in which the information or updates are to be provided.
- (3) The data holder or accredited person must comply with a request under subrule (2).

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Obligation to inform Accreditation Registrar to keep information up-to-date

- (4) Subrule (5) applies if a data holder or an accredited person:
 - (a) has provided information to the Accreditation Registrar in accordance with this rule; and
 - (b) becomes aware that the information:
 - (i) is out of date; or
 - (ii) needs to be amended in order for product data requests and consumer data requests made under these rules to be processed in accordance with these rules and the data standards.
- (5) The data holder or accredited person, as appropriate, must inform the Accreditation Registrar of the amendment that should be made to the database in the form approved by the Registrar for the purposes of this subrule and as soon as practicable after the data holder or accredited person becomes aware of either of the matters mentioned in paragraph (4)(b).

Civil penalty:

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- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

5.26 Amendment and correction of entries in Register of Accredited Persons and database

The Accreditation Registrar:

- (a) must, as soon as practicable after receiving information from the CDR Accreditor that must be entered on the Register, enter that information on the Register; and
- (b) must, as soon as practicable after receiving information from the Data Recipient Accreditor that requires the Registrar to update information on the Register, update the Register; and
- (c) may, to the extent the Accreditation Registrar considers necessary, amend the database referred to in subrule 5.25(1) to reflect any amendment the Registrar has been informed of in accordance with rule 5.25; and
- (d) may make clerical amendments to entries in the Register or database as appropriate to ensure the accuracy of the Register or database.

5.27 Publication or availability of specified information in the Register of Accredited Persons

For paragraph 56CE(4)(c) of the Act, the Accreditation Registrar must, in the manner the Registrar thinks fit, make the following information publicly available:

- (a) the information referred to in rule 5.24;
- (b) the information referred to in paragraphs 5.25(1)(a) and (b).

5.28 Making information available to the Commission, the Information Commissioner and the Data Recipient Accreditor

The Accreditation Registrar must make available to the Commission, the Information Commissioner and the CDR Accreditor, on request:

- (a) all or part of the Register of Accredited Persons or the associated database; or
- (b) specified information in the Register or the associated database; or
- (c) any information held by the Registrar in relation to the Register or the associated database.

5.29 Publication of specified information by the Commission

The Commission may publish information made available to it by the Accreditation Registrar relating to the performance and availability of systems to respond to requests under these rules.

5.30 Other functions of Accreditation Registrar

For paragraph 56CL(1)(b) of the Act, the other functions of the Accreditation Registrar include the following:

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- (a) enabling information included in the Register of Accredited Persons and associated database to be communicated to data holders and accredited persons to facilitate the making and processing of requests under these rules in accordance with these rules and the data standards;
- (b) maintaining the security, integrity and stability of the Register and associated database, including undertaking or facilitating any testing by CDR participants for that purpose;
- (c) requesting a data holder or an accredited person to do specified things where that is necessary or convenient in order for the Accreditation Registrar to perform its functions or exercise its powers;

Example: The Accreditation Registrar could request data holders or accredited persons to undertake and complete testing where it is necessary or convenient for the Registrar to perform its functions under paragraph (b).

- (d) informing the CDR Accreditor of any failure of an accredited person to comply with a condition of its accreditation or to do things requested by the Registrar in the performance of its functions or the exercise of its powers.

Note: The Accreditation Registrar has the power to do all things necessary or convenient to be done for or in connection with the performance of its functions. See subsection 56CL(2) of the Act.

5.31 Obligation to comply with Accreditation Registrar's request

- (1) The Accreditation Registrar may request a data holder or an accredited person to do a specified thing in order to ensure the security, integrity and stability of the Register of Accredited Persons or associated database.
- (2) The data holder or accredited person must comply with such a request.

Note: This subrule is a civil penalty provision (see rule 9.8).

5.32 Automated decision-making—Accreditation Registrar

The Accreditation Registrar may automate processes (including decision-making) under these rules.

5.33 Temporary restriction on use of the Register in relation to data holder

- (1) The Accreditation Registrar may take steps to prevent the Register of Accredited Persons and associated database from being used to make consumer data requests to a data holder, for a period of up to 10 days, if the Accreditation Registrar reasonably believes it is necessary to do so in order to ensure the security, integrity and stability of the Register or associated database.
- (2) The steps taken by the Accreditation Registrar may include amending the information in the associated database relating to a data holder that is used to facilitate the making and processing of requests.
- (3) Before, or as soon as practicable after, taking steps under subrule (1), the Accreditation Registrar must:
 - (a) inform the data holder of the steps to be taken, or that have been taken; and
 - (b) give the data holder a reasonable opportunity to be heard in relation to the matter.

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- (4) Despite anything else in these rules, a data holder is not required to disclose CDR data in response to a request, where responding to the request would require the data holder to use the Register of Accredited Persons or associated database in a way that is not available to the data holder at that time by reason of steps taken under this rule.

5.34 Temporary direction to refrain from processing consumer data requests

- (1) The Accreditation Registrar may, by written notice:
- (a) direct an accredited person not to make consumer data requests; or
 - (b) direct a data holder not to respond to consumer data requests;
- for a period of up to 10 days, if the Accreditation Registrar reasonably believes it is necessary to do so in order to ensure the security, integrity and stability of the Register or associated database.
- (2) The notice must specify:
- (a) whether the direction applies to all consumer data requests or to requests made to a particular data holder or by a particular accredited person; and
 - (b) the period of application.
- (3) Before, or as soon as practicable after, giving a direction, the Accreditation Registrar must give the accredited person or data holder a reasonable opportunity to be heard in relation to the matter.
- (4) Despite anything else in these rules:
- (a) an accredited person must not make a consumer data request contrary to a direction it has received under this rule; and
 - (b) a data holder must not disclose CDR data in response to a consumer data request contrary to a direction it has received under this rule.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Part 6—Rules relating to dispute resolution

6.1 Requirement for data holders—internal dispute resolution

A data holder in relation to a particular designated sector must meet the internal dispute resolution requirements in relation to that sector.

Note 1: See rule 1.7 for the meaning of “meets the internal dispute resolution requirements”.
See also:

- for the banking sector and non-bank lenders sector—clause 5.1 of Schedule 3;
- for the energy sector—clause 5.1 of Schedule 4.

Note 2: An accredited person must also meet those internal dispute resolution requirements: see paragraph 5.12(1)(b).

Note 3: This rule is a civil penalty provision (see rule 9.8).

6.2 Requirement for data holders—external resolution

A data holder must meet the external dispute resolution requirements for each designated sector in which the data the holder operates.

Note 1: See the definition of “recognised external dispute resolution scheme” in subrule 1.7(1), and see subrule 1.7(3) for the interpretation of references to “data holder”.

Note 2: An accredited person must also meet the external dispute resolution requirements: see paragraph 5.12(1)(c). See also:

- for the banking sector and non-bank lenders sector—clause 5.2 of Schedule 3;
- for the energy sector—clause 5.2 of Schedule 4.

Note 3: This rule is a civil penalty provision (see rule 9.8).

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Part 7—Rules relating to privacy safeguards

Division 7.1—Preliminary

7.1 Simplified outline of this Part

The privacy safeguards are an additional protection given to CDR data under Part IVD of the Act. The privacy safeguards apply only to CDR data for which there are one or more CDR consumers (such as required consumer data and voluntary consumer data); they do not apply to CDR data for which there are no CDR consumers (such as required product data and voluntary product data).

Several of the privacy safeguards depend on matters specified in these rules for their operation. This Part sets out the rules that relate to the privacy safeguards.

This Part also sets out some additional civil penalty provisions that protect the privacy or confidentiality of CDR consumers' CDR data.

Division 7.2—Rules relating to privacy safeguards

Subdivision 7.2.1—Rules relating to consideration of CDR data privacy

7.2 Rule relating to privacy safeguard 1—open and transparent management of CDR data

Policy about the management of CDR data

- (1) For paragraph 56ED(3)(b) of the Act, the Information Commissioner may approve a form for a CDR policy.
- (2) For paragraph 56ED(3)(b) of the Act, the CDR entity's CDR policy must be in the form of a document that is distinct from any of the CDR entity's privacy policies.

Additional information for CDR policy

- (3) In addition to the information referred to in subsection 56ED(4) of the Act, the data holder's CDR policy must indicate:
 - (a) whether it accepts requests for:
 - (i) voluntary product data; or
 - (ii) voluntary consumer data; and
 - (b) if so:
 - (i) whether it charges fees for disclosure of such data; and
 - (ii) if it does—how information about those fees can be obtained.
- (4) In addition to the information referred to in subsection 56ED(5) of the Act, the CDR policy of an accredited person who is or who may become an accredited data recipient of CDR data must include the following:
 - (a) a statement indicating the consequences to the CDR consumer if they withdraw a consent to collect and use CDR data;
 - (b) a list of any other accredited persons with whom the accredited person has a sponsorship arrangement;
 - (c) for each such arrangement—the nature of the services one party provides to the other party;
 - (d) a list of the CDR representatives of the accredited person;
 - (e) for each CDR representative—the nature of the goods and services that the CDR representative provides to customers using CDR data;
 - (f) a list of the direct and indirect OSPs of the accredited person and of any CDR representative (whether based in Australia or based overseas, and whether or not any is an accredited person);
 - (g) for each such service provider:
 - (i) the nature of the services it provides;
 - (ii) the CDR data or classes of CDR data that may be disclosed to it or collected by it;
 - (h) if the accredited person wishes to undertake general research using the CDR data:
 - (i) a description of the research to be conducted;

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- (ii) a description of any additional benefit to be provided to the CDR consumer for consenting to the use;
- (i) if the accredited person, any CDR representative of the accredited person, or any direct or indirect OSP of either the accredited person or any of their CDR representatives, is likely to disclose CDR data of a kind referred to in subsection 56ED(5) of the Act to a direct or indirect OSP that:
 - (i) is based overseas; and
 - (ii) is not an accredited person;—the countries in which such direct or indirect OSPs are likely to be based if it is practicable to specify those countries in the policy;
- (j) if applicable—the following information about de-identification of CDR data that is not redundant data:
 - (i) how the accredited person uses CDR data that has been de-identified in accordance with the CDR data de-identification process to provide goods or services to CDR consumers;
 - (ii) the further information specified in subrule (5);
- (k) the following information about deletion of redundant CDR data:
 - (i) when it deletes redundant data;
 - (ii) how a CDR consumer may elect for this to happen;
 - (iii) how it deletes redundant data;
- (l) if applicable—the following information about de-identification of redundant CDR data:
 - (i) if the de-identified data is used by the accredited person—examples of how the accredited person ordinarily uses de-identified data; and
 - (ii) the further information specified in subrule (5);
- (m) the following information about the CDR consumer’s election to delete their CDR data:
 - (i) information about how the election operates and its effect;
 - (ii) information about how CDR consumers can exercise the election.

Note 1: For paragraph (i), if the direct or indirect OSP is an accredited person who is based overseas, paragraph 56ED(5)(f) of the Act requires that accredited person to include similar information in the person’s CDR policy.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (5) For subparagraphs (4)(j)(ii) and (l)(ii), the further information is:
 - (a) how the accredited person who is or who may become an accredited data recipient of CDR data de-identifies CDR data, including a description of techniques that it uses to de-identify data; and
 - (b) if the accredited person ordinarily discloses (by sale or otherwise) de-identified data to one or more other persons:
 - (i) that fact; and
 - (ii) to what classes of person it ordinarily discloses such data; and
 - (iii) why it so discloses such data.
- (6) In addition to the information referred to in paragraphs 56ED(4)(b) and (5)(d) of the Act, the CDR policy of the CDR entity (the data holder or accredited person who is or who may become an accredited data recipient of CDR data) must

include the following information in relation to the CDR entity's internal dispute resolution processes:

- (a) where a CDR consumer complaint can be made;
- (b) how a CDR consumer complaint can be made;
- (c) when a CDR consumer complaint can be made;
- (d) when acknowledgement of a CDR consumer complaint can be expected;
- (e) what information is required to be provided by the complainant;
- (f) the CDR entity's process for handling CDR consumer complaints;
- (g) time periods associated with various stages in the CDR consumer complaint process;
- (h) options for redress;
- (i) options for review, both internally (if available) and externally.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (7) If an accredited person is who is or who may become an accredited data recipient of CDR data proposes to store CDR data other than in Australia or an external territory, its CDR policy must specify any country in which they propose to store CDR data.

Note: This subrule is a civil penalty provision (see rule 9.8).

Availability of policy

- (8) For paragraph 56ED(7)(b) of the Act, the CDR entity must make its CDR policy readily available through each online service by means of which the CDR entity, or a CDR representative of the CDR entity, ordinarily deals with CDR consumers.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (9) For subsection 56ED(8) of the Act, if a copy of the CDR entity's policy is requested by a CDR consumer, the CDR entity must give the CDR consumer a copy:

- (a) electronically; or
- (b) in hard copy;

as directed by the consumer.

Note: This subrule is a civil penalty provision (see rule 9.8).

7.3 Rule relating to privacy safeguard 2—anonymity and pseudonymity

- (1) For subsection 56EE(3) of the Act, subsection 56EE(1) of the Act does not apply if:

- (a) the accredited person who is or may become an accredited data recipient of CDR data is required or authorised by law or by a court/tribunal order to deal with an identified CDR consumer in relation to particular CDR data; or
- (b) in relation to particular CDR data, it is impracticable for the accredited data recipient to deal with a CDR consumer that has not been identified.

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- (2) A CDR representative principal breaches this subrule if its CDR representative fails to comply with section 56EE of the Act in relation to service data of a CDR consumer as if it were an accredited person.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (3) For subrule (2), it is irrelevant whether the action of the CDR representative in relation to the service data is in accordance with the CDR representative arrangement.

7.3A Rule relating to privacy safeguard 4—destruction of unsolicited data— CDR representative

- (1) A CDR representative principal breaches this subrule if its CDR representative fails to comply with section 56EG of the Act in relation to service data of a CDR consumer as if;
- (a) it were an accredited person; and
 - (b) it had collected the service data.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (2) For subrule (1), it is irrelevant whether the action of the CDR representative in relation to the service data is in accordance with the CDR representative arrangement.

7.3B Rule relating to privacy safeguard 4—destruction of unsolicited data— outsourced service providers

- (1) An accredited person breaches this subrule if a direct or indirect OSP of:
- (a) the accredited person; or
 - (b) a CDR representative of the accredited person;
- fails to comply with section 56EG of the Act in relation to service data of a CDR consumer as if:
- (c) it were an accredited person; and
 - (d) it had collected the service data.

Note 1: See rule 1.10 for the definition of “service data” in relation to a CDR outsourcing arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (2) For subrule (1), it is irrelevant whether the action of the direct or indirect OSP in relation to the service data is in accordance with the CDR outsourcing arrangement.

Subdivision 7.2.2—Rules relating to collecting CDR data

7.4 Rule relating to privacy safeguard 5—notifying of the collection of CDR data

- (1) For section 56EH of the Act, and subject to subrule (2), an accredited data recipient that collected the CDR data in accordance with section 56EF of the Act as a result of a collection consent must update the person's consumer dashboard as soon as practicable to indicate:
 - (a) what CDR data was collected; and
 - (b) when the CDR data was collected; and
 - (c) the CDR participant for the CDR data from which the CDR data was collected.

- (2) Where the CDR data was collected by a sponsor on behalf of an affiliate:
 - (a) the sponsor is not required to provide the consumer dashboard; and

Note: The affiliate, as an accredited person that makes the consumer request through the sponsor, is required to provide the consumer dashboard under subrule 1.14(1).

- (b) the sponsor and the affiliate may choose which of them will be responsible for updating the consumer's dashboard in accordance with subrule (1); and
- (c) the dashboard must also indicate that the CDR data was collected by the sponsor on behalf of the affiliate.

Note 1: See also paragraph 1.14(3)(ha).

Note 2: See subrule 1.16(5) for how this rule applies where the CDR data is collected by an accredited person acting as a direct or indirect OSP to the accredited data recipient.

Subdivision 7.2.3—Rules relating to dealing with CDR data

7.5 Meaning of *permitted use or disclosure and relates to direct marketing*

Permitted uses or disclosures that do not relate to direct marketing

- (1) For these rules, for an accredited data recipient that has collected CDR data under a consumer data request under Part 4 on behalf of a CDR consumer, each of the following is a ***permitted use or disclosure***:
 - (a) using the CDR consumer's CDR data to provide goods or services requested by the CDR consumer (the existing goods or services):
 - (i) in compliance with the data minimisation principle; and
 - (ii) in accordance with a current use consent from the CDR consumer, other than a direct marketing consent;
 - (b) in accordance with a current de-identification consent, de-identifying the CDR consumer's CDR data in accordance with the CDR data de-identification process and:
 - (i) using the de-identified data for general research; or
 - (ii) disclosing (including by selling) the de-identified data;
 - (c) directly or indirectly deriving CDR data from the collected CDR data in order to use the data in accordance with paragraph (a) or (b);
 - (d) for the purpose of providing the existing goods or services—disclosing, to the CDR consumer, any of their CDR data;

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- (e) subject to rule 7.5A, disclosing the CDR consumer's CDR data in accordance with a current disclosure consent;
 - (f) disclosing the CDR consumer's CDR data to:
 - (i) a direct or indirect OSP of the accredited data recipient; or
 - (ii) the other party in a sponsorship arrangement;where the disclosure is made:
 - (iii) for the purpose of doing the things referred to in paragraphs (a) to (e); and
 - (iv) to the extent reasonably needed to do those things;
 - (g) disclosing (by sale or otherwise), to any person, CDR data that has been de-identified in accordance with the CDR data de-identification process on becoming redundant data;
 - (h) where the accredited data recipient collected the CDR data on behalf of another accredited person in its capacity as a direct or indirect OSP of that person—using or disclosing the CDR data in accordance with the relevant CDR outsourcing arrangement;
 - (i) disclosing CDR data to an accredited person if the CDR consumer has:
 - (i) given the accredited person:
 - (A) a collection consent to collect the CDR data from the accredited data recipient; and
 - (B) a use consent; and
 - (ii) given the accredited data recipient an AP disclosure consent to disclose the CDR data to the accredited person;
 - (j) where the accredited data recipient is a CDR representative principal—disclosing the CDR data to a CDR representative for the purposes of a use or disclosure by the CDR representative that would be a permitted use or disclosure under paragraphs (a) to (g) or (i), if the CDR representative were an accredited data recipient that had collected the CDR data under the consumer data request.
- (2) However:
- (a) a disclosure is not a **permitted use or disclosure** unless it is done in accordance with the data standards; and
 - (b) none of the uses of CDR data referred to in subrule 4.12(3) is a **permitted use or disclosure**.

Note: The same list of uses appears in subrule 4.20F(3).

Permitted uses or disclosures that relate to direct marketing

- (3) For these rules, a use or disclosure of the CDR consumer's CDR data by an accredited data recipient that is not itself a permitted use or disclosure under subrule (1) is nevertheless a **permitted use or disclosure** that ***relates to direct marketing*** if it consists of one of the following:
- (a) in accordance with a direct marketing consent from the CDR consumer—sending to the CDR consumer:
 - (i) information about upgraded or alternative goods or services to existing goods or services; or
 - (ii) an offer to renew existing goods or services when they expire; or

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- (iii) information about the benefits of existing goods or services; or
- (iv) information about other goods or services provided by another accredited person, if the accredited data recipient:
 - (A) reasonably believes that the CDR consumer might benefit from those other goods or services; and
 - (B) sends such information to the CDR consumer on no more than a reasonable number of occasions;
- (b) in accordance with a direct marketing consent from the CDR consumer—disclosing CDR data to an accredited person to enable the accredited person to provide the goods or services referred to in subparagraph (a)(iv), if the CDR consumer has:
 - (i) given the accredited person:
 - (A) a collection consent to collect the CDR data from the accredited data recipient; and
 - (B) a use consent; and
 - (ii) given the accredited data recipient a disclosure consent to disclose the CDR data to the accredited person;
- (c) using the CDR data in a way and to the extent that is reasonably needed in order to send to the CDR consumer something permitted under paragraph (a) or paragraph (b) (including by analysing the CDR data to identify the appropriate information to send);
- (d) disclosing the CDR consumer's CDR data to a direct or indirect OSP of the accredited data recipient:
 - (i) for the purpose of doing the things referred to in paragraphs (a), (b) or (c); and
 - (ii) to the extent reasonably needed to do those things;
- (e) where the accredited data recipient is a CDR representative principal—disclosing the CDR data to a CDR representative for the purposes of a use or disclosure by the CDR representative that would be a permitted use or disclosure under paragraph (a), (c) or (d) if the CDR representative were an accredited data recipient that had collected the CDR data under the consumer data request.

7.5A Limitation to disclosures of CDR data under a disclosure consent

- (1) Despite paragraph 7.5(1)(e), disclosure of CDR data to an accredited person under an AP disclosure consent is not a ***permitted use or disclosure*** until the earlier of the following:
 - (a) 1 July 2021;
 - (b) the day the Data Standards Chair makes the data standard about the matter referred to in subparagraph 8.11(1)(c)(iii).
- (2) Despite paragraph 7.5(1)(e), disclosure of CDR data to a trusted adviser under a TA disclosure consent is not a ***permitted use or disclosure*** until the earlier of the following:
 - (a) 1 February 2022;
 - (b) the day the Data Standards Chair makes the data standard about the matter referred to in subparagraph 8.11(1)(c)(iv).

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- (3) Despite paragraph 7.5(1)(e), disclosure of a CDR insight under an insight disclosure consent is not a ***permitted use or disclosure*** until the earlier of the following:
 - (a) 1 February 2022;
 - (b) the day the Data Standards Chair makes the data standard about the matters referred to in subrule 8.11(1A).
- (4) Despite paragraph 7.5(1)(e), disclosure of a CDR insight under an insight disclosure consent is not a ***permitted use or disclosure*** if the CDR insight includes or reveals sensitive information within the meaning of the *Privacy Act 1988*.
- (5) Despite paragraph 7.5(1)(e), disclosure of CDR data in accordance with a business consumer disclosure consent is not a ***permitted use or disclosure*** until earlier of the following:
 - (a) if the Data Standards Chair makes data standards about the matters referred to in both of subparagraphs 8.11(1)(a)(iv) and subparagraph 8.11(1)(c)(vi) before 1 December 2023—the day on which the last of those standards is made;
 - (b) 1 December 2023.

7.6 Use or disclosure of CDR data by accredited data recipients and related persons

- (1) Subject to the Act and these rules, an accredited data recipient that has collected CDR data under a consumer data request under Part 4 made on behalf of a CDR consumer must not use or disclose it, or CDR data directly or indirectly derived from it, other than for a permitted use or disclosure (whether or not one that relates to direct marketing).

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) For this rule:
 - (a) any use or disclosure of service data by a direct or indirect OSP of:
 - (i) an accredited data recipient; or
 - (ii) a CDR representative of the accredited data recipient; is taken to have been by the accredited data recipient; and
 - (b) it is irrelevant whether the use or disclosure is in accordance with the relevant CDR outsourcing arrangement.

Note: See rule 1.10AA for the definition of “service data” in relation to a direct or indirect OSP.

- (3) For this rule, any CDR data collected by an accredited person at the request of an affiliate is taken also to have been collected by the affiliate.
- (4) For this rule:
 - (a) any use or disclosure of service data by a CDR representative is taken to have been by the CDR representative principal; and
 - (b) it is irrelevant whether the use or disclosure is in accordance with the CDR representative arrangement.

Note: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

(5) For this rule:

- (a) any collection of service data by a direct or indirect OSP of an accredited person is taken to have been by the accredited person; and
- (b) it is irrelevant whether the collection is in accordance with the relevant CDR outsourcing arrangement.

Note: See rule 1.10AA for the definition of “service data” in relation to a CDR outsourcing arrangement.

7.7 Rule relating to privacy safeguard 6—use or disclosure of CDR by accredited data recipients

Note: Paragraph 56EI(1)(b) of the Act provides that an accredited data recipient of CDR data must not use or disclose it unless the use or disclosure is otherwise required, or authorised, under the consumer data rules. This rule provides an authorisation for that paragraph.

Section 56EI of the Act applies only in relation to CDR data for which there are one or more CDR consumers: subsection 56EB(1) of the Act.

For paragraph 56EI(1)(b) of the Act, the use or disclosure of CDR data for which there is a CDR consumer by an accredited data recipient of the CDR data is authorised under these rules if it is a permitted use or disclosure, other than one that relates to direct marketing.

7.8 Rule relating to privacy safeguard 7—use or disclosure of CDR data for direct marketing by accredited data recipients

Note: Paragraph 56EJ(1)(b) of the Act provides that an accredited data recipient of CDR data must not use or disclose it for direct marketing unless the use or disclosure is authorised under the consumer data rules in accordance with a valid consent of a CDR consumer for the CDR data. This rule provides an authorisation for that paragraph.

Section 56EJ of the Act applies only in relation to CDR data for which there are one or more CDR consumers: subsection 56EB(1) of the Act.

For paragraph 56EJ(1)(b) of the Act, the use or disclosure of CDR data for which there is a CDR consumer by an accredited data recipient of the CDR data for direct marketing is authorised under these rules if it is a permitted use or disclosure that relates to direct marketing.

7.8A Rule relating to privacy safeguards 8 and 9—failure by CDR representative to comply with safeguards

Privacy safeguard 8—overseas disclosure

- (1) A CDR representative principal breaches this subrule if its CDR representative fails to comply with section 56EK of the Act in relation to service data of a CDR consumer as if it were an accredited data recipient of the service data.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

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Privacy safeguard 9—government related identifiers

- (2) A CDR representative principal breaches this subrule if its CDR representative fails to comply with section 56EL of the Act in relation to service data of a CDR consumer as if it were an accredited data recipient of the service data.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

7.8B Rule relating to privacy safeguards 8 and 9—failure by direct or indirect OSP to comply with safeguards

Privacy safeguard 8—overseas disclosure

- (1) An accredited person breaches this subrule if a direct or indirect OSP of:
- (a) the accredited person; or
 - (b) a CDR representative of the accredited person;
- fails to comply with section 56EK of the Act in relation to service data of a CDR consumer as if it were an accredited data recipient of the service data.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

Privacy safeguard 9—government related identifiers

- (2) An accredited person breaches this subrule if a direct or indirect OSP of:
- (a) the accredited person; or
 - (b) a CDR representative of the accredited person;
- fails to comply with section 56EL of the Act in relation to service data of a CDR consumer as if it were an accredited data recipient of the service data.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

7.9 Rule relating to privacy safeguard 10—notifying of the disclosure of CDR data

- (1) For subsection 56EM(1) of the Act, a data holder that discloses CDR data to an accredited person as a result of a consumer data request must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:
- (a) what CDR data was disclosed; and
 - (b) when the CDR data was disclosed; and
 - (c) the accredited data recipient, identified in accordance with any entry on the Register of Accredited Persons specified as being for that purpose.

Note 1: For correction requests, see section 56EP of the Act (privacy safeguard 13) and Subdivision 7.2.5 of these rules.

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Note 2: If a consumer data request is made that relates to a joint account, the other joint account holder's consumer dashboard may not be required to be similarly updated. See rule 4A.13.

Note 3: See paragraph 1.15(3)(f).

Note 4: See subrule 1.16(5) for how this rule applies where the CDR data is collected by an accredited person acting as a direct or indirect OSP to the accredited data recipient.

- (2) For subsection 56EM(2) of the Act, an accredited data recipient that discloses CDR data to an accredited person must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:
 - (a) what CDR data was disclosed; and
 - (b) when the CDR data was disclosed; and
 - (c) the accredited person, identified in accordance with any entry on the Register of Accredited Persons specified as being for that purpose.
- (3) For subsection 56EM(2) of the Act, an accredited data recipient that discloses CDR data to a trusted adviser must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:
 - (a) what CDR data was disclosed; and
 - (b) when the CDR data was disclosed; and
 - (c) the trusted adviser.
- (3A) For subsection 56EM(2) of the Act, an accredited data recipient that discloses CDR data to a person in accordance with a business consumer disclosure consent must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:
 - (a) what CDR data was disclosed; and
 - (b) when the CDR data was disclosed; and
 - (c) the person to whom it was disclosed.
- (4) For subsection 56EM(2) of the Act, an accredited data recipient that discloses a CDR insight must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:
 - (a) what CDR data was disclosed; and
 - (b) when the CDR data was disclosed; and
 - (c) the person to whom it was disclosed.
- (5) For this rule, where an accredited data recipient is a CDR representative principal, a disclosure of service data by a CDR representative (including a disclosure by a direct or indirect OSP of the CDR representative of service data for the purposes of the CDR outsourcing arrangement) is taken to be a disclosure by the CDR representative principal.

Subdivision 7.2.4—Rules relating to integrity and security of CDR data

7.10 Rule relating to privacy safeguard 11—quality of CDR data

- (1) If a CDR participant makes a disclosure of a kind referred to in paragraphs 56EN(3)(a) and (b) of the Act to an accredited person, the CDR participant must provide the CDR consumer on whose behalf the disclosure was made, by electronic means, with a written notice that:

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- (a) identifies the accredited person to whom the CDR data was disclosed; and
- (b) states the date of the disclosure; and
- (c) identifies the CDR data that was incorrect in the sense referred to in paragraph 56EN(3)(b) of the Act; and
- (d) states that:
 - (i) the CDR consumer can request the CDR participant to disclose the corrected CDR data to the accredited person; and
 - (ii) if such a request is made, the corrected CDR data will be so disclosed.

Note 1: For paragraph (d), see subsection 56EN(4) of the Act.

Note 2: The written notice could be given through the CDR participant's consumer dashboard (see rule 1.14 and rule 1.15).

Note 3: See rule 1.16 for how this rule applies in the case of a CDR outsourcing arrangement in which a provider collects CDR data on behalf of an OSP principal.

- (2) A single notice may deal with one or more such disclosures.
- (3) The notice must be provided:
 - (a) as soon as practicable; and
 - (b) in any event—within 5 business days;after the CDR participant becomes aware of the matter referred to in paragraph 56EN(3)(b) of the Act.

7.10A Rule relating to privacy safeguard 11—quality of data—CDR representative

- (1) A CDR representative principal breaches this subrule if its CDR representative fails to comply with subsection 56EN(2) of the Act in relation to service data of a CDR consumer as if it were an accredited person.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (2) For subrule (1), it is irrelevant whether the action of the CDR representative in relation to the service data is in accordance with the CDR representative arrangement.

7.11 Rule relating to privacy safeguard 12—security of CDR data

- (1) For subsection 56EO(1) of the Act, the steps are set out in Schedule 2.

Note: Broadly speaking, the steps are for an accredited data recipient of CDR data to:

- define and implement security governance in relation to CDR data; and
- define the boundaries of the CDR data environment; and
- have and maintain an information security capability; and
- implement a formal controls assessment program; and
- manage and report security incidents.

- (2) For this rule, where an accredited data recipient is an OSP chain principal, a failure by a direct or indirect OSP to comply with Schedule 2 in relation to service data is taken to be a failure by the accredited data recipient.

- (3) For this rule, where an accredited data recipient is a CDR representative principal, a failure by:
- (a) the CDR representative; or
 - (b) any direct or indirect OSP of the CDR representative;
- to comply with Schedule 2 in relation to service data is taken to be a failure by the CDR representative principal.

7.12 Rule relating to privacy safeguard 12—de-identification of redundant data

- (1) For subsection 56EO(2) of the Act, this rule applies if:
- (a) the accredited data recipient, when it asked for consent to collect and use the CDR data, gave the CDR consumer the statement referred to in paragraph 4.17(1)(b) or (c); and
 - (b) the CDR consumer has not elected, in accordance with rule 4.16, that their redundant data should be deleted; and
 - (c) in the case of a statement referred to in paragraph 4.17(1)(c)—the accredited person thinks it appropriate in the circumstances to de-identify rather than delete the redundant data.

Note 1: The CDR data de-identification process is set out in rule 1.17.

Note 2: If this rule does not apply, rule 7.13 applies: see subrule 7.13(1).

- (2) The steps are:
- (a) to apply the CDR data de-identification process to the redundant data; and
 - (b) direct any direct OSP or CDR representative of the accredited data recipient (the **recipient of the redundant data**) that had been provided with a copy of the redundant data:
 - (i) to delete the redundant data, as well as any CDR data that has been directly or indirectly derived from it, and notify the accredited data recipient of the deletion; and
 - (ii) to, if the recipient of the redundant data has provided any such data to its own direct OSP (the **further recipient**), give the direction set out in this paragraph to the further recipient as if the further recipient were itself the recipient of the redundant data.

Note: If the redundant data cannot be de-identified in accordance with the CDR data de-identification process, it must be deleted in accordance with the CDR data deletion process: see subrule 1.17(4).

- (3) For this rule, where an accredited data recipient is a CDR representative principal, a failure by a CDR representative to comply with subsection 56EO(2) of the Act in relation to service data as if:
- (a) it were a CDR entity; and
 - (b) the references in this rule to provisions in Division 4.3 were references to the corresponding provisions in Division 4.3A;
- is taken to be a failure by the CDR representative principal.

7.13 Rule relating to privacy safeguard 12—deletion of redundant data

- (1) For subsection 56EO(2) of the Act, this rule applies if rule 7.12 does not apply.
- (2) The step is to apply the CDR data deletion process to the redundant data.

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Note: See rule 1.18 for the CDR data deletion process.

Subdivision 7.2.5—Rules relating to correction of CDR data

7.14 No fee for responding to or actioning correction request

- (1) A data holder must not charge a fee for responding to or actioning a request under subsection 56EP(1) of the Act.

Note: This subrule is a civil penalty provision (see rule 9.8).

- (2) An accredited data recipient must not charge a fee for responding to or actioning a request under subsection 56EP(2) of the Act.

Note: This subrule is a civil penalty provision (see rule 9.8).

7.15 Rule relating to privacy safeguard 13—steps to be taken when responding to correction request

The recipient of a request under subsection 56EP(1) or (2) of the Act must:

- (a) acknowledge receipt of the request as soon as practicable; and
- (b) within 10 business days after receipt of the request, and to the extent that the recipient considers appropriate in relation to the CDR data that was the subject of the request:
 - (i) correct the data; or
 - (ii) do both of the following:
 - (A) include a statement with the data to ensure that, having regard to the purpose for which it is held, the data is accurate, up to date, complete and not misleading;
 - (B) where practicable, attach an electronic link to a digital record of the data in such a way that the statement will be apparent to any users of the data; and
- (c) give the requester a written notice, by electronic means, that:
 - (i) indicates what the recipient did in response to the request; and
 - (ii) if the recipient did not think it appropriate to do either of the things referred to in subparagraphs (b)(i) or (ii)—states why a correction or statement is unnecessary or inappropriate; and
 - (iii) sets out the complaint mechanisms available to the requester.

Note 1: In relation to subparagraph (c)(iii), see Part 6.

Note 2: The written notice could be given through the accredited person's or the data holder's consumer dashboard (see rules 1.14 and 1.15).

Note 3: See also, in relation to the energy sector, clause 6.1 of Schedule 4.

7.16 Rule relating to privacy safeguard 13—correction of data—CDR representative

- (1) A CDR representative principal breaches this subrule if its CDR representative fails to comply with subsection 56EP(2) of the Act in relation to service data of a CDR consumer as if it were an accredited person.

Note 1: See rule 1.10AA for the definition of “service data” in relation to a CDR representative arrangement.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (2) For subrule (1), it is irrelevant whether the action of the CDR representative in relation to the service data is in accordance with the CDR representative arrangement.

Part 8—Rules relating to data standards

Division 8.1—Preliminary

8.1 Simplified outline of this Part

Product data requests and consumer data requests under these rules are made in accordance with data standards, which are made under Division 6 of Part IVD of the Act.

This Part of these rules sets out rules relating to data standards.

The Data Standards Chair is established by the Act and is responsible for making data standards. The Data Standards Chair is required to establish Data Standards Advisory Committees to advise the Chair about data standards.

This Part also sets out procedural requirements for making, amending and reviewing data standards, and specifies data standards that the Data Standards Chair is required to make. These are all binding data standards.

Division 8.2—Data Standards Advisory Committees

8.2 Establishment of Data Standards Advisory Committee

- (1) The Data Standards Chair must, by written instrument, establish and maintain a committee to advise the Chair about data standards in relation to each designated sector (a *Data Standards Advisory Committee*).

Note: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.

- (2) To avoid doubt, a Data Standards Advisory Committee may be appointed to cover more than one designated sector.

8.3 Functions of Data Standards Advisory Committee

The function of a Data Standards Advisory Committee is to advise the Data Standards Chair about:

- (a) any matters identified in the instrument establishing the Committee; and
- (b) any other matter referred to the Committee by the Chair.

8.4 Appointment to Data Standards Advisory Committee

- (1) The Data Standards Chair:
 - (a) must appoint to a Data Standards Advisory Committee:
 - (i) 1 or more consumer representatives; and
 - (ii) 1 or more privacy representatives; and
 - (b) may appoint others to the Committee as the Chair sees fit.
- (2) An appointment must be in writing.
- (3) Remuneration is *not* payable in respect of an appointment to a Data Standards Advisory Committee. The Chair may determine any other terms and conditions of an appointment in writing.

Note: An appointee may be reappointed: see section 33AA of the *Act Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.

8.5 Termination of appointment and resignation

- (1) The Data Standards Chair may, by writing, terminate an appointment to a Data Standards Advisory Committee at any time.
- (2) An appointee to a Committee may resign his or her appointment by giving the Chair a written resignation.
- (3) The resignation takes effect on the day it is received by the Chair or, if a later day is specified in the resignation, on that later day.

8.6 Procedural directions

The Data Standards Chair may give a Data Standards Advisory Committee written directions as to:

- (a) the way in which the Committee is to carry out its functions; and

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(b) procedures to be followed in relation to meetings.

Note: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.

8.7 Observers

- (1) Any of the following:
 - (a) the Commission;
 - (b) the Information Commissioner;
 - (c) the Department of the Treasury;may elect to be an observer on a Data Standards Advisory Committee.
- (2) The Data Standards Chair may invite any other person to act as an observer on a Committee.

Division 8.3—Reviewing, developing and amending data standards

8.8 Notification when developing or amending data standards

- (1) Subject to subrule (2), the Data Standards Chair must notify the Commission and the Information Commissioner, in writing, of a proposal to make or amend a data standard.
- (2) If the standard or amendment is urgent, the Chair may instead notify the Commission and the Information Commissioner after it has been made.
- (3) A failure to comply with this rule does not affect the validity or enforceability of a data standard or an amendment to a data standard.

8.9 Consultation when developing or amending data standards

- (1) This rule does not apply in relation to:
 - (a) a data standard or an amendment to a data standard that is made before 1 August 2020; or
 - (b) an amendment to a data standard that is, in the opinion of the Data Standards Chair, minor or urgent.
- (2) Before making or amending a data standard, the Data Standards Chair must:
 - (a) prepare a draft of the proposed standard or amendment (the ***consultation draft***); and
 - (b) consult with:
 - (i) the Data Standards Advisory Committee; and
 - (ii) the Commission; and
 - (iii) the Information Commissioner;on the consultation draft; and
 - (c) cause the consultation draft to be published on the website of the Data Standards Body; and
 - (d) invite submissions in relation to the consultation draft from interested members of the public to be made by a specified date that is no earlier than 28 days after the draft is published.
- (3) The Data Standards Chair may extend the date for consultation.
- (4) A failure to comply with this rule does not affect the validity or enforceability of a data standard or an amendment to a data standard.

8.10 Matters to have regard to when making or amending data standards

When making or amending a data standard, the Data Standards Chair must have regard to the following:

- (a) the advice or submissions (if any) received from:
 - (i) the Data Standards Advisory Committee; or
 - (ii) the Commission; or
 - (iii) the Information Commissioner;on a draft of the proposed standard or amendment (the ***consultation draft***);

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- (b) submissions (if any) received during the public consultation (if any) that was undertaken in relation to the consultation draft in accordance with rule 8.9;
- (c) any advice from any other relevant committee, advisory panel or consultative group that has been established by the Chair (see paragraph 56FH(2)(a) of the Act).

Division 8.4—Data standards that must be made

8.11 Data standards that must be made

- (1) The Data Standards Chair must make one or more data standards about each of the following:
 - (a) the processes for:
 - (i) making, responding to and managing product data requests and consumer data requests; and
 - (ii) obtaining, managing, amending and withdrawing authorisations and consents; and
 - (iii) making, responding to and managing requests by the primary data holder for SR data under rules 1.22 and 1.23;
 - (iv) obtaining and managing business consumer statements;
 - (b) the collection and use of CDR data, including requirements to be met by CDR participants in relation to seeking consent from CDR consumers;
 - (c) the disclosure and security of CDR data, including:
 - (i) authentication of CDR consumers to a standard which meets, in the opinion of the Chair, best practice security requirements; and
 - (ii) seeking authorisations to disclose CDR data in response to consumer data requests; and
 - (iii) consumer experience data standards for disclosure of CDR data to accredited persons; and
 - (iv) consumer experience data standards for disclosure of CDR data to trusted advisers;
 - (v) consumer experience data standards for disclosure of CDR insights;
 - (vi) consumer experience data standards for disclosure of CDR data to a person under a consent for which a business consumer statement is given (see paragraph 1.10A(10)(a));
 - (d) the types of CDR data and descriptions of those types, to be used by CDR participants in making and responding to requests;
 - (e) the formats in which CDR data is to be provided in response to requests;
 - (f) requirements to be met by CDR participants in relation to:
 - (i) performance and availability of systems to respond to requests; and
 - (ii) public reporting of information relating to compliance with those requirements;
 - (fa) requirements for a notice to be given to a CDR consumer under rule 4.18 or 4.20O (CDR receipts);
 - (fb) requirements for a notice to be given to a CDR consumer under subrule 4.20(3) or subrule 4.20U(3) (current consents);
 - (g) the processes for CDR participants to notify other CDR participants of withdrawal of consent or authorisations by CDR consumers;
 - (h) the provision of administrative or ancillary services by CDR participants to facilitate the management and receipt of communications between CDR participants.
- (1A) The standards for the purposes of paragraph (1)(a)(ii) that relate to obtaining insight disclosure consents must include provisions that cover the following:

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Division 8.4 Data standards that must be made

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- (a) how the accredited person or CDR representative can meet the requirement to explain a CDR insight in accordance with paragraph 4.11(3)(ca) or 4.20E(3)(g);
 - (b) ensuring that the CDR consumer is made aware that their data will leave the CDR system when it is disclosed.
- (1B) The standards for the purposes of paragraph (1)(a)(ii) that relate to obtaining TA disclosure consents and business consumer disclosure consents must include provisions that cover ensuring that the CDR consumer is made aware that their data will leave the CDR system when it is disclosed.
- (2) Each such standard must indicate that it is binding and must specify the date on which it commences and the date by which it must be fully complied with.

Note: See sections 56FD and 56FE of the Act for the legal effect of a binding data standard.
- (3) The data standards must be subject to such consumer testing as the Data Standards Chair considers appropriate.

Part 9—Other matters

Division 9.1—Preliminary

9.1 Simplified outline of this Part

This Part deals with a range of miscellaneous matters, including:

- decisions that can be reviewed by the Administrative Appeals Tribunal; and
- rules relating to reporting, record-keeping and auditing; and
- civil penalty provisions of the consumer data rules, which are enforced under the enforcement provisions of the Act.

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Division 9.2—Review of decisions

9.2 Review of decisions by the Administrative Appeals Tribunal

Applications may be made to the Administrative Appeals Tribunal to review any of the following decisions:

- (a) a decision of the CDR Accreditor under rule 5.10 to:
 - (i) impose a condition on an accreditation; or
 - (ii) vary a condition that has been imposed;
- (b) a decision of the CDR Accreditor under rule 5.17 to:
 - (i) suspend an accreditation; or
 - (ii) extend a suspension; or
 - (iii) revoke an accreditation.

Division 9.3—Reporting, record keeping and audit

Subdivision 9.3.1—Reporting and record keeping

9.3 Records to be kept and maintained

Records to be kept and maintained—data holder

- (1) A data holder must keep and maintain records that record and explain the following:
- (a) authorisations given by CDR consumers to disclose CDR data;
 - (b) amendments to or withdrawals of authorisations to disclose CDR data;
 - (c) notifications of withdrawals of consents to collect CDR data;
 - (ca) where the data holder is a primary data holder—any requests for SR data made under subrule 1.23(4) and responses received under subrule 1.23(5) or (6);
 - (cb) where the data holder is a secondary data holder:
 - (i) any requests for SR data received under subrule 1.22(3) or 1.23(4) and responses given under subrule 1.22(4) or (5) or 1.23(5) or (6); and
 - (ii) where the data holder has refused to disclose requested SR data—the reasons relied upon to refuse to disclose the SR data, including any rule or data standard;
 - (d) disclosures of CDR data made in response to consumer data requests;
 - (da) any written agreement of a kind referred to in subrule 2.4(5) the data holder has entered into;
 - (db) any election by the data holder in effect under subclause 7.1A(1) of Schedule 3;
 - (e) instances where the data holder has refused to disclose requested CDR data and the rule or data standard relied upon to refuse to disclose the CDR data;
 - (f) CDR complaint data;
 - (fa) CDR consumer complaints;
 - (g) the processes by which the data holder asks CDR consumers for their authorisation to disclose CDR data and for an amendment to their authorisation, including a video of each process.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Records to be kept and maintained—accredited data recipient

- (2) An accredited data recipient must keep and maintain records that record and explain the following:
- (a) all consents, including, if applicable, the uses of the CDR data that the CDR consumer has consented to under any use consents;
 - (b) amendments to or withdrawals of consents by CDR consumers;
 - (c) notifications of withdrawals of authorisations received from data holders;
 - (d) CDR complaint data;

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- (da) CDR consumer complaints;
- (e) collections of CDR data under these rules;
- (ea) disclosures of CDR data to accredited persons under these rules, and the accredited persons to which any CDR data was disclosed;
- (eb) disclosures of CDR data to trusted advisers, and trusted advisers to whom CDR data was disclosed;
- (ec) any steps taken for the purposes of subrule 1.10C(3) to confirm that a trusted adviser is a member of a class of trusted advisers;
- (ed) disclosures of CDR insights, including a copy of each CDR insight disclosed, to whom it was disclosed and when;
- (ee) the number of business consumer statements received;
- (ef) disclosures of CDR data under a business consumer disclosure consent, and persons to whom the CDR data was disclosed;
- (eg) any steps taken for the purposes of subrule 1.10A(9) to confirm that a CDR consumer is a CDR business consumer;
- (f) elections to delete and withdrawals of those elections;
- (g) the use of CDR data by the accredited data recipient;
- (h) the processes by which the accredited data recipient asks CDR consumers for their consent and for an amendment to their consent, including a video of each process;
- (i) if applicable:
 - (i) any sponsorship arrangement to which the accredited data recipient is a party; and
 - (ii) the use and management by the other party to each such arrangement of CDR data collected by it or provided to it under the arrangement;
- (ia) if applicable:
 - (i) any CDR outsourcing arrangement to which the accredited data recipient, or a direct or indirect OSP of the accredited data recipient, is a party; and
 - (ii) the use and management by each direct or indirect OSP of CDR data collected by it or provided to it under the relevant CDR outsourcing arrangement; and
 - (iii) the steps that the accredited data recipient has taken to ensure that each direct or indirect OSP complies with the requirements of the relevant CDR outsourcing arrangement, including how their direct OSPs ensure compliance by indirect OSPs;
- (j) if CDR data was de-identified in accordance with a consent referred to in paragraph 4.11(3)(e):
 - (i) how the data was de-identified; and
 - (ii) how the accredited data recipient used the de-identified data; and
 - (iii) if the accredited data recipient disclosed (by sale or otherwise) the de-identified data to another person as referred to in paragraph 4.15(b):
 - (A) to whom the data was so disclosed; and
 - (B) why the data was so disclosed;
 - (iv) if the use is for general research—records of any additional benefit to be provided to the CDR consumer for consenting to the use;

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- (k) records that are required to be made for the purposes of the CDR data de-identification process when applied as part of privacy safeguard 12;
- (l) records of any matters that are required to be retained under Schedule 2 to these rules;
- (m) any terms and conditions on which the accredited data recipient offers goods or services where the accredited data recipient collects or uses, or discloses to an accredited person, CDR data in order to provide the good or service.

Note: For paragraph (k), see section 56EO of the Act and rule 7.12.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Records to be kept and maintained—CDR representative principal

(2A) An accredited data recipient that is a CDR representative principal must keep and maintain records that record and explain the following in relation to each CDR representative:

- (a) the CDR representative arrangement;
- (b) the management of data by the CDR representative;
- (c) steps taken to ensure that the CDR representative complies with their requirements under the arrangement;
- (d) all consents obtained by the CDR representative, including, if applicable, the uses of the CDR data that the CDR consumer has consented to under any use consents;
- (e) amendments to or withdrawals of consents by CDR consumers;
- (f) notifications of withdrawals of authorisations received from data holders;
- (g) CDR complaint data;
- (ga) CDR consumer complaints;
- (h) collections of CDR data under these rules;
- (ha) disclosures of CDR data to accredited persons under these rules, and the accredited persons to which any CDR data was disclosed;
- (hb) disclosures of CDR data to trusted advisers, and trusted advisers to whom CDR data was disclosed;
- (hc) any steps taken for the purposes of subrule 1.10C(3) to confirm that a trusted adviser is a member of a class of trusted advisers;
- (hd) disclosures of CDR insights, including a copy of each CDR insight disclosed, to whom it was disclosed and when;
- (i) elections to delete and withdrawals of those elections;
- (j) the use of CDR data by the CDR representative;
- (k) the processes by which the CDR representative asks CDR consumers for their consent and for an amendment to their consent, including a video of each process;
- (ka) if applicable:
 - (i) any CDR outsourcing arrangement to which the CDR representative, or a direct or indirect OSP of the CDR representative, is a party; and

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- (ii) the use and management by each direct or indirect OSP of CDR data collected by it or provided to it under the relevant CDR outsourcing arrangement; and
- (iii) the steps that:
 - (A) the CDR representative principal; and
 - (B) the CDR representative;have taken to ensure that each direct or indirect OSP of the CDR representative complies with the requirements of the relevant CDR outsourcing arrangement, including how their direct OSPs ensure compliance by indirect OSPs;
- (l) if CDR data was de-identified in accordance with a consent referred to in paragraph 4.20E(3)(i):
 - (i) how the data was de-identified; and
 - (ii) how the CDR representative used the de-identified data; and
 - (iii) if the CDR representative disclosed (by sale or otherwise) the de-identified data to another person as referred to in paragraph 4.20L(b):
 - (A) to whom the data was so disclosed; and
 - (B) why the data was so disclosed;
 - (iv) if the use is for general research—records of any additional benefit to be provided to the CDR consumer for consenting to the use;
- (m) records that are required to be made for the purposes of the CDR data de-identification process when applied as part of privacy safeguard 12;
- (n) records of any matters that are required to be retained under Schedule 2 to these rules;
- (o) any terms and conditions on which the CDR representative offers goods or services where the CDR representative collects or uses, or discloses to an accredited person, CDR data in order to provide the good or service.

Note: For paragraph (m), see section 56EO of the Act and rule 7.12.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Specificity of records

- (3) Each record referred to in this rule must include the date and time when the record was made and, if applicable, the date and time when the event described by the record occurred.

Translation of records

- (4) Where a record referred to in this rule is kept in a language other than English, an English translation of the record must be made available within a reasonable time to a person who:
 - (a) is entitled to inspect the records under Subdivision 9.3.2; and
 - (b) asks for the English translation.

Period for retention of records

- (5) Each record referred to in this rule must be kept for a period of 6 years beginning on the day the record was created.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

9.4 Reporting requirements

Reports that must be prepared—data holder

- (1) A data holder must prepare a report for each reporting period that:
- (a) is in the form approved by the Commission for the purposes of this rule; and
 - (b) summarises the CDR complaint data that relates to that reporting period; and
 - (c) sets out the number (if any) of:
 - (i) product data requests; and
 - (ii) consumer data requests made by eligible CDR consumers; and
 - (iii) consumer data requests made by accredited persons on behalf of eligible CDR consumers;received by the data holder during the reporting period; and
 - (d) sets out, for each of the types of requests referred to in subparagraphs (c)(i), (ii) and (iii):
 - (i) the number of times the data holder has refused to disclose CDR data; and
 - (ii) the rule or data standard relied upon to refuse to disclose that data; and
 - (iii) the number of times the data holder has relied on each of those rules or data standards as a ground of refusal.

Note: For the meaning of *product data request* see rule 2.3. For the meaning of *consumer data request* see rule 3.3 (requests made by CDR consumers) and rules 4.4 and 4.7A (requests by accredited persons).

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Reports that must be prepared—secondary data holder

- (1A) A secondary data holder must prepare a report for each reporting period that:
- (a) is in the form approved by the Commission for the purposes of this rule; and
 - (b) sets out the number (if any) of requests for SR data under subrule 1.22(3) or 1.23(4) received by the data holder from the primary data holder during the reporting period; and
 - (c) sets out:

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- (i) the number of times the data holder has refused to disclose SR data; and
- (ii) the reasons for the refusals to disclose that data, including any rule or data standard relied upon; and
- (iii) the number of times the data holder has relied on each of those reasons for refusal.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Reports that must be prepared—accredited data recipient

- (2) An accredited data recipient must prepare a report for each reporting period that:
 - (a) is in the form approved by the Commission for the purposes of this rule; and
 - (b) summarises the CDR complaint data that relates to that reporting period; and
 - (c) describes any goods or services that they offer to CDR consumers using CDR data that were not:
 - (i) described in the relevant application to be an accredited person; or
 - (ii) previously included in a report prepared under this rule; and
 - (d) in relation to any good or service that is required to be described under paragraph (c):
 - (i) describes the CDR data that is needed in order to offer the good or service to CDR consumers; and
 - (ii) explains why that data is needed in order to offer the good or service to CDR consumers; and
 - (e) describes any material changes that have been made to any goods or services offered by the accredited data recipient since the previous reporting period, including any changes to the matters referred to in paragraph (c); and
 - (f) sets out the following:
 - (i) the number of consumer data requests made by the accredited data recipient during the reporting period, distinguishing:
 - (A) in the case of a sponsor—between requests made on its own behalf and those made on behalf of affiliates; and
 - (B) in the case of an affiliate—between those made to its sponsors and those made to other accredited persons;
 - (ii) the proportion of CDR consumers who, at the date of the report, had exercised the election to delete, by reference to each brand of the accredited person;
 - (iii) the number of consumer data requests the accredited data recipient received from an accredited person on behalf of a CDR consumer during the reporting period, distinguishing, in the case of a sponsor, between requests from affiliates and those from other accredited persons;

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- (iv) the number of times the accredited data recipient disclosed consumer data to an accredited person in response to such a consumer data request during the reporting period;
- (v) the total number of CDR consumers the accredited data recipient provided goods or services to using CDR data during the reporting period;
- (vi) the number of consents received from CDR consumers during the reporting period to disclose CDR data to trusted advisers;
- (vii) for each class of trusted advisers—the number of trusted advisers to whom CDR data was disclosed during the reporting period;
- (viii) the number of insight disclosure consents received from CDR consumers during the reporting period;
- (viiiia) the number of consents in relation to which a business consumer statement was given during the reporting period, together with:
 - (A) the number of such consents whose duration, under rule 4.11 or 4.12C, was more than 12 months;
 - (B) the number of times the accredited data recipient disclosed CDR data in accordance with a business consumer disclosure consent;
- (ix) in the case of a sponsor or an affiliate—the number of sponsorship arrangements to which it was a party during the period.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Reports that must be prepared—CDR representative principal

- (2A) An accredited data recipient that is a CDR representative principal must prepare a report for each reporting period that is in the form approved by the Commission for the purposes of this rule and, in relation to each CDR representative:
 - (a) summarises the CDR complaint data that relates to that reporting period; and
 - (b) describes any goods or services that the CDR representative offers to CDR consumers using CDR data that were not:
 - (i) described in the notification of the CDR representative under subrule 5.14(4); or
 - (ii) previously included in a report prepared under this rule; and
 - (c) in relation to any good or service that is required to be described under paragraph (b):
 - (i) describes the CDR data that is needed in order to offer the good or service to CDR consumers; and
 - (ii) explains why that data is needed in order to offer the good or service to CDR consumers; and
 - (d) describes any material changes that have been made to any goods or services offered by the CDR representative since the previous reporting period, including any changes to the matters referred to in paragraph (b); and

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- (e) sets out the following:
- (i) the number of consumer data requests made by the accredited data recipient on behalf of the CDR representative during the reporting period;
 - (ii) the number of consumer data requests made by the CDR representative to the CDR representative principal during the reporting period;
 - (iii) the number of consumer data requests that the CDR representative received from an accredited person on behalf of a CDR consumer during the reporting period;
 - (iv) the number of times the CDR representative disclosed consumer data to an accredited person in response to such a consumer data request during the reporting period;
 - (v) the proportion of CDR consumers who, at the date of the report, had exercised the election to delete, by reference to each brand of the CDR representative;
 - (vi) the total number of CDR consumers the CDR representative provided goods or services to using CDR data during the reporting period;
 - (vii) the number of consents the CDR representative received from CDR consumers during the reporting period to disclose CDR data to trusted advisers;
 - (viii) for each class of trusted advisers—the number of trusted advisers to whom CDR data was disclosed by the CDR representative during the reporting period;
 - (ix) the number of insight disclosure consents the CDR representative received from CDR consumers during the reporting period.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Provision of reports

- (3) Each report must be submitted to:
- (a) the Commission; and
 - (b) the Information Commissioner;
- within 30 days after the end of each reporting period.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

- (4) Either the Commission or the Information Commissioner may:
- (a) publish any report received under this rule; or
 - (b) require an accredited data recipient to publish, on its website, a report that it has prepared under subrule (2) or (2A).
- (5) For this rule, the **reporting periods** are:
- (a) 1 January to 30 June of each year; and
 - (b) 1 July to 31 December of each year.

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- (6) The information referred to in the following provisions is not required for a reporting period before 1 January 2024:
- (a) subparagraph (2)(f)(viii);
 - (b) subparagraphs (2A)(e)(iii), (iv), (vii), (viii) and (ix).

9.5 Requests from CDR consumers for copies of records

Requests to data holders of CDR data

- (1) A CDR consumer may request a data holder for copies of records relating to the information referred to in paragraphs 9.3(1)(a), (b), (c), (d), (f) and (fa) that relates to the CDR consumer.

Requests to accredited data recipients

- (2) A CDR consumer may request an accredited data recipient for copies of records relating to the information referred to in:
- (a) paragraphs 9.3(2)(a), (b), (c), (d), (da), (e), (ea), (eb), (ec), (ed), (ee), (ef), (eg), (f) and (m); and
 - (b) paragraphs 9.3(2A)(d), (e), (f), (g), (ga), (h), (ha), (hb), (hc), (i) and (o);
- that relates to the CDR consumer.

Form for requests

- (3) A request under this rule must be in the form (if any) approved by the Commission for the purposes of this subrule.

Dealing with requests under this rule

- (4) A person who receives a request under this rule must provide the requested copies, in the form (if any) approved by the Commission for the purposes of this rule, as soon as practicable, but no later than 10 business days, after receiving the request.

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

- (5) A data holder must not charge a fee for making or responding to a request under subrule (1).

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

- (6) An accredited data recipient must not charge a fee for making or responding to a request under subrule (2).

Civil penalty:

- (a) for an individual—\$50,000; and
- (b) for a body corporate—\$250,000.

Section 9.6

Subdivision 9.3.2—Audits

9.6 Audits by the Commission and the Information Commissioner

- (1) The Commission may, at any time, audit the compliance of any CDR participant with any or all of the following:
 - (a) Part IVD of the Act, including Division 5 of Part IVD to the extent that it relates to these rules;
 - (b) these rules;
 - (c) the data standards.
- (2) The Information Commissioner may, at any time, audit the compliance of any CDR participant with any or all of the following:
 - (a) the privacy safeguards (Division 5 of Part IVD of the Act);
 - (b) these rules to the extent that they relate to:
 - (i) the privacy safeguards (see in particular Part 7 of these rules); or
 - (ii) the privacy and confidentiality of CDR data.
- (3) For the purposes of conducting an audit or otherwise monitoring the compliance of the CDR participant with the provisions mentioned in subrules (1) and (2), the Commission, or the Information Commissioner, may give a CDR participant a written notice that requests the CDR participant to produce, within the time specified in the notice:
 - (a) copies of records that are required by this Division to be kept; or
 - (b) information from such records.
- (4) The CDR participant must comply with a request under subrule (3).

Note: This subrule is a civil penalty provision (see rule 9.8).

9.7 Audits by the Data Recipient Accreditor

- (1) The CDR Accreditor may, at any time, audit the compliance of an accredited data recipient with any or all of the following:
 - (a) the obligations under rule 5.12;
 - (b) any conditions imposed on their accreditation.
- (2) For the purposes of conducting an audit or otherwise monitoring the compliance of the accredited data recipient with the criteria and conditions mentioned in subrule (1), the CDR Accreditor may give an accredited data recipient a written notice that requests the accredited data recipient to produce:
 - (a) copies of records that are required by this Division to be kept; or
 - (b) information from such records.
- (3) The accredited data recipient must comply with a request under subrule (2).
- (4) The CDR Accreditor must provide a copy of any audit report to the Commission and the Information Commissioner.

Note: This subrule is a civil penalty provision (see rule 9.8).

Division 9.4—Civil penalty provisions

9.8 Civil penalty provisions

For section 56BL of the Act, the provisions of these rules listed in the following table are civil penalty provisions (within the meaning of the Regulatory Powers Act):

Item	Civil penalty provision
1	subrule 1.10A(4)
2	subrule 1.10A(12)
3	subrule 1.10A(14)
4	subrule 1.12(1)
5	subrule 1.13(1)
6	subrule 1.14(1)
7	subrule 1.15(1)
8	subrule 1.15(5)
9	subrule 1.15(7)
10	subrule 1.16(2)
11	subrule 1.16(4)
12	subrule 1.16A(2)
13	subrule 1.16A(4)
14	subrule 1.20(2)
15	subrule 1.22(3)
16	subrule 1.22(4)
17	subrule 1.22(5)
18	subrule 1.23(4)
19	subrule 1.23(5)
20	subrule 1.23(6)
21	rule 1.25
22	subrule 2.4(2A)
23	subrule 2.4(3)
24	rule 2.6
25	subrule 3.4(3)
26	subrule 4.3(5)
27	subrule 4.4(3)
28	subrule 4.5(2)
29	subrule 4.5(3)
30	subrule 4.6(3)
31	subrule 4.6(4)
32	subrule 4.7B(3)
33	subrule 4.13(2)
34	rule 4.18

Part 9 Other matters

Division 9.4 Civil penalty provisions

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Item	Civil penalty provision
36	subrule 4.18AA(2)
37	subrule 4.18A(2)
38	subrule 4.18B(2)
39	subrule 4.18B(3)
40	subrule 4.18C(2)
41	subrule 4.19(1)
42	subrule 4.20(2)
42A	subrule 4.20(3)
43	subrule 4.20J(2)
44	subrule 4.20J(5)
45	subrule 4.20P(2)
46	subrule 4.20R(2)
47	subrule 4.20R(3)
48	subrule 4.20S(2)
49	subrule 4.20T(2)
50	subrule 4.22A(1)
51	subrule 4.25(2)
52	rule 4.26A
53	rule 4.27
54	subrule 4.28(2)
55	subrule 4A.6(1)
56	subrule 4A.7(3)
57	subrule 4A.8(2)
58	subrule 4A.8(3)
59	subrule 4A.13(1)
60	subrule 4A.14(2)
61	subrule 4A.14(3)
62	subrule 5.1B(2)
63	subrule 5.1B(3)
64	subrule 5.1B(4)
65	subrule 5.1B(5)
66	subrule 5.12(1)
67	rule 5.13
68	subrule 5.14(1)
69	subrule 5.23(2)
70	subrule 5.23(3)
71	subrule 5.23(4)
72	subrule 5.31(2)
73	rule 6.1
74	rule 6.2
75	subrule 7.2(4)

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Item	Civil penalty provision
76	subrule 7.2(6)
77	subrule 7.2(7)
78	subrule 7.2(8)
79	subrule 7.2(9)
80	subrule 7.3(2)
81	subrule 7.3A(1)
82	subrule 7.3B(1)
83	subrule 7.6(1)
84	subrule 7.8A(1)
85	subrule 7.8A(2)
86	subrule 7.8B(1)
87	subrule 7.8B(2)
88	subrule 7.10A(1)
89	subrule 7.14(1)
90	subrule 7.14(2)
91	subrule 7.16(1)
92	subrule 9.6(4)
93	subrule 9.7(3).

Note: Subrules 2.5(2), 3.5(2), 4.7(3), 5.25(3), 5.25(5), 5.34(4), 9.3(1), 9.3(2), 9.3(2A), 9.3(5), 9.4(1)), 9.4(1A), 9.4(2) 9.4(2A), 9.4(3), 9.5(4), 9.5(5) and 9.5(6) are also civil penalty provisions within the meaning of the Regulatory Powers Act.

Part 50 Transitional provisions

Division 50.1 Application provisions relating to the Competition and Consumer (Consumer Data Right) Amendment (2024 Measures No. 1) Rules 2024

Section 500

Part 50—Transitional provisions

Division 50.1—Application provisions relating to the *Competition and Consumer (Consumer Data Right) Amendment (2024 Measures No. 1) Rules 2024*

500 Definitions

In this Division:

principal rules means the *Competition and Consumer (Consumer Data Right) Rules 2020*.

amending rules means the *Competition and Consumer (Consumer Data Right) Amendment (2024 Measures No. 1) Rules 2024*.

501 Application—CDR representative arrangements

The amendments of rule 1.16A of the principal rules made by the amending rules apply on and after the day that is 12 months after the commencement of the amending rules.

502 Application—information presented to CDR consumer when accredited person asks for consent

The amendments of paragraph 4.11(3)(f) of the principal rules made by the amending rules apply on and after the day that is 12 months after the commencement of the amending rules.

503 Application—CDR receipts given by accredited persons

Rule 4.18 of the principal rules, as in force immediately before the commencement of the amending rules, continues to apply, on and after that commencement, to an accredited person until the coming into effect of data standards made for the purposes of paragraph 8.11(1)(fa) of the principal rules in relation to rule 4.18.

504 Application—notification of current consents by accredited persons

Rule 4.20 of the principal rules, as in force immediately before the commencement of the amending rules, continues to apply, on and after that commencement, to an accredited person until the coming into effect of data standards made for the purposes of paragraph 8.11(1)(fb) of the principal rules in relation to rule 4.20.

505 Application—information presented to CDR consumer when CDR representative asks for consent

The amendments of paragraph 4.20E(3)(k) of the principal rules made by the amending rules apply on and after the day that is 12 months after the commencement of the amending rules.

506 Application—CDR receipts given by CDR representatives

Rule 4.20O of the principal rules, as in force immediately before the commencement of the amending rules, continues to apply, on and after that commencement, to a CDR representative until the coming into effect of data standards made for the purposes of paragraph 8.11(1)(fa) of the principal rules in relation to rule 4.20O

507 Application—notification of current consents by CDR representatives

Rule 4.20U of the principal rules, as in force immediately before the commencement of the amending rules, continues to apply, on and after that commencement, to a CDR representative until the coming into effect of data standards made for the purposes of paragraph 8.11(1)(fb) of the principal rules in relation to rule 4.20U.

508 Application—conditions for accredited persons to hold data holders

The amendments of clause 7.2 of Schedule 3 to the principal rules made by the amending rules do not apply to an accredited person in relation to CDR data, and any CDR data directly or indirectly derived from that data, if the person started to hold such data before the commencement of those amendments.

Schedule 1—Default conditions on accreditations

Part 1—Preliminary

1.1 Purpose of Schedule

This Schedule sets out the default conditions on accreditations, for rule 5.9 of these rules.

Part 2—Default conditions on accreditations

2.1 Ongoing reporting obligation on accredited persons without streamlined accreditation

- (1A) This clause applies to an accredited person other than one with streamlined accreditation under rule 5.5.

- (1) In this clause:

ASAE followed by a number means the standard with that number issued by the Auditing and Assurance Standards Board of the Australian Government (AUASB).

approved means approved for the purposes of this clause in guidelines issued by the CDR Accrerator.

assurance report means:

- (a) for a person with unrestricted accreditation—a report that is made in accordance with:
 - (i) ASAE 3150; or
 - (ii) an approved standard, report or framework; and

Note: See the accreditation guidelines, which could in 2023 be downloaded from <https://www.cdr.gov.au>.

ASAE 3150 could in 2023 be downloaded from the Auditing and Assurance Standards Board's website (https://www.auasb.gov.au/admin/file/content102/c3/Jan15_ASAB_3150_Assurance_Engagements_on_Controls.pdf).

- (b) for a person with sponsored accreditation—an assessment of its capacity to comply with Schedule 2 that is made in accordance with any approved requirements;

that does not include the information that must be provided in an attestation statement.

attestation statement means:

- (a) for a person with unrestricted accreditation—a statement in the form of a responsible party's statement on controls and system description that is made in accordance with ASAE 3150; and
- (b) for a person with sponsored accreditation—a statement about its compliance with Schedule 2 that is made in accordance with any approved requirements.

Attestation statements

- (2) The accredited person must provide an attestation statement to the CDR Accrerator within 3 months after the end of:
 - (a) the first reporting period; and
 - (b) every second reporting period thereafter;that covers the reporting period.

Clause 2.2

Assurance reports

- (3) The accredited person must provide an assurance report to the CDR Accrerator within 3 months after the end of:
- (a) the reporting period after the first reporting period; and
 - (b) every second reporting period thereafter;
- that covers the reporting period.

Reporting periods

- (4) In this clause, subject to subclause (5), a **reporting period** for an accredited person is either a financial year or a calendar year, as determined for the accredited person by the CDR Accrerator.
- (5) However the **first** reporting period for an accredited person is taken to be the period that:
- (a) if the accreditation decision takes effect within 3 months before the end of a reporting period—starts on the day the accreditation takes effect and ends on the last day of the following reporting period; and
 - (b) otherwise—starts on the day the accreditation decision takes effect and ends on the last day of that reporting period.

Example 1: For paragraph (a) if an accreditation decision takes effect on 30 May 2022, the first reporting period starts on 30 May 2022 and ends on 30 June 2023.

Example 2: For paragraph (b) if an accreditation decision takes effect on 1 January 2023, the first reporting period starts on 1 January 2023 and ends on 30 June 2023.

2.2 Conditions on sponsors and potential sponsors

- (1) An accredited person that proposes to become the sponsor of a person that has, or proposes to apply for, sponsored accreditation must:
- (a) have in place a defined third-party management framework that:
 - (i) will ensure that the person maintains appropriate information security capabilities as an affiliate; and
 - (ii) includes requirements and activities relating to the following matters as they relate to information security:
 - (A) due diligence prior to establishing new relationships or contracts; and
 - (B) annual review and assurance activities; and
 - (C) reporting requirements; and
 - (b) provide the person with any appropriate assistance or training in technical and compliance matters relating to Schedule 2.
- (2) The sponsor of an affiliate must:
- (a) maintain the management framework and manage its relationship with the affiliate in accordance with it; and
 - (b) continue to provide any appropriate assistance or training in such technical and compliance matters; and
 - (c) take reasonable steps to ensure that the affiliate, as an accredited person, complies with its obligations under Schedule 2.

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

Part 1—Steps for privacy safeguard 12

1.1 Purpose of Part

This Part sets out steps for the purposes of subsection 56EO(1) of the Act, which relate to privacy safeguard 12 (see rule 7.11 and paragraph 5.12(1)(a) of these rules).

Note: An accredited data recipient must take the steps set out in this Schedule to protect CDR data from misuse, interference and loss, and unauthorised access, modification or disclosure, under subsection 56EO(1) of the Act. Subsection 56EO(1) is a civil penalty provision (see section 56EU of the Act).

1.2 Interpretation

In this Schedule:

CDR data environment means the information technology systems used for, and processes that relate to, the management of CDR data.

information security capability, of an accredited data recipient:

- (a) means the accredited data recipient's ability to manage the security of its CDR data environment in practice through the implementation and operation of processes and controls; and
- (b) includes the accredited data recipient being able to allocate adequate budget and resources, and provide for management oversight.

senior management, of an accredited data recipient that is a body corporate, means:

- (a) the accredited data recipient's directors; and
- (b) any person who is an associated person, within the meaning of paragraph (a) of the definition of that term, of the accredited data recipient.

1.3 Step 1—Define and implement security governance in relation to CDR data

- (1) An accredited data recipient of CDR data must establish a formal governance framework for managing information security risks relating to CDR data setting out the policies, processes, roles and responsibilities required to facilitate the oversight and management of information security.
- (2) The accredited data recipient must clearly document its practices and procedures relating to information security and management of CDR data, including the specific responsibilities of senior management.
- (3) The accredited data recipient must have and maintain an information security policy that details:

Clause 1.4

- (a) its information security risk posture setting out the exposure and potential for harm to the accredited data recipient's information assets, including CDR data that it holds, from security threats; and
 - (b) how its information security practices and procedures, and its information security controls, are designed, implemented and operated to mitigate those risks.
- (4) The accredited data recipient must review and update the framework for appropriateness:
 - (a) in response to material changes to both the extent and nature of threats to its CDR data environment and its operating environment; or
 - (b) where no such material changes occur—at least annually.

1.4 Step 2—Define the boundaries of the CDR data environment

- (1) An accredited data recipient must assess, define and document the boundaries of its CDR data environment.
- (2) The accredited data recipient must review the boundaries of its CDR data environment for completeness and accuracy:
 - (a) as soon as practicable when it becomes aware of material changes to the extent and nature of threats to its CDR data environment; or
 - (b) where no such material changes occur—at least annually.

1.5 Step 3—Have and maintain an information security capability

- (1) The accredited data recipient must have and maintain an information security capability that:
 - (a) complies with the applicable information security controls specified in Part 2 of this Schedule; and
 - (b) is appropriate and adapted to respond to risks to information security, having regard to:
 - (i) the extent and nature of threats to CDR data that it holds; and
 - (ii) the extent and nature of CDR data that it holds; and
 - (iii) the potential loss or damage to one or more CDR consumers if all or part of the consumer's data were to be:
 - (A) misused, interfered with or lost; or
 - (B) accessed, modified or disclosed without authorisation.
- (2) The accredited data recipient must review and adjust its information security capability:
 - (a) in response to material changes to both the nature and extent of threats and its CDR data environment; or
 - (b) where no such material changes occur—at least annually.

1.6 Step 4—Implement a formal controls assessment program

- (1) An accredited data recipient must establish and implement a testing program to review and assess the effectiveness of its information security capability which:

Clause 1.7

- (a) is appropriate having regard to the factors set out in paragraph 1.5(1)(b); and
 - (b) requires testing at a frequency, and to an extent, that is appropriate having regard to:
 - (i) the rate at which vulnerabilities and threats change; and
 - (ii) material changes to the boundaries of its CDR data environment; and
 - (iii) the likelihood of failure of controls having regard to the results of previous testing.
- (2) The accredited data recipient must monitor and evaluate the design, implementation and operating effectiveness of its security controls relating to the management of CDR data in accordance with its obligations under Part IVD of the Act and these rules, and having regard to the information security controls in Part 2 of this Schedule.
- (3) The accredited data recipient must escalate and report to senior management the results of any testing that identifies design, implementation or operational deficiencies in information security controls relevant to its CDR data environment.
- (4) The accredited data recipient must ensure that testing is conducted by appropriately skilled persons who are independent from the performance of controls over the CDR data environment.
- (5) The accredited data recipient must review the sufficiency of its testing program referred to in subclause (1):
 - (a) when there is a material change to the nature and extent of threats to its CDR data environment or to the boundaries of its CDR data environment—as soon as practicable; or
 - (b) where no such material changes occur—at least annually.

1.7 Step 5—Manage and report security incidents

- (1) An accredited data recipient must have procedures and practices in place to detect, record, and respond to information security incidents as soon as practicable.
- (2) The accredited data recipient must create and maintain plans to respond to information security incidents that it considers could plausibly occur (***CDR data security response plans***).
- (3) The accredited data recipient's CDR data security response plans must include procedures for:
 - (a) managing all relevant stages of an incident, from detection to post-incident review; and
 - (b) notifying CDR data security breaches to the Information Commissioner and to CDR consumers as required under Part IIIC of the *Privacy Act 1988*; and
 - (c) notifying information security incidents to the Australian Cyber Security Centre as soon as practicable and in any case no later than 30 days after the accredited data recipient becomes aware of the security incident.

Clause 1.7

Note: For paragraph (3)(b), see section 56ES of the Act for the extended application of Part IIIC of the *Privacy Act 1988*.

- (4) The accredited data recipient must review and test its CDR data security response plans:
- (a) when there is a material change to the nature and extent of threats to its CDR data environment or to the boundaries of its CDR data environment—as soon as practicable; and
 - (b) where no such material changes occur—at least annually.

- (5) In this clause:

Australian Cyber Security Centre means the cyber security function within the Australian Signals Directorate.

Part 2—Minimum information security controls

2.1 Purpose of Part

This Part sets out the information security controls, for the purposes of paragraph 1.5(1)(a) of this Schedule.

2.2 Information security controls

The information security controls are set out in the following table:

	Control requirements		Minimum controls	Description of minimum controls
(1)	An accredited data recipient must have processes in place to limit the risk of inappropriate or unauthorised access to its CDR data environment.	(a)	Multi-factor authentication or equivalent control	Multi-factor authentication or equivalent control is required for all access to CDR data. Note: This minimum control does not apply to access to CDR data by CDR consumers.
		(b)	Restrict administrative privileges	Administrative privileges are granted only on an as needs basis for users to perform their duties and only for the period they are required for. Privileges granted on an ongoing basis are regularly reviewed to confirm their ongoing need.
		(c)	Audit logging and monitoring	Critical events are identified, logged and retained to help ensure traceability and accountability of actions. These logs are reviewed regularly to identify irregularities and deviations from expected processing. Note: In relation to retention, see paragraph 9.3(2)(l) of these rules.

Schedule 2 Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

Part 2 Minimum information security controls

Clause 2.2

	Control requirements		Minimum controls	Description of minimum controls
		(d)	Access security	Processes, including automatic processes, are implemented to limit unauthorised access to the CDR data environment. At the minimum these include: (a) provision and timely revocation for users who no longer need access; and (b) monitoring and review of the appropriateness of user access privileges on at least a quarterly basis.
		(e)	Limit physical access	Physical access to facilities where CDR data is stored, hosted or accessed (including server rooms, communications rooms, and premises of business operation) is restricted to authorised individuals.
		(f)	Role based access	Role-based access is implemented to limit user access rights to only that necessary for personnel to perform their assigned responsibilities. Role-based access is assigned in accordance with the principle of least necessary privileges and segregation of duties.
		(g)	Unique IDs	Use of generic, shared and/or default accounts is restricted to those necessary to run a service or a system. Where generic, shared and/or default accounts are used, actions performed using these accounts are monitored and logs are retained. Note: In relation to retention, see paragraph 9.3(2)(l) of these rules.

Clause 2.2

	Control requirements		Minimum controls	Description of minimum controls
		(h)	Password authentication	Strong authentication mechanisms are enforced prior to allowing users to access systems within the CDR data environment, including, but not limited to, general security requirements relating to password complexity, account lockout, password history, and password ageing.
		(i)	Encryption in transit	Implement robust network security controls to help protect data in transit, including: encrypting data in transit and authenticating access to data in accordance with the data standards (if any) and industry best practice, implementing processes to audit data access and use, and implementing processes to verify the identity of communications.
(2)	An accredited data recipient of CDR data must take steps to secure their network and systems within the CDR data environment.	(a)	Encryption	Encryption methods are utilised to secure CDR data at rest by encrypting file systems, end-user devices, portable storage media and backup media. Cryptographic keys are securely stored, backed-up and retained. Appropriate user authentication controls (consistent with control requirement 1) are in place for access to encryption solutions and cryptographic keys.
		(b)	Firewalls	Firewalls are used to limit traffic from untrusted sources. This could be achieved by implementing a combination of strategies including, but not limited to: (a) restricting all access from untrusted networks; and (b) denying all traffic aside from necessary protocols; and (c) restricting access to configuring firewalls, and review configurations on a regular basis.

Schedule 2 Steps for privacy safeguard 12—security of CDR data held by accredited data recipients**Part 2** Minimum information security controls

Clause 2.2

	Control requirements		Minimum controls	Description of minimum controls
		(c)	Server hardening	Processes are in place to harden servers running applications, databases and operating systems in accordance with accepted industry standards.
		(d)	End-user devices	End-user devices, including bring-your-own-device (BYOD) systems, are hardened in accordance with accepted industry standards.
		(e)	Data Segregation	CDR data that is stored or hosted on behalf of an accredited data recipient or CDR representative is segregated from other CDR data to ensure it is accessible only by the accredited data recipient for whom consent was given and remains directly attributable to that accredited data recipient.
(3)	An accredited data recipient must securely manage information assets within the CDR data environment over their lifecycle.	(a)	Data loss prevention	Data loss and leakage prevention mechanisms are implemented to prevent data leaving the CDR data environment, including, but not limited to: (a) blocking access to unapproved cloud computing services; and (b) logging and monitoring the recipient, file size and frequency of outbound emails; and (c) email filtering and blocking methods that block emails with CDR data in text and attachments; and (d) blocking data write access to portable storage media.
		(b)	CDR data in non-production environments	CDR data is secured from unauthorised access by masking data, prior to being made available in non-production environments.

Clause 2.2

	Control requirements		Minimum controls	Description of minimum controls
		(c)	Information asset lifecycle (as it relates to CDR data)	The accredited data recipient must document and implement processes that relate to the management of CDR data over its lifecycle, including an information classification and handling policy (which must address the confidentiality and sensitivity of CDR data) and processes relating to CDR data backup, retention, and, in accordance with rules 7.12 and 7.13, deletion and de-identification.
(4)	An accredited data recipient must implement a formal vulnerability management program to identify, track and remediate vulnerabilities within the CDR data environment in a timely manner.	(a)	Security patching	A formal program is implemented for identifying, assessing the risk of and applying security patches to applications and operating as soon as practicable.
		(b)	Secure coding	Changes to the accredited data recipient's systems (including its CDR data environment) are designed and developed consistent with industry accepted secure coding practices, and are appropriately tested prior to release into the production environment.
		(c)	Vulnerability management	A formal vulnerability management program is designed and implemented, which includes regular vulnerability scanning and penetration testing on systems within the CDR data environment.
(5)	An accredited data recipient must take steps to limit prevent, detect and remove malware in regards to their CDR data environment.	(a)	Anti-malware anti-virus	Anti-virus and anti-malware solutions are implemented on endpoint devices and on servers to detect and remove malware from the CDR data environment and are updated on a regular basis. End-user systems are updated with the latest virus definitions when they connect to the network. Reports or dashboards highlighting compliance metrics are regularly generated and monitored, and non-compliant items are actioned as soon as practicable.

Schedule 2 Steps for privacy safeguard 12—security of CDR data held by accredited data recipients**Part 2** Minimum information security controls

Clause 2.2

	Control requirements		Minimum controls	Description of minimum controls
		(b)	Web and email content filtering	Solutions are implemented to identify, quarantine and block suspicious content arising from email and the web.
		(c)	Application whitelisting	Download of executables and installation of software on infrastructure and end-user devices (including on BYOD devices) is restricted to authorised software only.
(6)	An accredited data recipient must implement a formal information security training and awareness program for all personnel interacting with CDR data.	(a)	Security training and awareness	All users undergo mandatory security and privacy training prior to interacting with the CDR data environment, with ‘refresher courses’ provided at least annually.
		(b)	Acceptable use of technology	A policy relating to the CDR data environment is created, implemented, communicated and agreed to by all personnel prior to being able to access the CDR data environment. This policy sets out the responsibilities of these personnel in interacting with the CDR data environment and is regularly made aware to personnel.
		(c)	Human resource security	Background checks are performed on all personnel prior to being able to access the CDR data environment. These may include, but are not limited to, reference checks and police checks.

Schedule 3—Provisions relevant to the banking and non-bank lenders sectors

Part 1—Preliminary

Division 1.1—Simplified outline

1.1 Simplified outline of this Schedule

This Schedule deals with how these rules apply in relation to the banking sector and non-bank lenders sector (*NBL sector*).

Part 1 of this Schedule excludes certain data holders in the banking sector and NBL sector from the application of these rules, and defines certain terms relevant to those sectors.

Part 2 of this Schedule deals with eligible CDR consumers in relation to the banking sector and NBL sector.

Part 3 of this Schedule deals with CDR data that may or must be disclosed when product data requests and consumer data requests are made in relation to the banking sector and NBL sector.

Part 5 of this Schedule deals with dispute resolution requirements in relation to the banking sector and NBL sector.

Part 6 of this Schedule deals with the staged application of these rules to the NBL sector. Over time, as set out in that Part, these rules will apply to a progressively broader range of data holders and types of requests in relation to that sector. Part 6 also affects the application of these rules to the banking sector in some respects.

Part 7 of this Schedule sets out modifications of these rules, and also deals with other, miscellaneous matters, in relation to the banking sector and NBL sector.

Part 8 of this Schedule makes certain modifications to the operation of these rules in cases where an entity moves from the NBL sector to the banking sector.

Clause 1.1A

**Division 1.2—Application of these rules in relation to the banking
and NBL sectors**

1.1A Application of these rules

These rules do *not* apply in respect of any of the following kinds of data holder in the banking sector or the NBL sector (an *excluded data holder*):

- (a) a data holder that is a body corporate, if the body:
 - (i) is a registered religious body; and
 - (ii) offers a covered product or products in advancing its charitable purposes;
- (b) a data holder that is:
 - (i) a foreign ADI for the purposes of the *Banking Act 1959*; or
 - (ii) a foreign branch of an Australian ADI; or
 - (iii) a restricted ADI.

Division 1.3—Definitions

1.2 Definitions

In this Schedule:

account data has the meaning given by clause 1.3 of this Schedule.

accounting standard means an accounting standard made under section 334 of the *Corporations Act 2001*.

banking business has the meaning given by the banking sector designation instrument.

banking sector means the sector of the Australian economy that is designated by the banking sector designation instrument.

banking sector data means CDR data covered by the banking sector designation instrument.

banking sector designation instrument means the *Consumer Data Right (Authorised Deposit-Taking Institutions) Designation 2019*.

covered product has the meaning given by clause 1.4 of this Schedule.

customer data has the meaning given by clause 1.3 of this Schedule.

excluded data holder has the meaning given by clause 1.1A of this Schedule.

NBL sector, or **non-bank lenders sector**, means the sector of the Australian economy that is designated by the NBL sector designation instrument.

NBL sector data means CDR data covered by the NBL sector designation instrument.

NBL sector designation instrument means the *Consumer Data Right (Non-Bank Lenders) Designation 2022*.

product has the meaning given by the banking sector designation instrument or the NBL sector designation instrument, as applicable.

product specific data has the meaning given by clause 1.3 of this Schedule.

registered religious body means an entity that is:

- (a) registered under the *Australian Charities and Not-for-profits Commission Act 2012* as the type of entity mentioned in column 1 of item 1 of the table in subsection 25-5(5) of that Act; and
- (b) registered under the *Australian Charities and Not-for-profits Commission Act 2012* as the subtype of entity mentioned in column 2 of item 4 of the table in subsection 25-5(5) of that Act.

relevant non-bank lender has the meaning given by the NBL sector designation instrument.

transaction data has the meaning given by clause 1.3 of this Schedule.

Clause 1.3

1.3 Meaning of *customer data*, *account data*, *transaction data* and *product specific data*

- (1) A term listed in column 1 of an item in the following table has the meaning set out in column 2 of that item.

Meaning of <i>customer data</i>, <i>account data</i>, <i>transaction data</i> and <i>product specific data</i>	
Column 1	Column 2
1 <i>customer data</i> , in relation to a person and a covered product supplied by a data holder	(a) means information that identifies or is about the person; and (b) includes: (i) the person's name; and (ii) the person's contact details, including their telephone number, email address and physical address; and (iii) any information that the person provided at the time of acquiring the product, and relates to their eligibility to acquire the product; and (iv) if the person operates a business—the person's business name and ABN, the type of business, its date of establishment, the organisation type (for example, a sole trader, partnership or corporation), and whether the business is a charitable or not-for-profit organisation; and (v) if the person is a corporation—the person's ACN (within the meaning of the <i>Corporations Act 2001</i>) if any, and the date and country of registration of the corporation; and (c) if the person is an individual—does <i>not</i> include the person's date of birth; and (d) does <i>not</i> include: (i) financial hardship information within the meaning of subsection 6QA(4) of the <i>Privacy Act 1988</i>; or (ii) repayment history information within the meaning of subsection 6V(1) of that Act; where the information was disclosed by or to a credit reporting body within the meaning of that Act.
2 <i>account data</i> , in relation to an account that is, or is for, a covered product supplied by a data holder	(a) means information that identifies or is about the operation of the account; and (b) includes: (i) the account number, unless it is masked (whether as required by law or in accordance with any applicable standard or industry practice); and (ii) the account name; and (iii) the account balance; and (iv) details of any authorisations on the account, including authorisations for direct debit deductions, and scheduled payments (for example, regular payments, payments to billers and international payments); and (v) any details of payees stored with the account, such as those entered by the customer in a payee address book.
3 <i>transaction data</i> , in relation to a particular transaction on an account that is,	(a) means information that identifies or describes the characteristics of the transaction; and (b) includes all of the following: (i) the date on which the transaction occurred;

Clause 1.4

Meaning of customer data, account data, transaction data and product specific data	
Column 1	Column 2
or is for, a covered product supplied by a data holder	(ii) any identifier for the counter-party to the transaction; (iii) if the counter-party is a merchant—any information provided by the merchant in relation to the transaction; (iv) the amount debited from or credited to the account pursuant to the transaction; (v) any description of the transaction; (vi) how the transaction would be ordinarily characterised in the sector (for example, a debit, a credit, a fee or interest).
4 product specific data , in relation to a covered product supplied by a data holder	(a) means information that identifies or describes the characteristics of the covered product; and (b) includes all of the following information about the covered product: (i) its type; (ii) its name; (iii) its price, including fees, charges and interest rates (however described); (iv) the features, and any associated benefits of the product (such as discounts and bundles); (v) any terms and conditions applicable to the product; (vi) any customer eligibility requirements.

- (2) For the purposes of subparagraph (b)(iv) of column 2 of item 2, details of authorisations for direct debit deductions include, to the extent available:
- (a) any identifier for the counter-party that is authorised to debit the account; and
 - (b) the dates and amounts of any debits the counter-party has made.

1.4 Meaning of covered product

- (1) A product of a kind specified in column 2 of an item of the table below (however described) is a **covered product** for a sector specified in column 1 of that item if:
- (a) the product is publicly offered by or on behalf of a data holder in that sector; and
 - (b) the product is offered to customers by way of standard form contracts.

Note: For paragraph (b), section 27 of the Australian Consumer Law sets out matters that a court may take into account when determining whether a contract is a standard form contract.

- (2) A product need not be available to all members of the public in order to be publicly offered.

Note: A product may be offered subject to eligibility requirements. For instance, it may be available only to a person operating a particular type of business. This does *not* prevent it from being “publicly offered” if it would otherwise fall within the ordinary meaning of that term.

Products that may be covered products		
Item	Column 1: Sector	Column 2: Products
1	Banking and NBL sectors	(a) a personal credit or charge card account;

Clause 1.5

Products that may be covered products		
Item	Column 1: Sector	Column 2: Products
		(b) a business credit or charge card account; (c) a residential home loan; (d) a home loan for an investment property; (e) a mortgage offset account; (f) a personal loan; (g) business finance; (h) a loan for an investment; (i) a line of credit (personal); (j) a line of credit (business); (k) an overdraft (personal); (l) an overdraft (business); (m) asset finance (including standard vehicle financing and leases); (n) a consumer lease; (o) a reverse mortgage; (p) a buy now, pay later product.
2	Banking sector only	(a) a savings account; (b) a call account; (c) a term deposit; (d) a current account; (e) a cheque account; (f) a debit card account; (g) a transaction account; (h) a personal basic account; (i) a GST or tax account; (j) a cash management account; (k) a farm management account; (l) a pensioner deeming account; (m) a retirement savings account; (n) a trust account; (o) a foreign currency account.

1.5 Meaning of *trial product*

- (1) For these rules, in relation to the banking sector and NBL sector, a covered product is a ***trial product*** if the product is offered:
- (a) with the description “pilot” or “trial”; and
 - (b) with a statement that it will operate as a pilot or trial for a period that ends no more than 6 months after the initial offering (the ***trial period***); and
 - (c) on the basis that the number of customers supplied with the product for the purposes of the trial will be no more than 1,000; and

Clause 1.5

- (d) with a statement that the product may be terminated before the end of the trial period and that, if it is, the CDR data in relation to the product may *not* be available for data sharing under these rules.
- (2) A covered product will cease to be a trial product from the first time any of the following occurs:
 - (a) the product is supplied or offered after the end of the trial period;
 - (b) the product begins to be supplied to more than 1,000 customers.

Clause 2.1

Part 2—Eligible CDR consumers: banking and NBL sectors

2.1 Additional criteria for eligibility—banking and NBL sectors

For the purposes of subrules 1.10B(1) and (2), the additional criterion for a CDR consumer to be *eligible* in relation to a particular data holder in the banking sector or the NBL sector at a particular time, is that the account mentioned in paragraph 1.10B(1)(b) or (2)(b) is set up in such a way that, at that time, it can be accessed online.

Note: Rule 1.10B provides, among other things, that a person is eligible in relation to a data holder if the person is:

- (a) an account holder or secondary user for an account with the data holder; or
- (b) a partner in a partnership that has an account with the data holder (whether or not the person is an account holder or secondary user).

2.2 Meaning of *account privileges*—banking and NBL sectors

- (1) This clause is made for the purposes of the definition of *account privileges* in subrule 1.7(1).
- (2) For the banking sector and NBL sector, a person has account privileges in relation to an account the person holds with a data holder in either of those sectors if:
 - (a) the account is, or is for, a covered product; and
 - (b) the person is able to make transactions on the account.

2.3 Consumer dashboard—application of rule 1.15

For the purposes of subrule 1.15(1), if a data holder in the banking sector or NBL sector receives a consumer data request from an accredited person on behalf of a CDR consumer who is eligible in relation to the data holder, the data holder must provide the CDR consumer with a consumer dashboard.

Part 3—CDR data that may be accessed under these rules in relation to the banking sector and NBL sector

3.1 Meaning of *required product data* and *voluntary product data*—banking sector and NBL sector

- (1) ***Required product data***, in relation to the banking sector or the NBL sector, means CDR data for which there are no CDR consumers:
- (a) that is banking sector data or NBL sector data (as applicable); and
 - (b) that is product specific data about a covered product (other than a covered product mentioned in subclause (2)); and
 - (c) that is held by the data holder in a digital form.

Note: Product data can only be required to be disclosed if the data is about the eligibility criteria, terms and conditions, price, availability or performance of a covered product, or if the data is about availability or performance and is publicly available (see section 56BF of the Act).

- (2) For the purposes of paragraph (1)(b), the covered products mentioned in this subclause are:
- (a) a foreign currency account; and
 - (b) a consumer lease; and
 - (c) a reverse mortgage; and
 - (d) a margin loan; and
 - (e) asset finance that is non-standard vehicle finance (for example, a novated lease).
- (3) ***Voluntary product data***, in relation to the banking sector or the NBL sector, means CDR data for which there are no CDR consumers:
- (a) that is banking sector data or NBL sector data (as applicable); and
 - (b) that is product specific data about a covered product; and
 - (c) that is not required product data.

3.2 Meaning of *required consumer data* and *voluntary consumer data*—banking and NBL sectors

- (1) A ***relevant account***, in relation to a CDR consumer, means an account that is held with a data holder of banking sector data or NBL sector data and is, or is for, a covered product, and that:
- (a) is held in the name of the CDR consumer alone; or
 - (b) is a joint account of which the CDR consumer is one of the account holders; or
 - (c) is a partnership account for a partnership in which the CDR consumer is a partner; or
 - (d) is an account for which the CDR consumer is a secondary user;
- whether or not the account can be accessed online, and, subject to subclauses (6) and (7), whether or not the account is open.

Clause 3.2

- (2) Subject to this clause, **required consumer data**, in relation to the banking sector or the NBL sector, means CDR data for which there is at least one CDR consumer:

- (a) that is banking sector data or NBL sector data (as applicable) of a kind mentioned in clause 1.3 relating to a relevant account of a CDR consumer (other than an account that is, or is for, a covered product mentioned in subclause (3); and
- (b) that is held by the data holder in a digital form.

Note 1: Paragraph (a), as it applies to product specific data mentioned in clause 1.3, would cover the following:

- any product prices that were negotiated individually with a CDR consumer;
- the interest rates that are current at the time of the request, as well as any other interest rates applicable to the covered product, and any terms and conditions associated with those interest rates;
- any features and benefits negotiated individually with a CDR consumer.

Note 2: So long as the CDR consumer is eligible to make a consumer data request in relation to a particular data holder, they will be able to make a consumer data request that relates to any relevant open account they have with the data holder (subject to subclauses (6) and (7)), including accounts that cannot be accessed online.

Note 3: A person is not a data holder of CDR data that was held by or on behalf of them before the earliest holding day (see paragraph 56AJ(1)(b) of the Act). Accordingly, such data cannot be requested under these rules.

- (3) For the purposes of paragraph (2)(a), the covered products mentioned in this subclause are:
- (a) a foreign currency account; and
 - (b) a consumer lease; and
 - (c) a reverse mortgage; and
 - (d) a margin loan; and
 - (e) asset finance that is non-standard vehicle finance (for example, a novated lease).
- (4) Subject to this clause, CDR data is **voluntary consumer data** in relation to the banking sector or the NBL sector if:
- (a) there is at least one CDR consumer for the CDR data; and
 - (b) the CDR data relates to a covered product; and
 - (c) the CDR data is not required consumer data.
- (5) However:
- (a) CDR data is neither **required consumer data** nor **voluntary consumer data** at a particular time if the data is:
 - (i) account data, transaction data or product specific data in relation to a joint account or partnership account for which any of the individuals who are account holders or partners in the relevant partnership is less than 18 years of age at that time; or
 - (ii) CDR data relating to a debt of a CDR consumer, if the data was acquired by a data holder acting in its capacity as a debt collector or debt buyer; and
 - (b) for a consumer data request made by or on behalf of a particular person, customer data in relation to any account holder or secondary user other

Clause 3.2

than that person is neither *required consumer data* nor *voluntary consumer data*.

Exception to required consumer data—open accounts

- (6) Despite subclause (2), if a relevant account is open at a particular time, CDR data relating to that account is not *required consumer data* at that time if the data is:
- (a) transaction data in relation to a transaction that occurred more than 2 years before that time; or
 - (b) account data that relates to an authorisation for a direct debit from the account, if the direct debit occurred more than 13 months before that time.

Note: As a result, such CDR data would be *voluntary consumer data* unless otherwise excluded by this clause.

Exception to required consumer data—closed accounts

- (7) Despite subclause (2), if a relevant account is closed at a particular time, CDR data relating to that account is not *required consumer data* at that time.

Note: As a result, such CDR data would be *voluntary consumer data* unless otherwise excluded by this clause.

Clause 5.1

Part 5—Dispute resolution: banking sector and NBL sector

Note: See the definitions of “meet the internal dispute resolution requirements” and “meet the external dispute resolution requirements” in subrule 1.7(1) of these rules. See also paragraphs 5.12(b) and (c) of these rules, and rules 6.1 and 6.2.

5.1 Meeting internal dispute resolution requirements—banking sector and NBL sector

- (1) For the banking sector and NBL sector, an accredited person or data holder ***meets the internal dispute resolution requirements*** if its internal dispute resolution processes comply with provisions of Regulatory Guide 271 that deal with the following:
 - (a) standards that its internal dispute resolution procedures or processes must meet regarding the following:
 - (i) commitment and culture;
 - (ii) the enabling of complaints;
 - (iii) resourcing;
 - (iv) responsiveness;
 - (v) objectivity and fairness;
 - (vi) policy and procedures;
 - (vii) data collection, analysis and internal reporting;
 - (viii) continuous improvement;
 - (b) outsourcing internal dispute resolution processes;
 - (c) acknowledgement of complaint;
 - (d) what an internal dispute resolution response must contain;
 - (e) maximum timeframes for an internal dispute resolution response;
 - (f) internal dispute resolution response requirements for multi-tier internal dispute resolution processes;
 - (g) the role of customer advocates;
 - (h) establishing links between internal dispute resolution processes and external dispute resolution;
 - (i) systemic issues.

- (2) In this clause:

Regulatory Guide 271 means Regulatory Guide 271 published by the Australian Securities & Investments Commission, as in force from time to time and applied as if:

- (a) references to complaints were references to CDR consumer complaints;
and
- (b) references to financial firms and financial service providers were references to accredited persons and data holders.

Note: Regulatory Guide 271 could, in 2025, be accessed from the Australian Securities and Investments Commission’s website (<https://asic.gov.au>).

5.2 Meeting external dispute resolution requirements—banking sector and NBL sector

For the banking sector and NBL sector, an accredited person or data holder ***meets the external dispute resolution requirements*** if it is a member of the recognised external dispute resolution scheme operated by the Australian Financial Complaints Authority Limited for the relevant sector.

Clause 6.1

Part 6—Application of these rules to the banking and NBL sectors

Division 6.1—Staged application to the NBL sector

6.1 Definitions

In this Part:

complex request means a consumer data request that:

- (a) is made on behalf of a secondary user; or
- (b) relates to a joint account or a partnership account; or
- (c) is made on behalf of a CDR consumer who has a nominated representative.

Note: For paragraph (c), see paragraph 1.13(1)(c) of these rules.

initial provider—see clause 6.2.

large provider—see clause 6.2.

tranche 1 date means 13 July 2026.

tranche 2 date means 9 November 2026.

tranche 3 date means 10 May 2027.

6.2 Meaning of *initial provider* and *large provider*

- (1) A relevant non-bank lender is an **initial provider** on and after the commencement day if, on the commencement day, each of the following is over \$10 billion:
 - (a) the total value of the resident loans and resident finance leases reported to the Australian Prudential Regulation Authority under the applicable standards by the lender and each of its associated non-bank lenders in relation to the most recent calendar month for which a report was given to the Australian Prudential Regulation Authority before the commencement day;
 - (b) the total value of the resident loans and resident finance leases reported to the Australian Prudential Regulation Authority under the applicable standards by the lender and each of its associated non-bank lenders during the 12 months before the commencement day, averaged over that period.
- (2) Subject to this clause, a relevant non-bank lender is a **large provider** on and after the first day on which it meets the large provider qualification if, on that day, the lender:
 - (a) is not an initial provider; and
 - (b) meets the large provider qualification, as set out in subclause (3) or (4).
- (3) A relevant non-bank lender meets the large provider qualification on the commencement day, or on a 1 July after that day (the **relevant day**), if:
 - (a) each of the following is over \$1 billion:
 - (i) the total value of the resident loans and resident finance leases reported to the Australian Prudential Regulation Authority under the

Clause 6.2

-
- applicable standards by the lender and each of its associated non-bank lenders in relation to the most recent calendar month for which a report was given to the Australian Prudential Regulation Authority before the relevant day;
- (ii) the total value of the resident loans and resident finance leases reported to the Australian Prudential Regulation Authority under the applicable standards by the lender and each of its associated non-bank lenders during the 12 months before the relevant day, averaged over that period; and
- (b) the lender has more than 1,000 customers on that day.
- (4) A relevant non-bank lender also meets the large provider qualification on a day that is, or is after, the commencement day, if the lender is an accredited person on that day.
- (5) However, a relevant non-bank lender to whom subclause (4) applies is taken, for the purposes of that subclause, to cease to meet the large provider qualification on and after a later day if the lender:
- (a) ceases to be an accredited person on that later day; and
- (b) has not met the large provider qualification in subclause (3) at any time before that later day.

Calculating averaged value of resident loans and resident finance leases

- (6) For the purpose of calculating the averaged value of resident loans and resident finance leases reported by a relevant non-bank lender and each of its associated non-bank lenders over 12 calendar months, any month in relation to which no report was made by the lender, or any of its associated non-bank lenders, is to be disregarded.

Note: A lender is not required to provide a monthly report to the Australian Prudential Regulation Authority under the applicable standards if its total assets are less than \$400 million as at the last day of its financial year.

- (7) In this clause:

applicable standards means the standards made by the Australian Prudential Regulation Authority under the *Financial Sector (Collection of Data) Act 2001* dealing with the provision of information to the Authority relating to the loans and finance leases of an ADI or registered financial corporation.

Note: The applicable standards were, in 2025, set out in the *Financial Sector (Collection of Data) (reporting standard) determination No. 9 of 2022* [F2022L00212].

associated non-bank lender: a relevant non-bank lender (the ***first lender***) is an ***associated non-bank lender*** of another relevant non-bank lender (the ***second lender***) if any of the following apply:

- (a) the first lender is a related body corporate of the second lender for the purposes of the Act (see subsection 4A(5) of the Act);
- (b) the first lender has an arrangement with the second lender in relation to the administration, offering, provision or underwriting of resident loans or resident finance leases;

Clause 6.3

- (c) the second lender has an arrangement with the first lender for the administration, offering, provision or underwriting of resident loans or resident finance leases.

commencement day means the day on which the *Competition and Consumer (Consumer Data Right) Amendment (2025 Measures No. 1) Rules 2025* commences.

finance lease has the meaning given by *AASB 16 - Leases - February 2016* [F2016L00233].

loan, in relation to a relevant non-bank lender, means a financial asset that is:

- (a) created when a relevant non-bank lender lends funds directly to a debtor; and
- (b) evidenced by non-negotiable documents.

resident, applied to a loan or a finance lease, means that the loan or finance lease is made to a resident institutional unit or units.

resident institutional unit has the meaning given by the relevant standard made by the Australian Prudential Regulation Authority under the *Financial Sector (Collection of Data) Act 2001* dealing with definitions for the collection of Economic and Financial Statistics information.

Note: The relevant standard was, in 2025, set out in the *Financial Sector (Collection of Data) (reporting standard) determination No. 5 of 2024*. In general terms, “resident institutional unit” refers to an economic entity that is capable of owning assets, incurring liabilities and engaging in economic activities and in transactions with other entities, and whose centre of predominant economic interest is Australia. It includes individuals and groups of individuals that form a household, as well as legal entities such as businesses.

6.3 Obligation to notify Commission about customer numbers

- (1) A relevant non-bank lender that satisfies paragraph 6.2(3)(a) must, if requested by the Commission, notify the Commission of the following, in writing, as soon as practicable after receiving the request:
- (a) the total value of the resident loans and resident finance leases mentioned in subparagraphs 6.2(3)(a)(i) and (ii);
 - (b) whether the lender also satisfies paragraph 6.2(3)(b).

Civil penalty: \$250,000.

- (2) A relevant non-bank lender must notify the Commission in writing as soon as practicable if, on a day mentioned in subclause 6.2(3), it satisfies paragraph 6.2(3)(a) but does *not* satisfy paragraph 6.2(3)(b).

Civil penalty: \$250,000.

6.4 Application to initial providers

- (1) These rules apply, as set out in the following table, in relation to a relevant non-bank lender that is an initial provider.

Clause 6.5

Application to initial providers		
	Column 1	Column 2
	Type of request	Application of rules
1	A product data request under Part 2 of these rules	On and after the tranche 1 date
2	A consumer data request under Part 4 of these rules, other than a complex request	On and after the tranche 2 date

- (2) These rules do not apply to a complex request under Part 4, in relation to a relevant non-bank lender that is an initial provider.

6.5 Application to large providers

- (1) In this clause, where a relevant non-bank lender is a large provider, its **LP date** is the date that it became a large provider.
- (2) These rules apply in relation to such a large provider with an LP date that is on or before 13 July 2025 as set out in the following table.

Application to large providers with LP date on or before 13 July 2025		
	Column 1	Column 2
	Type of request	Application of rules
1	A product data request under Part 2 of these rules	On and after the tranche 1 date
2	A consumer data request under Part 4 of these rules, other than a complex request	On and after the tranche 3 date

- (3) These rules apply in relation to such a large provider with an LP date that is after 13 July 2025 date as set out in the following table.

Application to large providers with LP date after 13 July 2025		
	Column 1	Column 2
	Type of request	Application of rules
1	A product data request under Part 2 of these rules	On and after the day 12 months after its LP date
2	A consumer data request under Part 4 of these rules, other than a complex request	On and after the day 15 months after its LP date

- (4) These rules do not apply to a complex request under Part 4, in relation to a relevant non-bank lender that is a large provider.

Clause 6.6

6.6 Application to other non-bank lenders

These rules only apply in relation to a relevant non-bank lender that:

- (a) is an initial provider; or
- (b) is a large provider; or
- (c) has notified the Commission under clause 6.11 that it wishes Part 2 or Part 4 of these rules to apply to it from a specified date.

6.7 Consumer data requests under Part 3 of these rules

Part 3 of these rules does *not* apply in relation to NBL sector data.

Division 6.2—Application to data holders in the banking sector

6.8 Consumer data requests under Part 3 of these rules

Part 3 of these rules does *not* apply in relation to banking sector data.

6.9 Entities that become unrestricted ADIs after specified date

- (1) This clause applies to a person who becomes an unrestricted ADI on a day (the **relevant day**) that is on or after the day the *Competition and Consumer (Consumer Data Right) Amendment Rules (2025 Measures No. 1) 2025* commences.

Note: This includes a person who was previously a restricted ADI, and was therefore an excluded data holder for this sector.

- (2) These rules apply in relation to the person:
- (a) in respect of a product data request—on and after the day that is 12 months after the relevant day; and
 - (b) in respect of a consumer data request made by an accredited person, other than a complex request—on and after the day that is 15 months after the relevant day; and
 - (c) in respect of a complex request made by an accredited person—on and after the day that is 18 months after the relevant day.

6.10 Providers of buy now, pay later products

- (1) In this clause, where a data holder in the banking sector offers a covered product that is a buy now, pay later product (a **BNPL product**), its **BNPL date** is the date that it first offered a BNPL product.
- (2) These rules apply in relation to such a data holder with a BNPL date that is on or before the tranche 1 date, in respect of CDR data that relates to a BNPL product, as set out in the following table:

Application to data holder with BNPL date on or before the tranche 1 date, in respect of CDR data that relates to a BNPL product		
	Column 1 Type of request	Column 2 Application of rules
1	A product data request under Part 2 of these rules	On and after the tranche 1 date
2	A consumer data request under Part 4 of these rules, other than a complex request	On and after the tranche 2 date

- (3) These rules apply in relation to such a data holder with a BNPL date that is between 14 July 2026 and 10 May 2027, in respect of CDR data that relates to a BNPL product, as set out in the following table:

Schedule 3 Provisions relevant to the banking and non-bank lenders sectors

Part 6 Application of these rules to the banking and NBL sectors

Clause 6.10

Application to data holder with BNPL date after the tranche 1 date, in respect of CDR data that relates to a BNPL product		
	Column 1	Column 2
	Type of request	Application of rules
1	A product data request under Part 2 of these rules	On and after the day 12 months after its BNPL date
2	A consumer data request under Part 4 of these rules, other than a complex request	On and after the day 15 months after its BNPL date

- (4) These rules do not apply to a complex request under Part 4, in relation to such a data holder in respect of CDR data that relates to a BNPL product.

Division 6.3—Disclosing CDR data voluntarily: banking sector and NBL sector

6.11 Disclosure of CDR data voluntarily

- (1) A data holder in the banking sector or NBL sector, other than an excluded data holder, may notify the Commission that it wishes Part 2 or Part 4 of these rules to apply to it from a specified date.
- (2) The data holder, from that specified date, may:
 - (a) receive a request under Part 2 or Part 4 of these rules from a CDR consumer who is eligible in relation to that data holder; and
 - (b) disclose required or voluntary product or consumer data in response to the request.
- (3) These rules apply to the data holder in respect of that request, and all subsequent requests under Part 2 or Part 4 of these rules by consumers who are eligible in relation to that data holder.

Note: This clause means that, among other things, a data holder who elects to receive and respond to such a request must comply with all aspects of these rules relevant to handling it (and all future requests by eligible consumers). For instance, the data holder would need to provide the consumer dashboard in accordance with subrule 1.15(1) upon receiving a request under Part 4, and would need to meet the internal and external dispute resolution requirements.

Clause 6.12

Division 6.4—Application to trial products

6.12 CDR data relating to trial products

- (1) These rules do not apply in respect of banking sector data or NBL sector data that relates to a trial product, while the product is a trial product.
- (2) If a covered product ceases to be a trial product under subclause 1.5(2), these rules apply in respect of banking sector data or NBL sector data relating to that product (including such data generated while the product was a trial product).

Part 7—Other rules and modifications of these rules, for the banking sector and NBL sector

7.1A Transfer of data sharing obligations between data holders

- (1) A data holder in the banking sector or NBL sector (the **first data holder**) may elect to comply with these rules in the place of another data holder in the banking sector or NBL sector (the **second data holder**), in relation to a covered product, if:
 - (a) either:
 - (i) the second data holder offers the product on behalf of the first data holder, such that the first data holder is the data holder that enters into contracts with consumers to provide the product; or
 - (ii) the first and second data holders are related bodies corporate for the purposes of the Act (see subsection 4A(5) of the Act); and
 - (b) both data holders have agreed to the election in writing.
- (2) If an election is in effect under subclause (1), these rules apply in relation to the first data holder in relation to the covered product as if it were the second data holder.

7.1 Laws relevant to the management of CDR data—banking sector and NBL sector

For paragraph (f) of the definition of “law relevant to the management of CDR data” in rule 1.7 of these rules, the *Australian Securities and Investments Commission Act 2001* is a law relevant to the management of CDR data in relation to the banking sector and NBL sector.

7.2 Conditions for accredited person to be data holder

- (1) For the purposes of paragraph 56AJ(4)(c) of the Act, the following conditions are specified:
 - (a) the person is an ADI or a relevant non-bank lender; and
 - (aa) under Part 6 of this Schedule, these rules already apply to the person in their capacity as a data holder of other CDR data; and
 - (b) the accredited person has collected CDR data, or any data directly or indirectly derived from CDR data (together, the **relevant CDR data**), in accordance with a collection consent;
 - (c) the accredited person reasonably believes that the relevant CDR data is relevant to its supply of a product to the CDR consumer, for that data;
 - (d) either:
 - (i) the conditions specified in subclause (2); or
 - (ii) the conditions specified in subclause (2A).

Conditions involving notification prior to first collection

- (2) For subparagraph (1)(d)(i), the conditions are:
 - (a) either:

Clause 7.3

- (i) the accredited person is supplying the product to the CDR consumer; or
 - (ii) the accredited person has received an application from the CDR consumer for the supply of the product to the CDR consumer, or is aware that the CDR consumer proposes to apply for the supply of the product; and
- (b) prior to the first collection of the relevant CDR data in accordance with the collection consent, the accredited person notified the CDR consumer that the accredited person would hold that data in accordance with the accredited person's usual data holding practices for consumer data.

Note: If, prior to the first collection of the relevant CDR data, an accredited person has notified the CDR consumer in accordance with this subclause, the accredited person does not need to notify the CDR consumer again before collecting further data in accordance with the collection consent.

Conditions involving request for consent

- (2A) For subparagraph (1)(d)(ii), the conditions are that:
- (a) the accredited person is supplying the product to the CDR consumer; and
 - (b) the accredited person has requested the CDR consumer to consent to the accredited person changing from an accredited data recipient of the relevant CDR data to a data holder of the relevant CDR data; and
 - (c) the accredited person has informed the CDR consumer:
 - (i) that, if the consumer consents to that change, the privacy safeguards applicable to a data holder (rather than those applicable to an accredited data recipient) would apply to the accredited person in relation to the relevant CDR data; and
 - (ii) of the manner in which the accredited person proposes to treat the relevant CDR data; and
 - (iii) why the accredited person was entitled to request the consumer's consent to the change; and
 - (iv) of the consequences of the consumer *not* giving their consent to the change; and
 - (d) the CDR consumer has consented.

Related modifications of these rules

- (3) If a person becomes a data holder, rather than an accredited data recipient, of CDR data as a result of subsection 56AJ(4) of the Act and this clause:
- (b) for paragraph 4.26(1)(h) of these rules, any authorisations to disclose CDR data in relation to the consumer data request expire; and
 - (c) if the person's accreditation has been surrendered or revoked, the following do not apply to the person in relation to that CDR data:
 - (i) subrule 5.23(2);
 - (ii) paragraph 5.23(3)(b).

7.3 Streamlined accreditation—banking sector

For paragraph 5.5(b) of these rules, for the banking sector, the criteria for streamlined accreditation are that the accreditation applicant:

- (a) is an ADI; but
- (b) is not a restricted ADI.

7.4 Exemptions to accreditation criteria—banking sector

- (1) This clause sets out how the accreditation criteria operate in relation to the banking sector, for the purposes of rule 5.12 of these rules.
- (2) An accredited person that:
 - (a) is an ADI; but
 - (b) is not a restricted ADI;need not comply with paragraph 5.12(2)(b) of these rules.

7.5 Grounds for revocation, suspension and surrender of accreditation—banking sector

For item 5 of the table in rule 5.17:

- (b) the relevant condition is that the accredited person was, at the time of the accreditation, an ADI; and
- (c) the accredited person ceases to satisfy the condition if its authority to carry on banking business is no longer in force.

Clause 8.1

Part 8—Entities that move from NBL sector to banking sector

8.1 Moving from the NBL sector to the banking sector

Clause applies where data holder moves from NBL to banking sector

- (1) This clause applies where:
 - (a) for the purpose of moving to the banking sector, a person ceases to be a data holder in the NBL sector at a particular time (the **NBL exit time**); and
 - (b) at a time as soon as practicable thereafter (the **transition time**), the person becomes a data holder in the banking sector; and
 - (c) immediately before the NBL exit time:
 - (i) a request was on foot under Part 2 or 4 of these rules in respect of NBL sector data of the data holder; or
 - (ii) a current authorisation or consent given under Part 4 of these rules in respect of NBL sector data covered by such a request was in existence.

Request taken to be made in respect of banking sector

- (2) The request, consent or authorisation mentioned in subclause (1) remains effective after the transition time as though it had instead been made on the basis that the data holder was in the banking sector, and the NBL sector data was banking sector data.
- (3) To avoid doubt, without limiting subclause (2):
 - (a) these rules apply as though a reference in the request, authorisation or consent to the data holder and the CDR data in the NBL sector were a reference to the data holder and CDR data in the banking sector; and
 - (b) the consent or authorisation does not expire merely because the data holder has ceased to operate in the NBL sector.

Data holder must respond to the request

- (4) Despite anything else in this Schedule, the data holder must respond to the request in accordance with Part 2 or Part 4 as the case requires.

Note: If the data holder has become a restricted ADI, it will be an excluded ADI, and this provision will override clause 1.1A. If it becomes an unrestricted ADI, this provision will override the allowance of time in clause 6.9.

CDR consumer must be notified of change of sector

- (5) As soon as practicable after the transition time, the data holder must give a written notification to each CDR consumer in respect of whom a request mentioned in subclause (1) is on foot that:
 - (a) the data holder has ceased to operate in the NBL sector; and
 - (b) the data holder is now operating in the banking sector; and
 - (c) the data requested is now banking sector data; and

Clause 8.1

- (d) the CDR consumer may, under rule 4.13, 4.20J or 4.25, choose to withdraw an authorisation or consent given under Part 4 in respect of the request.
- (6) As soon as practicable after the transition time, the data holder must give a written notification to each accredited person who made a consumer data request mentioned in subclause (1) that:
 - (a) the data holder has ceased to operate in the NBL sector; and
 - (b) the data holder is now operating in the banking sector.
- (7) Where an accredited person would be required to update the consumer dashboard of a relevant CDR consumer under rule 4.19 as a result of the sector change mentioned in subclause (1), the accredited person must instead update the consumer dashboard within a reasonable period after receiving the notification mentioned in subclause (6).

Schedule 4—Provisions relevant to the energy sector

Part 1—Preliminary

1.1 Simplified outline of this Schedule

This Schedule deals with how these rules apply in relation to the energy sector.

Some defined terms apply only in relation to the energy sector. These are defined in Part 1 of this Schedule.

Part 2 of this Schedule deals with eligible CDR consumers in relation to the energy sector.

Part 3 of this Schedule deals with CDR data that can or must be disclosed when product data requests and consumer data requests are made in relation to the energy sector.

Part 4 of this Schedule deals with the three agencies that have special functions in the energy sector. The AER and the Victorian agency hold product data and respond to product data requests. AEMO holds AEMO data.

AEMO data is specified as SR data for these rules, so that AEMO is the secondary data holder for this CDR data, and the relevant retailer is specified as the primary data holder. Division 1.5 of these rules applies to an SR data request.

Part 5 of this Schedule deals with internal dispute resolution requirements in relation to the energy sector.

Part 6 of this Schedule deals with the correction of data in compliance with the privacy safeguards.

Part 7 of this Schedule deals with reporting and record keeping requirements of these rules that apply differently in relation to the energy sector.

Part 8 of this Schedule deals with the staged application of these rules to the energy sector. Over time, as set out in this Part, these rules will apply to a progressively broader range of data holders within the energy sector.

Part 9 of this Schedule deals with other provisions of these rules that apply differently in relation to the energy sector.

1.2 Interpretation

In this Schedule:

AEMO means the Australian Energy Market Operator Limited (ACN 072 010 327).

Clause 1.2

AEMO data means:

- (a) in relation to a retailer:
 - (i) NMI standing data; or
 - (ii) metering data; or
 - (iii) DER register data;that relates to an arrangement with the retailer; and
- (b) in relation to a customer—information covered by paragraph (a) that relates to the arrangement relevant to the customer.

Note: This is data for which AEMO is the designated data holder under the energy sector designation instrument.

AER means the Australian Energy Regulator

account data has the meaning given by clause 1.3 of this Schedule.

arrangement has the meaning given by subsection 5(1) of the energy sector designation instrument;

billing data has the meaning given by clause 1.3 of this Schedule.

customer has the meaning given by subsection 5(1) of the energy sector designation instrument;

customer data has the meaning given by clause 1.3 of this Schedule.

DER (for distributed energy resources), in relation to an account, means any energy resources that are covered by the arrangement for the account and registered on the DER Register.

DER Register means the DER Register maintained under the National Electricity Rules.

DER register data has the meaning given by clause 1.3 of this Schedule.

energy sector means the sector of the Australian economy that is designated by the energy sector designation instrument.

energy sector data means CDR data covered by the energy sector designation instrument.

energy sector designation instrument means the *Consumer Data Right (Energy Sector) Designation 2020*.

metering data has the meaning given by clause 1.3 of this Schedule.

National Energy Retail Law has the meaning given by the energy sector designation instrument.

National Electricity Rules has the meaning given by the energy sector designation instrument.

National Electricity Law means the National Electricity Law set out in the Schedule to the *National Electricity (South Australia) Act 1996* (SA).

Clause 1.3

National Electricity Market has the meaning given by the National Electricity Law.

NMI standing data has the meaning given by clause 1.3 of this Schedule.

plan means a form of arrangement that is offered to, or has been supplied to, customers by a retailer.

product specific data has the meaning given by clause 1.3 of this Schedule.

retailer has the meaning given by clause 1.4 of this Schedule.

tailored tariff data has the meaning given by clause 1.3 of this Schedule.

Victorian agency means the Department of State administered by the Minister of Victoria administering the *National Electricity (Victoria) Act 2005* (Vic).

Note: The relevant Victorian agency must be declared a participating entity under section 56AS of the Act.

1.3 Meaning of terms for types of data

For this Schedule, a term listed in column 1 of the table has the meaning given by column 2.

Meaning of <i>customer data, account data, billing data, metering data, NMI standing data, DER register data, product specific data and tailored tariff data</i>		
	Column 1	Column 2
1	customer data , in relation to a particular person	(a) means information that identifies or is about the person; and (b) includes: (i) the person's name; and (ii) the person's contact details, including their: (A) telephone number; and (B) email address; and (C) physical address; and (iii) any information that: (A) the person provided at the time of acquiring a particular product; and (B) relates to their eligibility to acquire that product; and (iv) if the person operates a business—the following: (A) the person's business name; (B) the person's ABN; and (c) if the person is an individual—does not include the person's date of birth.
2	account data , in relation to a particular account	(a) means information that identifies or is about the operation of the account; and (b) includes: (i) the account number, other than to the extent that an account number is masked (whether as required by law or in accordance with any applicable standard or industry practice); and (ii) the date the account was created; and

Clause 1.3

Meaning of <i>customer data, account data, billing data, metering data, NMI standing data, DER register data, product specific data and tailored tariff data</i>		
Column 1	Column 2	
	(iii) the unique identifiers that represent the connection points associated with the account; and (iv) any payment schedule associated with the account (including payment method and frequency of payments); and (v) any concessions, rebates or grants applied to the account; and (c) does not include information about whether the account is associated with a hardship program.	
3	<i>billing data</i> , in relation to a particular account	means: (a) information about a bill that has been issued in relation to the arrangement to which the account relates, including: (i) the account number; and (ii) the billing period; and (iii) the date the bill was issued; and (iv) the total amount payable; and (v) the tariffs and charges applicable; and (vi) details of consumption or estimated consumption of energy; and (b) information about a payment or other transaction made in relation to the arrangement, including: (i) the nature of the transaction; and (ii) the date and time of the transaction; and (iii) the amount paid; and (iv) the payment method; and (c) the account balance at any time.
4	<i>metering data</i> , in relation to a particular account	means metering data, other than metering data for a type 7 metering installation, within the meaning given by the National Electricity Rules, that relates to the account.
5	NMI standing data, in relation to a particular account	means NMI standing data, within the meaning given by the National Electricity Rules, that relates to a connection point associated with the account.
6	<i>DER register data</i> , in relation to a particular account	(a) means DER register information, within the meaning given by the National Electricity Rules, for DER that relate to the account; and (b) includes: (i) the unique identifier for each connection point associated with the metering data that relates to the DER; and (ii) the approved small generating unit capacity as agreed with a network service provider in the connection agreement; and (iii) the number of phases available for the installation of DER; and (iv) the number of phases the DER are connected to; and

Clause 1.4

Meaning of <i>customer data, account data, billing data, metering data, NMI standing data, DER register data, product specific data and tailored tariff data</i>	
Column 1	Column 2
	(v) information identifying small generating units designed with the ability to operate in islanded mode; and (c) excludes any personal information of third parties, including contractors and individuals who install or repair DER.
7 <i>product specific data</i> , in relation to a particular plan	(a) means information that identifies or describes the characteristics of the plan; and (b) includes the following data about the plan: (i) its type (whether standing, market or regulated); and (ii) its name; and (iii) fuel the plan applies to; and (iv) the retailer brand offering the plan; and (v) the distribution zone that the plan is offered in; and (vi) the tariff type; and (vii) information about the pricing associated with the plan, including unit rates, metering charges, daily supply charges and fees; and (viii) features and benefits, including discounts, incentives and bundles.
8 <i>tailored tariff data</i> , in relation to a particular account	means product specific information in relation to the plan that applies to, and as tailored to, the arrangement to which the account relates.

1.4 Meaning of *retailer*

For this Schedule, a data holder of energy sector data is a **retailer** if:

- (a) it retails electricity to connection points in the National Electricity Market; and
- (b) it is either:
 - (i) the holder of a retailer authorisation issued under the National Energy Retail Law (as it applies in a State or Territory) in respect of the sale of electricity; or
 - (ii) a retailer within the meaning of the *Electricity Industry Act 2000* (Vic).

1.5 Meaning of *trial product*

- (1) For these rules, in relation to the energy sector, a plan is a **trial product** if the plan is offered:
 - (a) with the description “pilot” or “trial”; and
 - (b) with a statement that it will operate as a pilot or trial for a period that ends no more than 24 months after the initial offering (the **trial period**); and
 - (c) on the basis that the number of customers to be supplied with the plan for the purposes of the trial will be limited to no more than 2,000; and

Clause 1.5

- (d) with a statement that the plan may be terminated before the end of the trial period and that, if it is, the CDR data in relation to the plan may *not* be available for data sharing under these rules.
- (2) A plan will cease to be a ***trial product*** from the time any of the following occurs:
 - (a) the plan is supplied or offered after the end of the trial period;
 - (b) the plan begins to be supplied to more than 2,000 customers.

Clause 2.1

Part 2—Eligible CDR consumers—energy sector

2.1 Additional criteria for eligibility—energy sector

- (1) For subrules 1.10B(1) and (2), the additional criteria for a CDR consumer to be *eligible*, in relation to a retailer at a particular time, are that:
 - (a) the CDR consumer is a customer of the retailer in relation to an eligible arrangement; and
 - (b) the account relates to the arrangement; and
 - (c) for an account that has been in existence for 12 months or more—the consumption associated with the account has been less than 5 GWh in the previous 12 months; and
 - (d) for an account that has been in existence for less than 12 months—the estimated annual consumption for the account is less than 5 GWh.
- (2) In this clause, an *eligible arrangement* is an arrangement that relates to one or more connection points or child connection points for which there is a financially responsible market participant in the National Electricity Market.

2.2 Meaning of *account privileges*—energy sector

- (1) This clause is made for the purposes of the definition of *account privileges* in subrule 1.7(1) of these rules.
- (2) For the energy sector, a person has account privileges in relation to an account with a retailer if the person is a customer authorised representative of the account holder for the purposes of:
 - (a) rule 56A of the National Energy Retail Rules; or
 - (b) Chapter 7 of the National Electricity Rules.

2.3 Consumer dashboard—application of rule 1.15

- (1) For subrule 1.15(1), if a retailer receives a consumer data request from an accredited person on behalf of a CDR consumer who has online access to the relevant account, the retailer must provide the CDR consumer with the consumer dashboard.
- (2) For subrule 1.15(1), if a retailer receives a consumer data request from an accredited person on behalf of a CDR consumer who does not have a consumer dashboard, the retailer must:
 - (a) offer the CDR consumer a consumer dashboard; and
 - (b) provide it if the CDR consumer accepts.

Part 3—CDR data that may be accessed under these rules— energy sector

3.1A Application of Part

This Part does not apply in relation to a plan while it is a trial product.

Note: If a plan ceases to be a trial product in accordance with subclause 1.5(2) of this Schedule, the data holder must comply with its obligations under this Part in relation to the plan. The obligations cover any CDR data generated while the plan was a trial product.

3.1 Meaning of *required product data* and *voluntary product data*—energy sector

- (1) For these rules, ***required product data***, in relation to the energy sector, means CDR data for which there are no CDR consumers that:
- (a) is within a class of information specified in section 9 or section 10 of the energy sector designation instrument; and
 - (b) is about the eligibility criteria, terms and conditions, price, availability or performance of a plan; and
 - (c) is product specific data in relation to a plan; and
 - (d) is held by the AER or the Victorian agency for the purpose of operating websites that provide such information to the public.

Note 1: In 2023, the relevant websites were:

- <https://www.energymadeeasy.gov.au/>; and
- <https://compare.energy.vic.gov.au/>

Note 2: This data derives from retailers, who are required by the National Energy Retail Law and the *Electricity Industry Act 2000* (Vic) to provide it to the AER or the Victorian agency. Those agencies therefore become data holders for it.

Note 3: This clause does not include all CDR data covered by section 9 of the energy sector designation instrument, as that section also covers CDR data for which there are CDR consumers (see paragraphs 9(2)(b) and 9(3)(b) of that instrument).

- (2) For these rules, ***voluntary product data***, in relation to a data holder in the energy sector, means CDR data for which there are no CDR consumers that:
- (a) is energy sector data; and
 - (b) is product specific data in relation to a plan offered by or on behalf of the data holder; and
 - (c) is not required product data.

3.2 Meaning of *required consumer data* and *voluntary consumer data*—energy sector

- (1) In this clause:

relevant account, in relation to a CDR consumer, means an account for which the CDR consumer is an account holder or secondary user and is:

- (a) an account held by the CDR consumer in their name alone; or
- (b) a joint account; or
- (c) a partnership account.

Clause 3.2

- (2) In these rules, subject to this clause, ***required consumer data***, in relation to the energy sector, means CDR data for which there is at least one CDR consumer that:
- (a) is energy sector data; and
 - (b) is, in relation to the CDR consumer:
 - (i) customer data that is held in relation to a relevant account; or
 - (ii) account data for a relevant account that is open; or
 - (iii) billing data from a relevant account for a time:
 - (A) at which that or another relevant account was open; and
 - (B) that is not more than 2 years before the day of the request; or
 - (iv) AEMO data in relation to a relevant account; or
 - (v) tailored tariff data for a relevant account that is open; and
 - (c) relates to a time at which an account holder for the relevant account was associated with the premises to which the request relates; and
 - (d) is held by the data holder or holders in a digital form.

Note 1: For subparagraph (b)(v), for a consumer data request, tailored tariff data could include the following:

- any rates or charges under the plan that were negotiated individually with a CDR consumer;
- any features and benefits negotiated individually with a CDR consumer.

Note 2: So long as the CDR consumer is eligible to make a consumer data request in relation to a particular data holder, they will be able to make or cause to be made a consumer data request that relates to any account they have with the data holder, including closed accounts (subject to subclauses (4) and (5)).

Note 3: A person is not a data holder of CDR data that was held by or on behalf of them before the earliest holding day (see paragraph 56AJ(1)(b) of the Act). Accordingly, such data cannot be requested under these rules.

- (3) For these rules, subject to this clause, ***voluntary consumer data***, in relation to the energy sector, means CDR data for which there are one or more CDR consumers that:
- (a) is energy sector data; and
 - (b) relates to a time at which an account holder for the account was associated with the premises to which the request relates; and
 - (c) is not required consumer data.

- (4) In this clause:

- (a) CDR data is neither ***required consumer data*** nor ***voluntary consumer data*** at a particular time if the data is:
 - (i) account data, billing data or tailored tariff data in relation to an account that is not any of the following:
 - (A) an account held in the name of a single person;
 - (B) a joint account;
 - (C) a partnership account; or
 - (ii) account data, billing data or tailored tariff data in relation to a joint account or partnership account for which any of the individuals who are account holders is less than 18 years of age at that time; or
 - (iii) AEMO data in relation to any such account; and

Clause 3.2

- (b) CDR data is neither ***required consumer data*** nor ***voluntary consumer data*** in relation to a consumer data request made by or on behalf of a particular person if the data is:
- (i) customer data in relation to any account holder or secondary user other than that person; or
 - (ii) AEMO data in relation to premises other than premises covered by the relevant arrangement at the time to which the data relates.
- (5) In this clause, energy sector data is neither ***required consumer data*** nor ***voluntary consumer data*** in relation to a data holder that is not a retailer or AEMO.

Note: The effect of this provision is that an accredited person who becomes a data holder in relation to energy sector CDR data by the operation of subsection 56AJ(3) of the Act is not required to respond to a consumer data request for the data.

Exception to required consumer data—open accounts

- (6) Despite subclause (2), for an account that is open at a particular time, CDR data that relates to a transaction or event that occurred more than 2 years before that time is not ***required consumer data***.

Note: As a result, such CDR data would be ***voluntary consumer data***.

Exception to required consumer data—closed accounts

- (7) Despite subclause (2), for an account that is closed at a particular time, each of the following is not ***required consumer data***:
- (a) CDR data held by AEMO, other than metering data;
 - (b) CDR data held by a retailer, other than billing data; and
 - (c) CDR data that is not excluded by paragraph (a) or (b), but relates to a transaction or event that occurred more than 2 years before that time.

Clause 4.1

Part 4—Roles of AEMO and the energy sector agencies

4.1 AER and the Victorian agency may act on each other's behalf

- (1) Where these rules require or permit one of the energy sector agencies to do any thing in relation to receiving or responding to product data requests (including the provision of a product data request service), the other agency may, at the first agency's request, do the thing on behalf of the first agency.
- (2) In this clause, the *energy sector agencies* are the AER and the Victorian agency.

4.2 Product data request service

- (1) Despite rule 1.12, a data holder of energy sector data, other than the AER and the Victorian agency, is not required to provide a product data request service.
- (2) However, if such a data holder chooses to provide an online service that can be used to make product data requests, the service must comply with rule 1.12.

4.3 Meaning of *SR data* and *primary data holder*—energy sector

For these rules:

- (a) *SR data*, in relation to the energy sector, means AEMO data in relation to a CDR consumer; and
- (b) the *primary data holder* for the SR data is the relevant retailer.

Note: Paragraph (a) also makes AEMO the *secondary data holder* for the SR data.

4.4 SR data must be obtained from AEMO

On receiving an SR data request under Part 3 or Part 4 of these rules, a retailer must request from AEMO, using the service mentioned in subrule 1.20(2), any SR data to be used in responding to the request

Note: AEMO is the secondary data holder for the SR data. This provision requires a retailer that happens to be the direct holder of any AEMO data that is subject to a consumer data request to ignore its data holding in responding to the request, and obtain the data from AEMO for that purpose.

4.5 Civil penalties do not apply

A civil penalty imposed by these rules for a breach of a provision of these rules, including one imposed by rule 9.8 by declaring the relevant provision to be a civil penalty provision, does not apply in relation to AEMO, the AER or the Victorian agency in relation to energy sector data.

Part 5—Dispute resolution—energy sector

Note: See the definitions of “meet the internal dispute resolution requirements” and “meet the external dispute resolution requirements” in subrule 1.7(1). See also paragraphs 5.12(b) and (c) of these rules, and rules 6.1 and 6.2.

5.1 Meeting internal dispute resolution requirements—energy sector

Accredited persons

- (1) For the energy sector, an accredited person, other than an accredited person that is also a retailer, ***meets the internal dispute resolution requirements*** if its internal dispute resolution processes comply with provisions of Regulatory Guide 271 that deal with the following:
 - (a) standards that its internal dispute resolution procedures or processes must meet regarding the following:
 - (i) commitment and culture;
 - (ii) the enabling of complaints;
 - (iii) resourcing;
 - (iv) responsiveness;
 - (v) objectivity and fairness;
 - (vi) policy and procedures;
 - (vii) data collection, analysis and internal reporting;
 - (viii) continuous improvement;
 - (b) outsourcing internal dispute resolution processes;
 - (c) acknowledgement of complaint;
 - (d) what an internal dispute resolution response must contain;
 - (e) maximum timeframes for an internal dispute resolution response;
 - (f) internal dispute resolution response requirements for multi-tier internal dispute resolution processes;
 - (g) the role of customer advocates;
 - (h) establishing links between internal dispute resolution processes and external dispute resolution;
 - (i) systemic issues.

Data holders

- (2) For the energy sector, a retailer (including a retailer that is also an accredited person) ***meets the internal dispute resolution requirements*** if its internal dispute resolution processes satisfy the applicable requirements for the retailer’s standard complaints and dispute resolution procedures under the National Energy Retail Law or the Energy Retail Code (Victoria).
- (3) Part 6 does not apply in relation to the AER, the Victorian agency or AEMO, in their capacity as data holders in the energy sector.

Definition

- (4) In this clause:

Clause 5.2

Regulatory Guide 271 means Regulatory Guide 271 published by the Australian Securities & Investments Commission, as in force from time to time and applied as if:

- (a) references to complaints were references to CDR consumer complaints; and
- (b) references to financial firms and financial service providers were references to CDR participants.

Note: Regulatory Guide 271 could in 2023 be accessed from the Australian Securities & Investments Commission's website (<https://asic.gov.au>).

5.2 Meeting external dispute resolution requirements—energy sector

Note: Schemes operated by the Australian Financial Complaints Authority Limited and the energy and water ombudsman of each State and Territory are recognised as external dispute resolution schemes for section 56DA of the Act.

How accredited persons and retailers meet the external dispute resolution requirements

- (1) For the energy sector, persons of the following kinds **meet the external dispute resolution requirements** in the circumstances indicated:
 - (a) an accredited person that is not a retailer—if it is an AFCA member;
 - (b) a retailer that is not an accredited person—if it is an EWO member;
 - (c) an accredited person that is also a retailer, but not a limited retailer—if it is both an AFCA member and an EWO member;
 - (d) an accredited person that is also a limited retailer—if it is an EWO member.

Meaning of AFCA member

- (2) In this clause, a retailer or an accredited person is an **AFCA member** if it is a member of the recognised external dispute resolution scheme operated by the Australian Financial Complaints Authority Limited for the energy sector.

Meaning of EWO member

- (3) In this clause, a retailer or accredited person is an **EWO member** if, in each relevant jurisdiction:
 - (a) if the jurisdiction has an energy and water ombudsman recognised in accordance with section 56DA of the Act—the retailer is a member of the external dispute resolution scheme operated by that ombudsman in relation to CDR consumer complaints; and
 - (b) otherwise—the retailer has taken the necessary steps to participate in the dispute resolution process provided by the jurisdiction that is appropriate for CDR consumer complaints.

Meaning of limited retailer

- (4) A retailer is a **limited retailer** if:
 - (a) it uses any energy sector CDR data that it collects only in order to provide goods or services within the energy sector; and

Clause 5.2

- (b) it does not use non-energy sector CDR data that it collects in order to provide goods or services outside the energy sector.

Clause 6.1

Part 6—Privacy safeguards—energy sector

6.1 Responding to correction request (rule 7.15)

- (1) This clause applies to a retailer that receives a request under subsection 56EP(1) or (2) of the Act that relates to AEMO data.
- (2) In relation to the AEMO data, rule 7.15 applies as if paragraphs (b) and (c) were replaced by the following:
 - “ (b) as soon as practicable:
 - (i) initiate the relevant correction procedures under the National Electricity Rules in relation to any NMI standing data or metering data for which correction is requested; and
 - (ii) if the request relates to DER register data, provide the requester with information about how the requester can contact the distributor to have the data corrected.”.

Part 7—Reporting and record keeping—energy sector

7.1 Reporting requirements (rule 9.4)

Rule 9.4 applies to AER and the Victorian agency as if subrule 9.4(1) were replaced by the following, referring to either as “the *Agency*”:

- “(1) The Agency must prepare a report for each reporting period that:
- (a) is in the form approved by the Commission for the purposes of this rule; and
 - (b) sets out the number (if any) of product data requests received by the Agency during the reporting period; and
 - (c) sets out:
 - (i) the number of times the Agency refused to disclose CDR data; and
 - (ii) the rule or data standard relied upon to refuse to disclose that data; and
 - (iii) the number of times the Agency has relied on each of those rules or data standards as a ground of refusal.”.

Clause 8.1

Part 8—Staged application of these rules to the energy sector

8.1 Interpretation

In this Part:

complex request means a consumer data request that:

- (a) is made on behalf of a large customer; or
- (b) is made on behalf of a secondary user; or
- (c) relates to a joint account or a partnership account; or
- (d) is made on behalf of a CDR consumer who has a nominated representative.

initial retailer has the meaning given by clause 8.2.

large customer means a CDR consumer that is:

- (a) in relation to a retailer that is subject to the *Electricity Industry Act 2000* (Vic)—a customer that is not a relevant customer for the purposes of that Act; or
- (b) otherwise—a large customer for the purposes of the National Energy Retail Law.

larger retailer has the meaning given by clause 8.3.

small retailer means a retailer that is not either an initial retailer or a larger retailer.

tranche 1 date means 15 November 2022.

tranche 1 (VA) date means a date specified by the Minister in a notifiable instrument made for the purposes of this definition.

tranche 2 date means 15 May 2023.

tranche 3 date means 1 November 2023.

tranche 4 date means 1 May 2024.

8.2 Meaning of *initial retailer*

In this Schedule, **initial retailer** means any of the following:

The AGL Energy Group

- (a) AGL Sales (Queensland Electricity) Pty Limited – ABN 66 078 875 902;
- (b) AGL South Australia Pty Ltd – ABN 49 091 105 092;
- (c) AGL Sales Pty Limited – ABN 88 090 538 337;

The Origin Energy Group

- (d) Origin Energy Electricity Limited – ABN 33 071 052 287;
- (e) any other subsidiary of Origin Energy Limited authorised or licensed to sell electricity in the National Electricity Market;

The Energy Australia Group
(f) EnergyAustralia Pty Ltd – ABN 99 086 014 968.

8.3 Meaning of *larger retailer*

- (1) In this Part:
 - (a) a retailer that had 10,000 or more small customers on the amendment day is a ***larger retailer***; and
 - (b) a retailer that had 10,000 or more small customers at all times during a financial year that begins on or after the amendment day is also a ***larger retailer*** on and from the day 12 months after the end of that financial year.
- (2) In this clause:
 - (a) a person is a ***small customer*** of a retailer if the person is:
 - (i) a domestic or small business customer of the retailer within the meaning given in section 3 of the *Electricity Industry Act 2000* (Vic); or
 - (ii) a small customer of the retailer within the meaning of section 5 of the National Energy Retail Law; and
 - (b) the ***amendment day*** is the day on which Schedule 1 to the *Competition and Consumer (Consumer Data Right) Amendment Rules (No. 2) 2021* commenced.

8.4 Product data requests under Part 2 of these rules

- (2) Part 2 of these rules applies to the AER on and from 1 October 2022.
- (3) Part 2 of these rules applies to the Victorian agency on and from the tranche 1 (VA) date.

8.5 Consumer data requests under Part 3 of these rules

Part 3 of these rules does not apply in relation to energy sector data.

8.6 Consumer data requests under Part 4 of these rules

Tranche 1 — 15 November 2022

- (2) Part 4 of these rules applies in relation to an initial retailer, except in relation to a complex request, on and from the tranche 1 date.
- (3) Part 4 of these rules applies to AEMO on and from the tranche 1 date.

Tranche 2 — 15 May 2023

- (4) Part 4 of these rules applies in relation to an initial retailer in relation to a complex request on and from the tranche 2 date.

Clause 8.7

Tranche 3 — 1 November 2023

- (5) Part 4 of these rules applies to a larger retailer, except in relation to a complex request, on and from the later of the tranche 3 date and the date that it becomes a larger retailer.

Tranche 4 — 1 May 2024

- (6) Part 4 of these rules applies to a larger retailer in relation to a complex request on and from the later of:
- (a) the tranche 4 date; and
 - (b) the day that is 6 months after the day that it became a larger retailer.

Application of Part 4 to small retailers that are accredited persons

- (7) Part 4 of these rules applies to a person who is both a small retailer and an accredited person, except in relation to a complex request, on and from the later of the day that is 12 months after:
- (a) the day that the person became an accredited person; and
 - (b) the day that the person became a small retailer.
- (8) Part 4 of these rules applies to a person who is both a small retailer and an accredited person, in relation to a complex request, on and from the later of the day that is 18 months after:
- (a) the day that the person became an accredited person; and
 - (b) the day that the person became a small retailer.

Voluntary application of Part 4 to small retailers

- (9) A small retailer may notify the Commission that it wishes Part 4 to apply to it:
- (a) except in relation to a complex request—on and from a specified date that is no earlier than the tranche 1 date; and
 - (b) in relation to a complex request—on and from a specified date that is no earlier than the tranche 2 date.
- (10) Subject to subclauses (7) and (8), Part 4 applies in relation to the small retailer, in accordance with the request, on and from the dates so specified.

8.7 Authorisation to disclose CDR data before being required to do so

- (1) This clause applies in relation to a request for disclosure of CDR data that has been made to a retailer in accordance with Part 2, Part 3 or Part 4 of these rules (the **relevant data request Part**) if:
- (b) the requested CDR data is any of the following:
 - (i) required product data;
 - (ii) voluntary product data;
 - (iii) required consumer data;
 - (iv) voluntary consumer data; and
 - (c) the requested CDR data includes some pre-application CDR data.

Clause 8.7

- (2) For these rules, the retailer may disclose any or all of the pre-application CDR data in response to the request in accordance with the relevant data request Part.
- (3) In this clause, ***pre-application CDR data*** means CDR data that, but for the operation of this Part, the data holder would be required or authorised by the relevant data request Part to disclose in response to the request.

Clause 9.1

Part 9—Other rules, and modifications of these rules, for the energy sector

9.1 Laws relevant to the management of CDR data—energy sector

For paragraph (f) of the definition of “law relevant to the management of CDR data” in rule 1.7 of these rules:

- (a) the National Electricity Law; and
- (b) the National Energy Retail Law; and
- (c) the *Electricity Industry Act 2000* (Vic);

are laws relevant to the management of CDR data in relation to the energy sector.

9.2 Conditions for accredited person to be data holder

- (1) For paragraph 56AJ(4)(c) of the Act, this clause sets out conditions for a person that has collected CDR data in accordance with a consumer data request under Division 4.3 of these rules to be a data holder (rather than an accredited data recipient) of that CDR data and any CDR data that it directly or indirectly derived from that CDR data (together, the **relevant** CDR data).

- (2) The conditions are that:

- (a) the person is a retailer; and
- (b) the CDR data is information covered by item 1, 3 or 5 of the table in section 12 of the of the energy sector designation instrument; and

Note: These are the types of information for which a retailer is designated as a data holder under the designation instrument.

- (c) the CDR consumer is a customer of the person; and
- (d) the person:
 - (i) reasonably believes that the relevant CDR data is relevant to the arrangement with the CDR consumer; and
 - (ii) has asked the CDR consumer to agree to the person being a data holder, rather than an accredited data recipient, of the relevant CDR data; and
 - (iii) has explained to the CDR consumer:
 - A) that, as a result, the privacy safeguards, to the extent that they apply to an accredited data recipient of CDR data, would no longer apply to the person in relation to the relevant CDR data; and
 - B) that the privacy safeguards applicable to a data holder will instead apply to the person in relation to the relevant CDR data; and
 - C) the manner in which the person proposes to treat the relevant CDR data; and
 - D) why the person is entitled to provide the CDR consumer with this option; and
 - (iv) has outlined the consequences, to the CDR consumer, of not agreeing to this; and

Clause 9.3

- (e) the CDR consumer has agreed to the person being a data holder, rather than an accredited data recipient, of the relevant CDR data.

Related modifications of these rules

- (3) If a person becomes a data holder, rather than an accredited data recipient, of CDR data as a result of subsection 56AJ(4) of the Act and this clause:
 - (b) for paragraph 4.26(1)(h) of these rules, any authorisations to disclose CDR data in relation to the consumer data request expire; and
 - (c) if the person's accreditation has been surrendered or revoked, the following do not apply to the person in relation to that CDR data:
 - (i) subrule 5.23(2);
 - (ii) paragraph 5.23(3)(b).

9.3 Consultation by Data Recipient Accreditor (rule 5.4)

For paragraph 5.4(1)(c), the AER and the Essential Services Commission of Victoria are specified as authorities that the CDR Accreditor may consult with.

9.4 AEMO not to appear on Registrar's database (rule 5.25)

For the purposes of subrule 5.25(1), AEMO is not to be treated as a data holder.

Note: The function of the database to be maintained under subrule 5.25(1) is to provide information for the making of consumer data requests to data holders. Since requests for AEMO data will be made to the relevant retailer, the database will not require details relating to AEMO.

9.5 Grounds for revocation, suspension and surrender of accreditation—energy sector

For item 5 of the table in rule 5.17:

- (a) the relevant condition is that the accredited person was, at the time of the accreditation, a retailer; and
- (b) the accredited person ceases to satisfy the condition if its authorisation or licence to sell electricity in the National Electricity Market has been suspended or revoked.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
amdt = amendment	pres = present
c = clause(s)	prev = previous
C[x] = Compilation No. x	(prev...) = previously
Ch = Chapter(s)	Pt = Part(s)
def = definition(s)	r = regulation(s)/rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
Div = Division(s)	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
F = Federal Register of Legislation	s = section(s)/subsection(s)
gaz = gazette	Sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	Sdiv = Subdivision(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
o = order(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Competition and Consumer (Consumer Data Right) Rules 2020	5 February 2020 (F2020L00094)	6 February 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2020	18 June 2020 (F2020L00757)	19 June 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 2) 2020	1 October 2020 (F2020L01278)	2 October 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 3) 2020	22 December 2020 (F2020L01688)	23 December 2020	Schedule 1, item 105
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2021	5 October 2021 (F2021L01392)	Sch 1: 1 February 2022 (s 2(1) item 2) Sch 2 and Sch 6 (items 1–3, 15, 18, 19): 19 October 2021 (s 2(1) items 3, 5) Remainder: 6 October 2021 (s 2(1) items 1, 4, 6, 7)	Schedule 7
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 2) 2021	15 November 2021 (F2021L01561)	16 November 2021 (s 2(1))	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2023	21 July 2023 (F2023L01027)	22 July 2023 (s 2(1))	—
Competition and Consumer (Consumer Data Right) Amendment (2024 Measures No. 1) Rules 2024	11 November 2024 (F2024L01409)	12 November 2024	—
Competition and Consumer (Consumer Data Right) Amendment (2025 Measures No. 1) Rules 2025	3 March 2025 (F2025L00272)	4 March 2025	—

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
Division 1.1	
r 1.2	rep LA s 48D
Division 1.2	
r 1.4	am F2020L01688; F2021L01561; F2024L01409; F2025L00272
r 1.6	am F2020L01278, F2020L01688; F2021L01392; F2021L01561; F2023L01027; F2024L01409; F2025L00272
r 1.6A	ad F2025L00272
Division 1.3	
r 1.7	am F2020L00757, F2020L01278, F2020L01688; F2021L01392; F2021L01561; F2023L01027; F2024L01409; F2025L00272 ed C8
r 1.8	am F2020L01688 rs F2023L01027 am F2024L01409
r 1.9	am F2020L01688; F2023L01027
r 1.10	rs F2020L01278 am F2021L01392 rs F2023L01027
r 1.10AA	ad F2021L01392 rs F2023L01027 am F2024L01409
r 1.10A	ad F2020L01688 am F2021L01392; F2024L01409 rs F2023L01027
r 1.10B	ad F2021L01561 am F2025L00272
r 1.10C	ad F2021L01392 am F2023L01027; F2024L01409
r 1.10D	ad F2021L01392 am F2023L01027
Division 1.4	
Subdivision 1.4.1	
r 1.11	am F2020L01688; F2024L01409
Subdivision 1.4.2	
r 1.12	am F2021L01561; F2025L00272
r 1.13	am F2020L00757, F2020L01688; F2021L01561; F2023L01027; F2024L01409
Subdivision 1.4.3	
r 1.14	am F2020L01688; F2021L01392; F2023L01027; F2024L01409
r 1.15	rs F2020L01688

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am F2021L01392; F2021L01561; F2023L01027; F2024L01409; F2025L00272
Subdivision 1.4.4	
Subdivision 1.4.4 heading	am F2020L01688
r 1.16	rs F2020L01278 am F2021L01392 ed C4 rs F2023L01027
r 1.16A	ad F2021L01392 rs F2023L01027 am F2024L01409
Subdivision 1.4.5	
r 1.17	am F2021L01392; F2023L01027
r 1.18	am F2020L01278, F2020L01688; F2021L01561
Division 1.5	
Division 1.5	ad F2021L01561
r 1.19	ad F2021L01561
r 1.20	ad F2021L01561
r 1.21	ad F2021L01561
r 1.22	ad F2021L01561 am F2023L01027 ed C8
r 1.23	ad F2021L01561 am F2023L01027 ed C8
r 1.24	ad F2021L01561
r 1.25	ad F2021L01561
r 1.26	ad F2021L01561
Part 2	
r 2.1	am F2021L01561; F2025L00272
r 2.3	am F2020L01688; F2021L01561; F2025L00272
r 2.4	am F2020L01688; F2021L01561; F2025L00272
Part 3	
Division 3.1	
r 3.1	am F2021L01392; F2025L00272
Division 3.2	
r 3.3	am F2021L01561; F2025L00272
r 3.4	am F2021L01392; F2021L01561; F2025L00272
r 3.5	am F2020L00757; F2021L01392
Part 4	
Division 4.1	
Division 4.1	rs F2020L01688
r 4.1	am F2021L01392; F2023L01027; F2024L01409; F2025L00272

Endnote 4—Amendment history

Provision affected	How affected
Division 4.2	
Division 4.2 heading	am F2020L01688
Subdivision 4.2.1	
Subdivision 4.2.1	ad F2020L01688
r 4.2	am F2023L01027; F2024L01409; F2025L00272
Subdivision 4.2.2	
Subdivision 4.2.2 heading	ad F2020L01688
r 4.3	rs F2020L01688
	am F2021L01392; F2023L01027; F2024L01409
r 4.3A	ad F2021L01392
	am F2023L01027; F2024L01409
	ed C8
r 4.3B	ad F2021L01392
	am F2023L01027
r 4.3C	ad F2021L01392
	am F2021L01561
	rep F2023L01027
Subdivision 4.2.3	
Subdivision 4.2.3 heading	ad F2020L01688
r 4.4	rs F2020L01688
	am F2021L01392; F2023L01027; F2024L01409; F2025L00272
r 4.5	am F2020L01688; F2021L01561; F2025L00272
r 4.6	am F2020L01688; F2021L01392; F2021L01561; F2025L00272
r 4.6A	ad F2020L01688
	am F2023L01027; F2024L01409
r 4.7	am F2020L00757; F2021L01392; F2021L01561; F2023L01027
Subdivision 4.2.4	
Subdivision 4.2.4	ad F2020L01688
r 4.7A	am F2021L01392; F2023L01027; F2024L01409
r 4.7B	am F2021L01561; F2023L01027; F2025L00272
Division 4.3	
Division 4.3 heading	am F2023L01027
Division 4.3	rs F2020L01688
Subdivision 4.3.1	
r 4.8	rs F2023L01027
Subdivision 4.3.2	
r 4.10	am F2021L01392; F2023L01027
	rs F2024L01409
r 4.11	am F2021L01392; F2023L01027; F2024L01409; F2025L00272
r 4.12	am F2023L01027; F2024L01409
Subdivision 4.3.2A	
r 4.12B	am F2023L01027; F2024L01409

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Endnote 4—Amendment history

Provision affected	How affected
r 4.12C	am F2023L01027; F2024L01409
Subdivision 4.3.2B	
r 4.13	rs F2023L01027
Subdivision 4.3.2C	
r 4.14	rs F2023L01027
r 4.15	am F2024L01409
Subdivision 4.3.4	
r 4.16	am F2021L01392 rs F2023L01027
Subdivision 4.3.5	
r 4.18	am F2023L01027 rs F2024L01409
r 4.18AA	ad F2023L01027
r 4.18A	am F2023L01027; F2024L01409
r 4.18B	rs F2023L01027
r 4.18C	rs F2023L01027
r 4.19	rs F2023L01027
r 4.20	am F2023L01027; F2024L01409
r 4.20A	ad F2021L01392
Division 4.3A	
Division 4.3A	ad F2023L01027
Subdivision 4.3A.1	
r 4.20B	ad F2023L01027
r 4.20C	ad F2023L01027
Subdivision 4.3A.2	
r 4.20D	ad F2023L01027 rs F2024L01409
r 4.20E	ad F2023L01027 am F2024L01409; F2025L00272
r 4.20F	ad F2023L01027 am F2024L01409
Subdivision 4.3A.3	
r 4.20G	ad F2023L01027
r 4.20H	ad F2023L01027 am F2024L01409
r 4.20I	ad F2023L01027 am F2024L01409
Subdivision 4.3A.4	
r 4.20J	ad F2023L01027
Subdivision 4.3A.5	
r 4.20K	ad F2023L01027
Subdivision 4.3A.6	

Endnote 4—Amendment history

Provision affected	How affected
r 4.20L	ad F2023L01027
Subdivision 4.3A.7	
r 4.20M	ad F2023L01027
r 4.20N	ad F2023L01027
Subdivision 4.3A.8	
r 4.20O	ad F2023L01027
	rs F2024L01409
r 4.20P	ad F2023L01027
r 4.20Q	ad F2023L01027
	am F2024L01409
r 4.20R	ad F2023L01027
r 4.20S	ad F2023L01027
r 4.20T	ad F2023L01027
r 4.20U	ad F2023L01027
	am F2024L01409
Division 4.4	
Division 4.4	rs F2020L01688
r 4.22A	am F2023L01027
r 4.23	am F2023L01027
r 4.25	rs F2023L01027
r 4.26	am F2023L01027
r 4.26A	ad F2023L01027
Part 4A	
Part 4A	ad F2021L01392
Division 4A.1	
r 4A.1	ad F2021L01392
r 4A.2	ad F2021L01392
r 4A.3	ad F2021L01392
Division 4A.2	
r 4A.4	ad F2021L01392
r 4A.5	ad F2021L01392
r 4A.6	ad F2021L01392
r 4A.7	ad F2021L01392
r 4A.8	ad F2021L01392
Division 4A.3	
Subdivision 4A.3.1	
r 4A.9	ad F2021L01392
Subdivision 4A.3.2	
r 4A.10	ad F2021L01392
r 4A.11	ad F2021L01392
r 4A.12	ad F2021L01392
r 4A.13	ad F2021L01392

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Endnote 4—Amendment history

Provision affected	How affected
	am F2024L01409
r 4A.14	ad F2021L01392
r 4A.15	ad F2021L01392
Part 5	
r 5.1	am F2025L00272
Division 5.2	
Subdivision 5.2.1A	
Subdivision 5.2.1A	ad F2021L01392
r 5.1A	ad F2021L01392
r 5.1B	ad F2021L01392
	am F2023L01027; F2025L00272
Subdivision 5.2.1	
r 5.2	am F2021L01392; F2023L01027; F2025L00272
Subdivision 5.2.2	
r 5.3	am F2025L00272
r 5.4	am F2021L01561; F2023L01027; F2025L00272
r 5.5	am F2021L01392; F2021L01561; F2025L00272
r 5.6	am F2025L00272
r 5.7	am F2025L00272
r 5.8	am F2025L00272
r 5.10	am F2020L01688; F2025L00272
r 5.11	am F2025L00272
Subdivision 5.2.3	
r 5.12	am F2020L01688; F2021L01392; F2021L01561; F2025L00272
	rs F2023L01027
r 5.14	am F2021L01392; F2023L01027; F2025L00272
	ed C8
r 5.15	am F2021L01392; F2025L00272
Subdivision 5.2.4	
r 5.17	am F2020L00757; F2021L01392; F2021L01561; F2025L00272
	ed C7
r 5.18	am F2020L00757; F2021L01392; F2025L00272
r 5.19	am F2025L00272
r 5.20	am F2025L00272
r 5.21	am F2025L00272
r 5.23	am F2023L01027
Division 5.3	
r 5.24	am F2020L00757; F2021L01392; F2025L00272
r 5.25	am F2021L01561; F2025L00272
r 5.26	am F2025L00272
r 5.27	am F2023L01027
r 5.28	am F2025L00272

Endnote 4—Amendment history

Provision affected	How affected
r 5.30	am F2020L00757; F2025L00272
r 5.33	ad F2020L01688
r 5.34	ad F2020L01688
Part 6	
r 6.1	am F2021L01561; F2025L00272 rs F2023L01027
r 6.2	am F2021L01561; F2025L00272 rs F2023L01027
Part 7	
Division 7.1	
r 7.1	am F2023L01027
Division 7.2	
Subdivision 7.2.1	
r 7.2	am F2020L01278, F2020L01688; F2021L01392 rs F2021L01561 am F2021L01392; F2023L01027 rs F2024L01409
r 7.3	am F2021L01392; F2021L01561; F2023L01027
r 7.3A	ad F2021L01392 am F2023L01027
r 7.3B	ad F2023L01027
Subdivision 7.2.2	
r 7.4	am F2020L01278, F2020L01688 rs F2021L01392 am F2023L01027
Subdivision 7.2.3	
r 7.5	am F2020L01278, F2020L01688; F2021L01392 ed C4 am F2021L01561 rs F2023L01027
r 7.5A	ad F2020L01688 am F2021L01392 rs F2023L01027
r 7.6	am F2020L01278; F2021L01392 rs F2023L01027
r 7.8A	ad F2021L01392 am F2023L01027
r 7.8B	ad F2023L01027
r 7.9	am F2020L01278, F2020L01688; F2021L01392; F2023L01027
Subdivision 7.2.4	
r 7.10	am F2020L01278, F2020L01688; F2023L01027
r 7.10A	ad F2021L01392

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Endnote 4—Amendment history

Provision affected	How affected
	am F2023L01027
r 7.11	am F2021L01392; F2023L01027
r 7.12	am F2020L01278; F2021L01392
	ed C5
	am F2023L01027
Subdivision 7.2.5	
r 7.15	am F2021L01561
r 7.16	ad F2021L01392
	am F2023L01027
Part 8	
Division 8.1	
r 8.1	am F2021L01561
Division 8.2	
Division 8.2 heading	am F2021L01561
r 8.2	rs F2021L01561
r 8.3	am F2021L01561
r 8.4	am F2021L01561; F2025L00272
r 8.5	am F2021L01561
r 8.6	am F2021L01561
r 8.7	am F2021L01561
Division 8.4	
r 8.11	am F2020L01688; F2021L01392; F2021L01561; F2023L01027; F2024L01409
Part 9	
r 9.2	am F2025L00272
Division 9.3	
Subdivision 9.3.1	
r 9.3	am F2020L01278, F2020L01688; F2021L01392; F2021L01561; F2023L01027; F2025L00272
r 9.4	am F2020L01688; F2021L01392
	ed C5
	am F2021L01561; F2023L01027
r 9.5	am F2020L01688; F2021L01392; F2023L01027
Subdivision 9.3.2	
r 9.7	am F2020L01688; F2023L01027; F2025L00272
Division 9.4	
r 9.8	am F2020L01278, F2020L01688
	rs F2021L01392; F2021L01561; F2023L01027
	am F2024L01409
Part 50	ad F2024L01409
Schedule 1	
Part 2	
c 2.1	am F2020L01688; F2021L01392; F2021L01561; F2023L01027; F2025L00272

Endnote 4—Amendment history

Provision affected	How affected
c 2.2	ad F2021L01392 am F2023L01027
Schedule 2	
Part 1	
c 1.1	am F2023L01027
c 1.5	am F2021L01392
Part 2	
c 2.1	am F2023L01027
c 2.2	am F2020L00757, F2020L01278; F2021L01392
Schedule 3	
Schedule 3 heading	am F2025L00272
Part 1	
Part 1	rs F2025L00272
Part 2	
Part 2	rs F2025L00272
Part 3	
Part 3	rs F2025L00272
Part 4	
Part 4	rs F2020L01688 rep F2021L01392
Part 5	
Part 5 heading	am F2023L01027 rs F2025L00272
Part 5	am F2023L01027
c 5.1	rs F2021L01561 am F2023L01027; F2025L00272
c 5.2	ad F2023L01027 rs F2025L00272
Part 6	
Part 6	rs F2025L00272
Part 7	
Part 7 heading	am F2025L00272
c 7.1A	ad F2025L00272
c 7.1	am F2025L00272
c 7.2	am F2020L01688; F2023L01027; F2024L01409; F2025L00272
c 7.5	ad F2021L01561
Part 8	
Part 8	ad F2025L00272
Schedule 4	
Schedule 4	ad F2021L01561
Part 1	
c 1.1	ad F2021L01561

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Endnote 4—Amendment history

Provision affected	How affected
c 1.2	ad F2021L01561
c 1.3	ad F2021L01561 am F2023L01027
c 1.4	ad F2021L01561
c 1.5	ad F2024L01409
Part 2	
c 2.1	ad F2021L01561 am F2023L01027
c 2.2	ad F2021L01561 am F2023L01027
c 2.3	ad F2021L01561
Part 3	
c 3.1A	ad F2024L01409
c 3.1	ad F2021L01561 am F2023L01027
c 3.2	ad F2021L01561 am F2023L01027 ed C8
Part 4	
c 4.1	ad F2021L01561 am F2023L01027
c 4.2	ad F2021L01561
c 4.3	ad F2021L01561
c 4.4	ad F2021L01561
c 4.5	ad F2021L01561
Part 5	
Part 5	am F2023L01027
c 5.1	ad F2021L01561 am F2023L01027
c 5.2	ad F2021L01561 rs F2023L01027
Part 6	
c 6.1	ad F2021L01561
Part 7	
c 7.1	ad F2021L01561
Part 8	
c 8.1	ad F2021L01561 am F2023L01027; F2024L01409
c 8.2	ad F2021L01561 am F2023L01027
c 8.3	ad F2021L01561 am F2023L01027

Endnote 4—Amendment history

Provision affected	How affected
c 8.4	ad F2021L01561 am F2024L01409
c 8.5	ad F2021L01561
c 8.6	ad F2021L01561 am F2024L01409
c 8.7	ad F2021L01561 am F2023L01027
Part 9	
c 9.1	ad F2021L01561
c 9.2	ad F2021L01561 am F2023L01027
c 9.3	ad F2021L01561 am F2025L00272
c 9.4	ad F2021L01561
c 9.5	ad F2021L01561